

Request for Proposal (RFP) for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution

Bank of Baroda
Baroda Sun Tower
IT Department
C-34, G-Block
Bandra Kurla Complex
Bandra (East), Mumbai - 400 051

RFP Reference: GEM/2026/B/7384384
Date: 23rd March 2026

[A] Important Dates:

#	Particulars	Timeline
1	RFP Issuance Date	23rd March 2026
2	RFP Coordinator Name, Contact details (Bank)	Mrs. KANCHANA RANI G, Officer (IT), Contact Details – Ph.: 022-6917-4118, Email: rfp.it.procurement@bankofbaroda.co.in Postal Address: The Chief Manager (IT Procurement), Bank of Baroda, Dena Bhawan- A Wing, Patel Estate, Jogeshwari (W) - 400102.
3	Pre-bid Meeting details	- Pre bid meeting will be held online through Bank's Online Meeting Platform (i.e. Microsoft Teams) on 30th March 2026 at 3.00 PM - Bidder to submit a maximum of -2- participant's names, contact numbers, designations and e-mail IDs on rfp.it.procurement@bankofbaroda.com in advance before pre-bid meeting along with pre-bid clarification. - Bidder representatives will have to click the link below to join the Pre-bid meeting: Prebid Meeting - Trade Finance Meeting-Join Microsoft Teams Meeting ID: 447 590 584 015 68 Passcode: dr9No7Ba
4	Last Date of Submission of RFP Response (Closing Date)	13th April 2026 at 3.00 P.M. Mode: Online (on GeM Portal)
5	Eligibility Cum Technical Bid Opening Date	13th April 2026 at 3.30 P.M.
6	Commercial Bid	Bank will open the commercial bids of only those bidders who qualify in the eligibility and technical bid evaluation.
7	Bid Security (Earnest Money Deposit)	Rs. 2 Cr. MSE / Startups will be exempted from EMD submission as per Govt. of India guidelines
8	Mode of bid submission	Mode: Online on GeM Portal
9	Support details of Online Portal facilitator	helpdesk-gem@gov.in 1800-419-3436; 1800-102-3436

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[B] Important Clarifications:

Following terms are used in the document interchangeably to mean:

1. Bank, BOB means 'Bank of Baroda', its Sponsored RRBs
2. Recipient, Respondent, Bidder, Service Provider, SI (System Integrator) means the respondent to the RFP document
3. RFP means the Request For Proposal document
4. Proposal, Bid means "Response to the RFP Document"
5. Tender means RFP response documents prepared by the bidder and submitted to Bank of Baroda
6. Bidder, Bank shall be individually referred to as 'Party' and collectively as 'Parties'
7. Support means Support & Services to be provided as part of the Scope of Work
8. ATP means Acceptance Test Procedure
9. AMC means Annual Maintenance Contract
10. DC Means Data Centre
11. DR Means Data Recovery Centre
12. Banking, Financial services and Insurance (BFSI)
13. Central Vigilance Commission (CVC)
14. Earnest Money Deposit (EMD)
15. One Time Cost (OTC)
16. Total Cost of Ownership (TCO)
17. NPV mean Net Present Value
18. Service Level Agreement (SLA)
19. NDA means Non-Disclosure Agreement
20. Customer Relationship Management (CRM)
21. Single Person of Contact (SPOC)
22. Bill of Material (BOM)

Confidentiality:

This document is meant for the specific use by the Company / person/s interested to participate in the current tendering process. This document in its entirety is subject to Copyright Laws. Bank of Baroda expects the vendors or any person acting on behalf of the vendors strictly adhere to the instructions given in the document and maintain confidentiality of information. The vendors will be held responsible for any misuse of information contained in the document, and liable to be prosecuted by the Bank in the event that such a circumstance is brought to the notice of the Bank. By downloading the document, the interested party is subject to confidentiality clauses.

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1. Introduction

1.1 Introduction

Bank of Baroda is one of the largest Public Sector Banks (PSU) in India with a branch network of over 8400+ branches in India and around 80+ branches/offices overseas including branches of our subsidiaries, distributed in 15+ countries.

Bank of Baroda, a body corporate constituted under the Banking Companies (Acquisition & Transfer of Undertakings) Act 1970, having its Corporate Office at C-26, G-Block, Bandra Kurla Complex, Bandra East, Mumbai - 400051 (hereinafter referred to as the “Bank”) which expression unless repugnant to the context or meaning thereof shall mean and include its successors and assigns, intends to issue this RFP document, hereinafter called RFP, to eligible Vendors, hereafter called as ‘Vendors’, to participate in the competitive bidding for Selection of Vendor for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution.

1.2 Project overview

The Bank is presently using the BarodaINSTA suite to process inland and cross-border Trade and foreign transactions for its domestic operations. Now Bank wants to select a vendor for the replacement of the existing system with a new unified AI-enabled Trade Finance Solution for Domestic operations and for implementing Trade Finance Automation across Bank’s International Centers.

This Request for Proposal (RFP) document has been prepared solely for the purpose of enabling Bank of Baroda (“the Bank”) for Request for Proposal for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution.

The Bank, for this purpose, invites proposals from Vendors who are interested in participating in this RFP who fulfill the eligibility criteria mentioned under Annexure- 02 and are also in a position to comply with the technical requirement as mentioned in Project Scope. Apart from the above the vendor must also agree to all our terms & conditions mentioned under this RFP.

The RFP document is not a recommendation, offer or invitation to enter into a contract, agreement or any other arrangement, in respect of the services. The provision of the services is subject to observance of the selection process and appropriate documentation being agreed between the Bank and any successful Vendor as identified by the Bank, after completion of the selection process as detailed in this document.

1.3 Project Scope

Bank desires to select vendor for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution.

The scope of work is mentioned in Annexure 12. However, Bank reserves the right to modify/change the scope of work at any phase of this procurement process.

Bank will award the contract to the successful bidder, and the bidder should deliver the services as per the Detailed Scope of Work mentioned in Annexure 12 and the Functional and Technical Requirement as mentioned in this RFP.

Considering the enormity of the assignment, any service which forms a part of the Project

Scope that is not explicitly mentioned in scope of work as excluded would form part of this RFP, and Bidder is expected to provide the same at no additional cost to the Bank. The Bidder needs to consider and envisage all the services that would be required in the Scope and ensure the same is delivered to the Bank. The Bank will not accept any plea of the Bidder at a later date for omission of services on the pretext that the same was not explicitly mentioned in the RFP.

1.4 Infrastructure

The vendor needs to size for the solution based on the volume and the growth and propose the same as part of their technical bid submission. Bank may provide/use existing IT infrastructure based on the sizing proposed by the vendor.

However, the complete supply, implementation, maintenance and support of the Trade Finance Solution shall be part of the scope of the bidder.

As part of the technical proposal the bidder needs to provide complete solution details. The bidder must design the solution with high availability & secure Infrastructure in Data Centre and Disaster Recovery site as per Industry accepted security standards and best practices.

The Application & Database should be sized for Active- Active cluster at DC & Active- Active cluster at DRC so that the solution and infrastructure can fall back on each other. DC - DR real-time replication should be available as part of the solution so that in case of switch over the complete solution should seamlessly work.

Vendor needs to accordingly provide as part of the technical solution the complete IT infrastructure details like Server, Operating System, Database, Storage Capacity and other related requirements. The details should include:

- List of Operating Systems (OS) and Databases (DB) on which the solution is compatible along with licensing details of the OS and DB for the complete solution (Including installations and replication at DC and DR).
- Details of redundancy and security setup
- Application architecture along with a detailed diagram including the infrastructure setup.
- Implementation procedure / road map.
- Server and related infrastructure specification required as part of the solution implementation (for both UAT and production phase) along with the quantity to meet the Bank's redundancy requirement.

The Bidder is responsible to arrive at the sizing independently based on the volume and the growth indicated in the Annexure 12 - Project Details and Scope of Work. The Bank is not responsible for any assumption made by the Bidder with respect to the sizing. In the event the sizing proposed by the Bidder does not meet the performance / service levels of the Bank the Bidder will at their cost carry out the necessary upgrades / replacements.

Enterprise license on proposed Solution

The license for the solution to be Enterprise wide perpetual level for all the modules offered without any constraint on number of branches or users for the Bank's Operations in India &

International Territories, present & future subsidiaries and associates both domestic & international and present & future RRBs.

The Bidder will supply, implement, maintain and support the complete Trade Finance Solution.

1.5 Pre-Qualification for Submission of Bid

Bidders satisfying the eligibility conditions (mentioned in Annexure 02) and General terms and conditions specified in this document and ready to provide the said “Services” in conformity with Project Details and Scope of Work stipulated in Annexure 12, may submit their bid through Government e Marketplace (GeM) on or before the last date of bid submission.

Bids submitted by any other means other than bid submission in Government e Marketplace (GeM) will not be accepted by the Bank. The detail guidelines for submission details and E-tendering mentioned under “Guidelines and E-tendering Instructions”.

1.6 Disaster Recovery Mechanism

The proposed system must be capable of and compatible for Disaster Recovery Implementation. The bidder should describe the provisions for disaster recovery and show that the proposed solution facilitates disaster recovery.

The bidder needs to submit the technical architecture relating to data replication between primary and secondary site

1.7 Porting of application

In case servers are procured as replacement for existing servers then Bank’s managed service provider will be responsible for porting applications to the supplied system, however the selected vendor shall provide support to the managed service provider for any hardware related support if required at no extra cost to the Bank.

1.8 Contract period

The Bank shall enter into an agreement with the selected bidder for a period starting from the date of the Purchase Order till -5- years from the Go-Live Closure Sign-off date given by the Bank officials. Bank will have the right to change the start of contract date at its own discretion due to any unforeseen circumstances.

The contract will be deemed completed only when all the items and services contracted by the Bank are provided in good condition, implemented, tested and accepted along with the associated documentation provided to Bank’s employees; as per the requirements of the contract executed between the Bank and the Bidder. The Bank will have the right to renegotiate these prices at the end of the contract period.

Bank at its discretion can order +/- 25% of the contract quantity within a period of 1 year from the date of Purchase Order at the same price and the same terms and conditions. There will be no escalation of price during the contract period.

1.9 Delivery

Trade Finance Solution must be implemented as per project scope within **-9- months** in totality from the date of placing purchase order by the Bank.

Bank has planned to implement the complete solution in phases. The implementation timeline for each phase is as follows:

Phase	Description	Scope	Timeline (from PO)
Phase 1	Foundation Setup, Data Migration & Core Go-Live (India)	✓ Environment setup (DC/DR) ✓ Integration with CBS, SWIFT, and channels ✓ Data migration from existing system ✓ - Go-live of core Trade Finance modules (Import LC, Export LC, BG, Remittances) for India operations - Basic customer portal enablement	Within 3 months
Phase 2	Full Functional Rollout & International Coverage	✓ Rollout of all out-of-the-box (OOTB) functionalities as per RFP ✓ Enablement for international branches/territories ✓ Advanced features (STP flows, reporting, compliance modules) ✓ - Integration with regulatory systems (DGFT, GST, etc.)	Within 6 months
Phase 3	Customization, Optimization & Final Stabilization	✓ Development and deployment of customizations/gap requirements ✓ Fine-tuning of workflows and business rules ✓ Performance optimization ✓ - Final UAT sign-off and stabilization support	Within 9 months

The solution as per the required scope needs to be rolled out as per the delivery timelines mentioned above.

Any delivery that has not been supplied/implemented or not operational on account of which the implementation is delayed, will be deemed/treated as non-delivery thereby excluding the Bank from all payment obligations under the terms of this contract.

In case the individual phase wise deadlines are not met then the Vendor will have to pay penalty to Bank of Baroda @ 0.5% of particular phase implementation cost inclusive of all taxes, duties, levies etc., per week or part thereof, for late implementation beyond due date of implementation, to a maximum of 10%. Particular phase implementation cost is the cost linked against each phase as part of payment terms i.e. If Phase 1 implementation is delayed then the penalty shall be on 30% of the total implementation cost. If delay exceeds two weeks from due date of implementation, Bank of Baroda reserves the right to cancel the

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entire order.

Any deliverable has not been implemented or not operational on account of which the implementation is delayed, will be deemed/treated as non-delivery thereby excluding the Bank from all payment obligations under the terms of this contract.

1.6 Service Levels and Uptime Guarantee

For details, please refer to Annexure 13 that provides the service levels for providing Merchant Management Solution.

1.7 Technical Bid Response

The Technical bid response should include all the information required to assess technical proposal. It should also include details on following aspects:

- a) High-level service delivery roadmap & delivery schedule as per the requirement of the Bank.
- b) Program/Project Management methodology, processes, service management & governance structure (also highlight expectations from the Bank to meet the service levels and scope of work).
- c) Integration methodology – Internal & External Third party - Standards
- d) Technology considerations to meet requirements on SLAs, Operational resilience, availability, business continuity and observability
- e) Sample SLA reports/templates, deliverable reports, executive dashboards, monitoring dashboards, application performance monitoring etc.
- f) Technology considerations and proposed capabilities for security, audit & compliance requirements
- g) Details of ITSM and COBIT capabilities considered and proposed for implementation
- h) Resource deployment strategy including resource continuity, key roles, governance and service management structure, third party outsource approach and any nature of similar work performed in past engagements
- i) Detail steps on how to measure, track, monitor and proposed plan to achieve service level KPIs and SLA parameters
- j) Technical requirements.
- k) Any other point which bidder feels important/relevant to evaluate the technical proposal and capabilities.

Technical Proposal Attention Items

- a) This RFP is not a contract offer. Receipt of a proposal neither commits Bank to award a contract to any vendor, nor limits Bank's rights to negotiate with any vendors, suppliers or contractors in Bank's best interest. Bank reserves the right to contract with any vendor, supplier or contractor at its own discretion.

- b) Bank reserves the right to request additional information necessary and pertinent to the project so as to assure the vendor's ability and qualification to perform the contract.
- c) Failure to answer any questions within stipulated timeline at any stage of this RFP may be considered non-responsive and the proposal may be disqualified.
- d) For any ambiguity, omissions or unclear content in the RFP the vendors should request Bank to clarify along with pre-bid queries within the time line mentioned in the "[A] Important Dates.
- e) For all technical details and relevant standards and specifications of this RFP that may not be stated in detail; vendors should ensure and provide quality and industrial standard products to Bank.
- f) In case of any difference in the standards between this RFP and the vendors' proposal, the higher standards shall prevail and be applicable.
- g) Expenses incurred in the preparation of proposals in response to this RFP are the sole responsibility of the vendors.
- h) Bank reserves the right to accept or reject any and all proposals, or any part of any proposal, without penalty. Any allowance for oversight, omission, error, or mistake by the vendor made after receipt of the proposal will be at the sole discretion of Bank.

1.8 Right to Alter Quantities

The Bank reserves the right to alter the requirements specified in the Tender. The Bank also reserves the right to delete one or more items from the list of items specified in the Tender. The Bank will inform all Bidders about changes, if any. The Bidder agrees that the Bank has no limit on the additions or deletions on the items for the period of the contract. Further the Bidder agrees that the prices quoted by the Bidder would be proportionately adjusted with such additions or deletions in quantities.

1.9 Payment Terms

The payment will be released as follows:

A. Enterprise License Cost

- 50% of the license cost on delivery of Software Licenses plus applicable tax (wherever applicable) at actuals after submission of original delivery Challans duly stamped and signed by the Bank Official along with original invoice:
- 30% of the license cost after Go-Live signoff from Bank. Go Live Sign Off in the form of Acceptance Test should be signed by both Bank's identified Project Manager & vendor representative
- 20% of the license cost after Go-Live closure signoff from Bank. Go-Live Closure Signoff in the form of Final Acceptance Test should be signed by both Bank's identified Project Manager & vendor representative. Operational Issues will be part of Managed Services and not part of Go-Live Sign Off.

B. Implementation and Integration Cost (OTC)

- 50% of Implementation & Integration Cost plus applicable taxes will be paid after submission of UAT Sign-off in the form of Acceptance Test signed by both Bank's identified Project Manager & bidder's representative.
- 30% of Implementation & Integration Cost plus applicable taxes will be paid after submission Go-live sign-off. Go-Live Sign-off in the form of Acceptance Test should be signed by both Bank's identified Project Manager & bidder's representative
- 20% of Implementation & Integration Cost plus applicable taxes after submission of Go-Live closure sign-off from Bank. Go-Live Closure Sign-off in the form of Final Acceptance Test should be signed by both Bank's identified Project Manager & bidder's representative.

C. Implementation cost for International Territories

100% payment for each territory shall be released post successful implementation of the solution in the respective territory. Go-Live Closure Sign-off in the form of Final Acceptance Test should be signed by both Bank's identified Project Manager & bidder's representative.

D. AMC / ATS - Payable quarterly in advance against receipt of satisfactory service report for the previous quarter signed by both the Bank's Project / Operation Manager and bidder's representative.

E. Onsite Support Charges – Payable quarterly at the end of each quarter against receipt of satisfactory support report including attendance signoff of previous quarter from the Bank's Project / Operation Manager. Payment for onsite support will be proportionate to the attendance.

F. Man-days for additional customization

Changes suggested by Bank after implementation and one time customization of the system, Bank will freeze the manpower effort, after mutual discussion with the successful vendor. Vendor needs to sign scope of work for the required changes in consultation with Bank.

For each customization requirement, Payment will be in terms of man-days effort after successful completion of the requirement. The payment milestone for each customization will be:

- SOW signoff, where man-days requirement clearly mentioned, by bidder's representative and Bank's Project Manager.
- Work completion signoff by bidder's representative and Bank's Project Manager.

All the above documents to be duly signed by the authorized service delivery head of the vendor.

All the above documents to be duly signed by the authorized service delivery head of the vendor.

The Bank will pay invoices within a period of 30 days from the date of receipt of undisputed invoices. Any dispute regarding the invoice will be communicated to the selected vendor within 15 days from the date of receipt of the invoice. After the dispute is resolved, Bank shall make payment within 30 days from the date the dispute stands resolved. There shall be no escalation in the prices once the prices are fixed and agreed to by the Bank and the vendors. But, any benefit arising out of any subsequent reduction in the prices due to reduction in duty & taxes after the prices are fixed and before the delivery should be passed on to the Bank. Further, the above payments will be released only after submission of PBG, signing of SLA (including Do & Don't) and NDA by Successful Bidder.

The Vendor must accept the payment terms proposed by the Bank. The commercial bid submitted by the vendors must be in conformity with the payment terms proposed by the Bank. Any deviation from the proposed payment terms would not be accepted. The Bank shall have the right to withhold any payment due to the vendor, in case of delays or defaults on the part of the vendor. Such withholding of payment shall not amount to a default on the part of the Bank. If any of the items / activities as mentioned in the price bid is not taken up by the bank during the course of the assignment, the bank will not pay the professional fees quoted by the vendor in the price bid against such activity / item.

1.10 Additional Requirement

The price payable to the bidder shall be inclusive of carrying out any modifications changes / upgrades to the application and other software or equipment that is required to be made in order to comply with any statutory or regulatory requirements or any industry-wide changes (including any changes suggested in VAPT observations) arising during the subsistence of the contract / agreement, and the Bank shall not pay any additional cost for the same. Version upgrades that do not necessitate technology refresh or architectural change will come under this scope. Bank will carry out VA/PT Audit and will share the observations/open points with the successful bidder. The bidder has to close the observations if any of all the in-scope applications in co-ordination with respective OEMs/OSDs.

1.11 Audit

All Bidder records with respect to any matters covered in this RFP shall be made available to auditors and or inspecting officials of the Bank and/or Reserve Bank of India and/or any regulatory authority, at any time during normal business hours, as often as the Bank deems necessary, to audit, examine, and make excerpts or transcripts of all relevant data. Said records are subject to examination.

Bank's auditors would execute confidentiality agreement with the Bidder provided that the auditors would be permitted to submit their findings to the Bank, which would be used by the Bank. The cost of the audit will be borne by the Bank. The scope of such audit would be limited to Service Levels being covered under the contract, and financial information would be excluded from such inspection, which will be subject to the requirements of statutory and

regulatory authorities.

The Bank and its authorized representatives, including Reserve Bank of India (RBI) or any other regulator shall have the right to visit any of the Bidder's premises without prior notice to ensure that data provided by the Bank is not misused. The Bidder shall cooperate with the authorized representative/s of the Bank and shall provide all information/ documents required by the Bank.

Compliance with best security practices may be monitored periodically by computer security audits / Information Security Audits performed by or on behalf of the Bank. The periodicity of these audits will be decided at the discretion of the Bank. These audits may include, but are not limited to, a review of access and authorization procedures, backup and recovery procedures, network security controls and program change controls. The Bidder must provide the Bank access to various monitoring and performance measurement systems. The Bidder has to remedy all discrepancies observed by the auditors at no additional cost to the Bank.

1.12 Insurance

The Service Provider may be required to take adequate insurance cover against all kinds of risks including fidelity clause for the loss arising from acts of omission/ commission/ dishonesty of its employees and / or agents and would be required to keep the insurance policy alive at all times during the currency of the agreement. Bidder should have cyber insurance policy to cover first party and third-party liability coverage to organisation when cyber risk materializes and / or cyber security controls at organization fails. The coverages established by the cyber insurance shall cover property, theft and network level security.

1.13 Ownership, Grant and Delivery (Applicable for perpetual licenses)

The bidder shall procure and provide a non-exclusive, non-transferable, perpetual licenses to the Bank for the solution to be provided as a part of this project. The Licenses for the solution should not be restricted to use case. The Bank can use the solution at any of its overseas branches / offices and locations and present & future RRBs without restriction and use of software by service providers on behalf of the Bank would be considered as use thereof by the Bank and the software should be assignable / transferable to any successor entity of the Bank.

The license shall specifically include right:

- A. To Use. (i) to use the executable code version of the Solution and all Enhancements, Updates and New Versions made available from time to time solely for business operations of the Bank; (ii) to use the Program Documentation for purposes of installing or operating the Programs and supporting the use of the Software by the Bank; (iii) to use the technical Training Materials for purposes of supporting Users; (iv) to use the executable code version of the Software and all Enhancements, Updates and New Version made available from time to time for Test and Development, Training, Near DR, Disaster Recovery Site of the Bank.
- B. To Copy. (i) to copy the Software that operates on server systems to support the users of the Bank; (ii) to make additional copies of the Program Material for archival,

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emergency back-up, testing, or disaster recovery purposes; and (iii) to copy the Program Documentation to support its Users.

- C. To work as interface: (i) to work with other Application Software packages at the Bank as interface; (ii) to allow other application software packages at the Bank to work as interfaces to the Software. If such interfacing requires any modification or change to the Platform, such modification or change has to be carried out by the Bidder free of any additional License charge or fees or expenses.
- D. The grant of license by the Bidder herein shall be for processing the internal business of the Bank or its permitted affiliates and does not, without limitation, include the rights to reverse engineer, reverse compile or otherwise arrive at the source code of the Software nor does it include the rights to sell, lease, license, sublicense or otherwise transfer, convey or alienate the software for commercial consideration to any person.

Except as specifically agreed by and between Bidder and Bank, the ownership of all rights, title and interest, including without limitation, all patents, copy right, trade secrets and any other form of intellectual property rights in and to software, any derivative works thereof and enhancements thereto, software and documentation are and shall at all times remain with the Bidder or its Licensors and be the sole and exclusive property of the Bidder or its Licensors. The Bank acknowledges that nothing contained in this Tender and subsequent Agreements shall be construed as conveying by the Bidder or its licensor's title or ownership interest in any licensed software or any derivative works thereof and enhancements thereto. Nothing contained herein shall be construed to preclude Bidder from owing, using, improving, marketing, including without limitation, licensing to other persons any and all licensed software.

- E. Rights: The Bidder shall ensure that the software does not infringe third party intellectual property rights. If a third party's claim endangers or disrupts the Bank's use of the software, the Bidder shall be required to, at no further expense, charge, fees or costs to the Bank, (i) obtain a license so that the Bank may continue use of the software in accordance with the terms of this Tender and subsequent Agreement and the license agreement; or (ii) modify the software without affecting the functionality in any manner so as to avoid the infringement; or (iii) replace the software with a compatible, functionally equivalent and non-infringing product; or (iv) refund to the Bank the amount paid for the infringing software and bear the incremental costs of procuring a functionally equivalent software from a third party, provided the option under the sub clause (iv) shall be exercised by the Bank in the event of the failure of the Bidder to provide effective remedy under options (i) to (iii) within a reasonable period which would not affect the normal functioning of the Bank. The Bidder shall have no liability for any claim of infringement based on (i) a claim which continues because of Bank's failure to use a modified or replaced software that is at least functionally equivalent to the software, or the Bank's failure to use corrections, fixes, or enhancements made available and implemented by the Bidder, despite notice of such failure by the Bidder in writing, (ii) any change, not made by or on behalf of the Bidder, to some or all of the software / deliverables supplied by the Bidder or

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modification thereof, provided the infringement is solely on account of that change ; or (iii) the Bank's continued misuse of some or all of the software / deliverables or any modification thereof despite notice from the Bidder of such misuse in writing.

Bidder is the Prime Vendor for purposes of all deliverables and services, with the single-point responsibility for the same. Should the solution provided by the successful bidder be infringing, it would have a serious business impact on the business of the Bank.

Therefore, the bidder should take responsibility of its actions. Even if Bank would have used the deliverables before the infringement was noticed, legally each such use constituted infringement and therefore the bidder is in breach of the bidder's warranty and obligation.

1.14 Escrow Mechanism (Applicable for perpetual licenses)

The Bank and the successful bidder shall agree to appoint an escrow agent to provide escrow mechanism for the deposit of the source code for the software product supplied / procured by the Bidder to the Bank in order to protect its interests in an eventual situation. In case of a disagreement between the Bank and the Bidder regarding appointment of an escrow agent, the Bank shall appoint an escrow agent in its entire discretion which shall be final and binding on the Bidder. The Bank and the Bidder shall enter into a tripartite escrow agreement with the designated escrow agent, which will set out, inter alia, the events of the release of the source code and the obligations of the escrow agent. Costs for the Escrow will be borne by the Bidder. As a part of the escrow arrangement, the final selected bidder is also expected to provide a detailed code documentation

2. Evaluation process

A two bid, 3-stage process is adopted for selection of the Service Provider:

- ▶ Stage 1 –Eligibility Bid evaluation
- ▶ Stage 2 - Evaluation methodology for eligible bidders
 - Technical Bid Evaluation
 - Commercial Bid Evaluation
 - Weighted evaluation

During evaluation of the Tenders, the Bank, at its discretion, may ask the Bidder for clarification in respect of its tender. The request for clarification and the response shall be in writing, and no change in the substance of the tender shall be sought, offered, or permitted. The Bank reserves the right to accept or reject any bids in whole or in parts without assigning any reason thereof. The decision of the Bank shall be final and binding on all the bidders to this document and bank will not entertain any correspondence in this regard.

A. Eligibility Evaluation (Stage 1)

Eligibility criterion for the Bidder to qualify this stage is clearly mentioned in Annexure 02 – Eligibility Criterion Compliance to this document. The bidder would need to provide supporting documents as part of the eligibility proof.

B. Technical Bid Evaluation (Stage 2)

The Technical Proposal will also be evaluated for technical suitability.

The technical bids of only those bidders who qualify for the above-mentioned eligibility criteria will be evaluated. The Technical Proposal will be evaluated for technical suitability. The technical proposal should be complied with the technical requirements as mentioned under Project Details and Scope of Work Annexure 12 and Functional and Technical Requirement. Demonstration of the proposed solution and the product is mandatory as part of the technical evaluation.

If any of the requirements are found non-complied, the proposal will be disqualified outright

The vendor needs to achieve a cut – off score of 80% in this evaluation stage to be qualified for commercial bid opening. Only those vendors who achieve the specified cut – off scores would be short-listed for Commercial Bid Evaluation.

Technical Proposal will be evaluated for technical suitability and the criteria for evaluation of technical bids are as under:

#	Evaluation Parameters	Max Scores
1	Implementation and Integration Experience	15

a.	The bidder should have implemented the following functionality/modules* in the proposed solution in scheduled commercial bank in India with at least 1500 Branches in last three years (Each implementation is 5 Marks) Additional 5 marks will be provided for successful implementation for international territories (Documentary Proof to be attached along with order / contract copy and confirmatory letter from serving Bank)	
b.	The bidder should have successfully integrate proposed solution - CBS integration capability (Finacle) – 4 Marks - SWIFT integration (MT & ISO 20022 readiness) – 4 Marks - API architecture (open banking readiness) – 3 Marks - DGFT / ICEGATE / GST / RBI reporting – 4 Marks (Documentary Proof to be attached along with order / contract copy and confirmatory letter from serving Bank)	15
2	Technical Presentation and Product Demonstration	70
a.	Technical & Functional Specifications compliance Product Demo shall be carried out to verify the Technical & Functional Specifications compliance provided by the bidders (In case Bank during this demonstration feels that any of the features are not readily available and needs to be customized then accordingly marks will be reduced) along with below mentioned AI/ML capabilities in the Proposed Solution.	10
b.	In-depth understanding of the Bank's Technical and Functional requirements mentioned in the scope of work	5
c.	Digital & Customer Experience Corporate customer portal (end-to-end journey) – 5 Marks Mobile/responsive interface – 2 Marks Maker-checker workflows for corporates – 2 Marks Document upload, tracking, alerts – 3 Marks API-based integration with corporate ERP – 3 Marks	15
d.	Technical Architecture & Scalability Microservices / modular architecture – 3 Marks Cloud readiness (private/public/hybrid) – 2 Marks Scalability (txn volume handling) – 3 Marks Performance benchmarks – 2 Marks	10

e.	Security, Compliance & Regulatory Readiness • Data security (encryption, key management) – 3 Marks • AML / Sanctions screening integration – 2 Marks • Compliance with: • FEMA / RBI guidelines • ICC (UCP 600, URDG, ISP98) – 3 Marks • Audit trails & reporting – 2 Marks	10
f.	AI/ML & Automation Capabilities • OCR & document digitization (LC documents) – 3 Marks • Intelligent discrepancy detection – 2 Marks • Fraud/anomaly detection – 2 Marks • Predictive analytics (trade flows, risk scoring) – 3 Marks	10
g.	Product Roadmap & Innovation • ISO 20022 readiness roadmap • Blockchain / Trade platforms (Contour, Marco Polo etc.) • ESG trade finance readiness	5
h.	Implementation Approach & Governance • Project methodology (Agile/Hybrid) – 2 Marks • Resource & governance model – 2 Marks • Risk & dependency management – 1 Mark	5
	TOTAL MARKS	100

*** functionality/modules**

1.Export Collection (LC/Collection/Direct Dispatch) and Export Finance (Pre/Post Shipment)

2.Import Collection (LC/Collection/Direct Bill) and Import LC/SBLC and Foreign Bank Guarantee.

3.Outward Remittances (including LRS) and Inward Remittance (Including advance against export/STP)

4.Inland bank guarantee and other Trade Products.

5.Customer facing online web portal with all trade functionalities mentioned above. STP of various products through customer online journey must be available in this portal

The vendor should present and demonstrate the proposed solution which will be evaluated on functional and technical requirements given in the RFP. Further the Bank's officials would visit reference sites provided by the Vendor if deemed necessary.

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In case there is only one bidder having technical score of 80% or more, the Bank may, at its sole discretion, also consider the next highest technical score and qualify such bidder. In case, none of the participating bidders qualify on technical criteria and reach or exceed the cut-off score of 80%, then the Bank, at its sole discretion, may qualify two bidders on the basis of the top two scores. However, the Bank at its discretion may reject the proposal of the Bidder or will not consider bidder below cutoff marks by relaxing as mentioned above, if in the Bank's opinion the bidder could not present or demonstrate the proposed services/projects as described in the proposal or in case the responses received from the customer contacts / site visits are negative or the proposed service/projects/solution does not meet the Bank's functional and technical requirement.

C. Commercial Bid (Stage 3)

The commercial bids of only those bidders who qualify in both eligibility and technical evaluation will be opened. The date for opening of the commercial bid would be communicated separately to the technically eligible Bidders. The commercial bid would be evaluated based on a "Total Cost of Ownership" ('TCO') basis. The key considerations of the TCO would be the total payouts for entire project through the contract period of 3 years, discounted at 10% to arrive at the present value of the future cash outflows. The evaluation will be done as follows:

- ▶ The discounted rate will be calculated on yearly basis based on the formula $A/(1+i)^n$ where A= Total Value in each year; i=10% and n=Year.
- ▶ The Present Value will be calculated for all components where the payment is recurring year on year. The Present Value for the component will start from the year of purchase of that component / start of the services (AMC) and shall be calculated till the end year of the contract. Further n - number of period will be '0' in the year of purchase of that component / start of the services and subsequently increased by 1 for subsequent years.

Any component / service for which the payment is a One Time Cost the NPV cost of the equipment / service for that year will be considered and the relevant year's NPV cost will be added as part of the Present Value calculation for that year. Further the payment of the OTC component / service not being recurring in nature hence the present value for that component / service will be considered in the year of purchase only and not in subsequent years.

D. Weighted Evaluation (Stage 3):

On the basis of the combined weighted score for technical and commercial evaluation, the bidders shall be ranked in terms of the total score obtained. The proposal obtaining the highest total combined score in evaluation of quality and cost will be ranked as H-1 followed by the proposals securing lesser marks as H-2, H-3 etc. The proposal securing the highest combined marks and ranked H-1 shall be recommended for award of contract.

As an example, the following procedure can be followed:

A score (S) will be calculated for all qualified bidders using the following formula:

$$\frac{C_{low}}{C} (X) 100 + \frac{T}{T_{high}} (1 - X) 100$$

C stands for discounted rate arrived basis of commercial evaluation;

C_{low} stands for the lowest discounted rate arrived basis of commercial evaluation.

T stands for technical evaluation score

T_{high} stands for the highest technical score achieved by any eligible bidder and

X is equal to 0.30.

#	Bidder	Technical Evaluation Marks (T)	Discounted Rate (C)	$\left[\frac{(T/T_{high})}{0.70} \times 100\right] \times 0.70$ (A)	$\left[\frac{(C_{low} / C)}{0.30} \times 100\right] \times 0.30$ (B)	Score (S = A + B)
1	AAA	75	120	58.3	25	83.3
2	BBB	80	100	62.2	30	92.2
3	CCC	90	110	70	27.3	97.3

In the above example, **C_{low}** is 100 and **T_{high}** is 90.

In the above example, CCC, with the highest score becomes the successful bidder.

In case of more than one vendor with equal highest score (S) upto three decimal, then number of decimal will be increased.

The decision of the Bank shall be final and binding on all the vendors to this document. The Bank reserves the right to accept or reject an offer without assigning any reason whatsoever.

Commercial Bids Terms

- In the event the bidder has not quoted for any mandatory items as required by the Bank and forming a part of the tender document circulated to the Bidder's and responded to by the bidder, the same will be deemed to be provided by the bidder at no extra cost to the Bank.
- In the event the Bank has not asked for any quotes for alternative prices, and the bidder furnishes the alternative price in the Bidder's financial bid, the higher of the prices will be taken for calculating and arriving at the Total Cost of Ownership. However, payment by the Bank will be made at the lower price. The Bank in this case may also reject the offer outright.
- In the event optional prices are not quoted by the bidder, for items where such prices are a must and required to be quoted for, the highest price quoted by any of the participating Bidder will be taken as the costs, for such alternatives and also for arriving at the Total Cost of Ownership for the purpose of evaluation of the Bidder. The same item has to be supplied by the Bidder free of cost
- The bidder is requested to quote in Indian Rupee (INR). Bids in currencies other than INR would not be considered. Eligible Bidders shall be notified by GeM portal upon opening of Commercial Bids.
- The prices and other terms offered by bidders must be firm for an acceptance period of

180 days from the opening of the commercial bid.

- f. In case of any variation (upward or downward) in Government levies / taxes / cess / duties etc. which has been included as part of the price will be borne by the bidder. Variation would also include the introduction of any new tax / cess/ duty, etc provided that the benefit or burden of other taxes quoted separately as part of the commercial bid like GST and any taxes introduced instead of GST and levies associated to GST or any new taxes introduced after the submission of bidder's proposal shall be passed on or adjusted to the Bank. If the Bidder makes any conditional or vague offers, without conforming to these guidelines, Bank will treat the prices quoted as in conformity with these guidelines and proceed accordingly. Necessary documentary evidence should be produced for having paid any tax/cess/duty, if applicable, and or other applicable levies.
- g. If any Tax authorities of any state, including, Local authorities like Corporation, Municipality etc. or any Government authority or Statutory or autonomous or such other authority imposes any tax, charge or levy or any cess / charge other than GST and if the Bank has to pay the same for any of the items or supplies made here under by the bidder, for any reason including the delay or failure or inability of the bidder to make payment for the same, the Bank has to be reimbursed such amounts paid, on being intimated to the Bidder along with the documentary evidence. If the Bidder does not reimburse the amount within a fortnight, the Bank shall adjust the amount out of the payments due to the Bidder from the Bank along with the interest calculated at commercial rate.
- h. Terms of payment as indicated in the Purchase Contract that will be issued by the Bank on the selected Bidder will be final and binding on the bidder and no interest will be payable by the Bank on outstanding amounts under any circumstances. If there are any clauses in the Invoice contrary to the terms of the Purchase Contract, the bidder should give a declaration on the face of the Invoice or by a separate letter explicitly stating as follows "Clauses, if any contained in the Invoice which are contrary to the terms contained in the Purchase Contract will not hold good against the Bank and that the Invoice would be governed by the terms contained in the Contract concluded between the Bank and the bidder".
- i. The Bank is not responsible for any assumptions or judgments made by the bidder for arriving at any type of costing. The Bank at all times will benchmark the performance of the bidder to the RFP and other documents circulated to the bidder and the expected service levels as mentioned in these documents. In the event of any deviations from the requirements of these documents, the bidder must make good the same at no extra costs to the Bank, in order to achieve the desired service levels as well as meeting the requirements of these documents. The Bank shall not be responsible for any assumptions made by the bidder and the Bank's interpretation will be final.
- j. The Commercial Offer should give all relevant price information and should not contradict the Technical Offer in any manner. There should be no hidden costs for items quoted.
- k. The Bank is not responsible for the arithmetical accuracy of the bid. The bidders will have to ensure all calculations are accurate. The Bank at any point in time for reasons whatsoever is not responsible for any assumptions made by the Bidder. The Bank at a

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later date will not accept any plea of the bidder or changes in the commercial offer for any such assumptions.

- I. Considering the enormity of the assignment, any service which forms a part of the Project Scope that is not explicitly mentioned in scope of work as excluded would form part of this RFP, and the Bidder is expected to provide the same at no additional cost to the Bank. The Bidder needs to consider and envisage all services that would be required in the Scope and ensure the same is delivered to the Bank. The Bank will not accept any plea of the Bidder at a later date for omission of services on the pretext that the same was not explicitly mentioned in the RFP

Price Comparisons

- a. The successful bidder will be determined on the basis evaluation mentioned in Evaluation Criteria in this RFP document.
- b. Normalization of bids: The Bank will go through a process of evaluation and normalization of the bids to the extent possible and feasible to ensure that bidders are more or less on the same ground of evaluation. After the normalization process, if the Bank feels that any of the bids needs to be normalized and that such normalization has a bearing on the price bids; the Bank may at its discretion ask all the shortlisted bidders to resubmit the commercial bids once again for scrutiny. The Bank can repeat this normalization process at every stage of bid submission or till the Bank is satisfied. The bidders agree that they have no reservation or objection to the normalization process and all the bidders will, by responding to this RFP, agree to participate in the normalization process and extend their co-operation to the Bank during this process. The bidders, by submitting the response to this RFP, agree to the process and conditions of the normalization process.
- c. The Price offer shall be on a fixed price basis. Bid submitted with an adjustable price quotation will be treated as non-responsive and will be liable to be rejected. The rate quoted by the bidder should necessarily include the following:
 - ▶ Prices quoted by the Bidder should be inclusive of all taxes, duties, levies, GST etc. GST will be paid at actuals. There will be no price escalation for during the contract period and any extension thereof.
 - ▶ The Bidders expected to provide details of services which are required to be extended by the Bidder in accordance with the terms and conditions of the contract.

The Bidder must provide and quote for the required product and services as desired by the Bank as mentioned in this RFP. Any product or services not proposed to be provided by the Bidder will result in the proposal being incomplete, which may lead to disqualification of the Bidder.

3. Terms and conditions

3.1 General Terms and conditions

- a) The RFP document is not a recommendation; offer to enter into a contract, agreement or any other arrangement, in respect of the services. The provision of the services is subject to observance of selection process and appropriate documentation being agreed between the Bank and any successful Bidder as identified by the Bank, after completion of the selection process as detailed in this document.
- b) Information Provided: The RFP document contains statements derived from information that is believed to be true and reliable at the date obtained but does not purport to provide all of the information that may be necessary or desirable to enable an intending contracting party to determine whether or not to enter into a contract or arrangement with the Bank in relation to the provision of services. Neither the Bank nor any of its directors, officers, employees, agents, representative, contractors, or advisers gives any representation or warranty (whether oral or written), express or implied as to the accuracy, updating or completeness of any writings, information or statement given or made in this RFP document.
- c) For Respondent Only: The RFP document is intended solely for the information of the party to whom it is issued ("the Recipient" or "the Respondent") and no other person or organization.
- d) Costs Borne by Respondents: All costs and expenses (whether in terms of time or money) incurred by the Recipient / Respondent in any way associated with the development, preparation and submission of responses, including but not limited to attendance at meetings, discussions, demonstrations, etc. and providing any additional information required by the Bank, will be borne entirely and exclusively by the Recipient / Respondent.
- e) No Legal Relationship: No binding legal relationship will exist between any of the Recipients / Respondents and the Bank until execution of a contractual agreement to the full satisfaction of the Bank.
- f) Recipient Obligation to Inform Itself: The Recipient must apply its own care and conduct its own investigation and analysis regarding any information contained in the RFP document and the meaning and impact of that information.
- g) Evaluation of Offers: Each Recipient acknowledges and accepts that the Bank may, in its sole and absolute discretion, apply whatever criteria it deems appropriate in the selection of Bidder, not limited to those selection criteria set out in this RFP document.
- h) The issuance of RFP document is merely an invitation to offer and must not be construed as any agreement or contract or arrangement. The bidders unconditionally acknowledge by submitting its response to this RFP document that it has not relied on any idea, information, statement, representation, or warranty given in this RFP document.
- i) Standards: All standards to be followed will adhere to Bureau of Indian Standards (BIS)

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specifications or other acceptable standards (IS 17802:2021).

- j) Acceptance of Terms: the bidders will, by responding to the Bank's RFP document, be deemed to have accepted the terms as stated in this RFP document
- k) Only one submission of response to RFP by each Respondent will be permitted.
- l) The Bank expects the Bidder to adhere to the terms of this tender document and would not accept any deviations to the same.
- m) The Bank expects that the Bidder appointed under the tender document shall have the single point responsibility for fulfilling all obligations and providing all deliverables and services required by Bank.
- n) Unless agreed to specifically by the Bank in writing for any changes to the issued tender document, the Bidder responses would not be incorporated automatically in the tender document.
- o) The Bank will notify the Respondents in writing as soon as practicable after the RFP Evaluation Complete date, about the outcome of the RFP evaluation process, including whether the Respondent's RFP response has been accepted or rejected. The Bank is not obliged to provide any reasons for any such acceptance or rejection.
- p) Bank under the existing RFP will have the right to order services for its sponsored Regional Rural Banks (RRBs) & Bank's Subsidiaries and the vendor should be in a position to deliver the same as per the requirement of Bank RRBs & Bank's Subsidiaries. The Purchase Order & Payment will be released by respective Regional Rural Banks (RRBs) & Bank's Subsidiaries.
- q) Unless expressly overridden by the specific agreement to be entered into between the Bank and the bidder, the tender document shall be the governing document for arrangement between the Bank and the bidder.
- r) The bidder shall ensure that no other equipment / structure / setup of Bank get damaged due to their activities. Any damages caused to Bank property due to bidder's negligence shall be passed on the Bidder's account

3.2 Rules for Responding to this RFP

- a) The product / solution will be deemed accepted only after successful ATP and sign off from Bank's identified Project Manager
- b) The Bidder shall represent that the services provided and/or use of the same by the Bank shall not violate or infringe the rights of any third party or the laws or regulations under any governmental or judicial authority. The Bidder further represents that the documentation to be provided to the Bank shall contain a complete and accurate description of the deliverables and services (as applicable), and shall be prepared and maintained in accordance with the highest industry standards. The Bidder represents and agrees to obtain and maintain validity throughout the specified term, of all appropriate registrations, permissions and approvals, which are statutorily required to be obtained by the bidder for performance of the obligations of the bidder. The bidder

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further agrees to inform and assist the Bank for procuring any registrations, permissions or approvals, which may at any time during the Contract Period be statutorily required to be obtained by the Bank for availing services from the bidder

- c) The Bank and the bidder covenants and represents to the other Party the following:
- It is duly incorporated, validly existing and in good standing under as per the laws of the state in which such Party is incorporated.
 - It has the corporate power and authority to enter into Agreements and perform its obligations there under. The execution, delivery and performance of terms and conditions under Agreements by such Party and the performance of its obligations there under are duly authorized and approved by all necessary action and no other action on the part of such Party is necessary to authorize the execution, delivery and performance under an Agreement.
- d) It would be the responsibility of the vendor to arrange / obtain necessary road permits or any other document for delivery of the material till Bank's premises. The vendor shall arrange road permit for locations applicable at no extra cost to the Bank
- e) The timeframe provided in point "[A] Important Dates" above is for the overall selection process. The Bank reserves the right to vary this timeframe at its absolute and sole discretion and without providing any notice / intimation or reasons thereof. Changes to the timeframe will be relayed to the affected Respondents during the process. The time schedule will be strictly followed. Interested parties are expected to adhere to these timelines. However, the Bank reserves the right to change the aforementioned timelines
- f) All responses received after the due date/time would be considered late and would be liable to be rejected. Online Govt. GEM portal will not allow to lodgment of RFP response after the deadline. It should be clearly noted that the Bank has no obligation to accept or act on any reason for a late submitted response to RFP. The Bank has no liability to any Respondent who lodges a late RFP response for any reason whatsoever, including RFP responses taken to be late only because of another condition of responding.
- g) The Bank has established RFP coordinators to provide a venue for managing bidder relationship and other requirements through the Bank's decision-making body for contract clarification. All the queries and communication must be addressed to the RFP coordinators / contact persons from the Bank.
- h) Recipients are required to direct all communications for any clarification related to this RFP to RFP Coordinator.
- i) All questions relating to the RFP, technical or otherwise, must be in writing and addressed to the RFP Coordinator. Interpersonal communications will not be entered into and a Respondent will be disqualified if attempting to enter into such communications. The Bank will try to reply, without any obligation in respect thereof,

every reasonable question raised by the Respondents in the manner specified.

- j) However, the Bank may in its absolute discretion seek, but under no obligation to seek, additional information or material from any Respondents after the RFP closes and all such information and material provided must be taken to form part of that Respondent's response.
- k) Respondents should invariably provide details of their email address (as) as responses to queries will only be provided to the Respondent via email. If Bank in its sole and absolute discretion deems that the originator of the query will gain an advantage by a response to a question, then Bank reserves the right to communicate such response to all Respondents.
- l) The Bank may in its absolute discretion engage in discussion or negotiation with any Respondent (or simultaneously with more than one Respondent) after the RFP closes to improve or clarify any response.
- m) Bidder should submit their Eligibility Cum Technical and Commercial bids through online Gem portal.
- n) If the submission to this RFP does not include all the documents and information required or is incomplete or submission is through any mode other than the Online Govt. GEM portal, the RFP is liable to be summarily rejected.
- o) All submissions, including any accompanying documents, will become the property of the Bank. The bidder shall be deemed to have licensed, and granted all rights to, the Bank to reproduce the whole or any portion of their submission for the purpose of evaluation, to disclose the contents of the submission to other bidders who have registered a submission and to disclose and/or use the contents of the submission as the basis for any resulting RFP process, notwithstanding any copyright or other intellectual property right of the Recipient that may subsist in the submission or accompanying documents
- p) All responses should be in English language. All responses by the bidder to this tender document shall be binding on such bidder for a period of 180 days after opening of the bids.
- q) The bids once submitted cannot be withdrawn / modified after the last date for submission of the bids unless specifically permitted by the Bank. In case, due to unavoidable circumstances, the Bank does not award the contract within six months from the last date of the submission of the bids, and there is a possibility to award the same within a short duration, the bidder would have the choice to maintain the EMD or bank guarantee in lieu of EMD with the Bank or to withdraw the bid and obtain the security provided
- r) The bidder may modify or withdraw its offer after submission but prior to the closing date and time as prescribed by Bank. No offer can be modified or withdrawn by the bidder subsequent to the closing date and time for submission of the offers.
- s) The bidders required to quote for all the components/services mentioned in the

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“Project scope” and all other requirements of this RFP. In case the bidder does not quote for any of the components/services, the response would be deemed to include the quote for such unquoted components/service. It is mandatory to submit the details in the formats provided along with this document duly filled in, along with the offer. The Bank reserves the right not to allow / permit changes in the technical specifications and not to evaluate the offer in case of non-submission of the technical details in the required format or partial submission of technical details.

- t) Based on the Bank’s requirements as listed in this document, the bidder should identify the best-suited product / solution that would meet the Bank’s requirements and quote for the same. In case the bidder quotes more than one model and they have not specified which particular model quoted by them needs to be considered, then the response would be considered as improper and the whole tender submitted by the Bidder is liable to be rejected. The Bidder is expected to provide the best option and quote for the same.
- u) In the event the bidder has not quoted for any mandatory items as required by the Bank and forming a part of the tender document circulated to the Bidder’s and responded to by the bidder, the same will be deemed to be provided by the bidder at no extra cost to the Bank.
- v) The Bank is not responsible for any assumptions or judgments made by the bidder for proposing the deliverables. The Bank’s interpretation will be final.
- w) The Bank ascertains and concludes that everything as mentioned in the tender documents circulated to the Bidder and responded by the Bidders have been quoted for by the Bidder, and there will be no extra cost associated with the same in case the Bidder has not quoted for the same.
- x) All out of pocket expenses, traveling, boarding and lodging expenses for the entire life of the contract should be a part of the financial bid submitted by the Bidder to the Bank. No extra costs on account of any items or services or by way of any out of pocket expenses, including travel, boarding and lodging etc. will be payable by the Bank. The Bidder cannot take the plea of omitting any charges or costs and later lodge a claim on the Bank for the same.
- y) Responses to this RFP should not be construed as an obligation on the part of the Bank to award a contract / purchase contract for any services or combination of services. Failure of the Bank to select a bidder shall not result in any claim whatsoever against the Bank. The Bank reserves the right to reject any or all bids in part or in full, without assigning any reason whatsoever.
- z) By submitting a proposal, the bidder agrees to contract with the Bank within the time period proscribed by the bank. Failure on the part of the successful bidder to execute an agreement with the Bank will relieve the Bank of any obligation to the bidder, and a different bidder may be selected based on the selection process.
- aa) The terms and conditions as specified in the RFP and addendums (if any) thereafter are final and binding on the bidders. In the event the bidders not willing to accept the

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terms and conditions of the Bank, the bidder may be disqualified. Any additional or different terms and conditions proposed by the bidder would be rejected unless expressly assented to in writing by the Bank and accepted by the Bank in writing.

- bb) The bidder shall represent and acknowledge to the Bank that it possesses necessary experience, expertise and ability to undertake and fulfill its obligations, involved in the performance of the provisions of this RFP. The bidder represents that the proposal to be submitted in response to this RFP shall meet the proposed RFP requirement. If any services, functions or responsibilities not specifically described in this RFP are an inherent, necessary or customary part of the deliverables or services and are required for proper performance or provision of the deliverables or services in accordance with this RFP, they shall be deemed to be included within the scope of the deliverables or services, as if such services, functions or responsibilities were specifically required and described in this RFP and shall be provided by the bidder at no additional cost to the Bank. The bidder also acknowledges that the Bank relies on this statement of fact, therefore neither accepting responsibility for, nor relieving the bidder of responsibility for the performance of all provisions and terms and conditions of this RFP, the Bank expects the bidder to fulfill all the terms and conditions of this RFP.
- cc) the bidder covenants and represents to the Bank the following:
- ✓ It is duly incorporated, validly existing and in good standing under as per the laws of the state in which the entity is incorporated.
 - ✓ It has the corporate power and authority to enter into Agreements and perform its obligations there under. The execution, delivery and performance of terms and conditions under Agreements by such Party and the performance of its obligations there under are duly authorized and approved by all necessary action and no other action on the part of such Party is necessary to authorize the execution, delivery and performance under an Agreement.
- dd) The execution, delivery and performance under an Agreement by bidder:
- ✓ Will not violate or contravene any provision of its documents of incorporation;
 - ✓ Will not violate or contravene any law, statute, rule, regulation, licensing requirement, order, writ, injunction or decree of any court, governmental instrumentality or other regulatory, governmental or public body, agency or authority by which it is bound or by which any of its properties or assets are bound;
 - ✓ Except to the extent that the same have been duly and properly completed or obtained, will not require any filing with, or permit, consent or approval of or license from, or the giving of any notice to, any court, governmental instrumentality or other regulatory, governmental or public body, agency or authority, joint venture party, or any other entity or person whatsoever;
 - ✓ The bidder shall undertake to provide appropriate human as well as other resources required, to execute the various tasks assigned as part of the project, from time to time.
 - ✓ The Bank would not assume any expenses incurred by the bidder in preparation of the response to this RFP and also would not return the bid documents to the Bidders

- ✓ The Bank will not bear any costs incurred by the bidder for any discussion, presentation, demonstrations etc. on proposals or proposed contract or for any work performed in connection therewith.
 - ✓ To the best of its knowledge, after reasonable investigation, no representation or warranty by such Party in this Agreement, and no document furnished or to be furnished to the other Party to this Agreement, or in connection herewith or with the transactions contemplated hereby, contains or will contain any untrue or misleading statement or omits or will omit any fact necessary to make the statements contained herein or therein, in light of the circumstances under which made, not misleading. There have been no events or transactions, or facts or information which has come to, or upon reasonable diligence, should have come to the attention of such Party and which have not been disclosed herein or in a schedule hereto, having a direct impact on the transactions contemplated hereunder.
 - ✓ It would be the responsibility of the bidder to arrange / obtain necessary road permits or any other document for delivery of the material till Bank's premises. The bidder shall arrange road permit for locations applicable at no extra cost to the Bank
- ee) The Bank reserves the right to extend the dates for submission of responses to this document.
- ff) Preliminary Scrutiny – The Bank will scrutinize the offers to determine whether they are complete, whether any errors have been made in the offer, whether required documentation has been furnished, whether the documents have been properly signed, and whether items are quoted as per the schedule. The Bank may, at its discretion, waive any minor non-conformity or any minor deficiency in an offer. This shall be binding on all bidders and the Bank reserves the right for such waivers and the Bank's decision in the matter will be final.
- gg) Clarification of Offers – To assist in the scrutiny, evaluation and comparison of offers, the Bank may, at its discretion, ask some or all bidders for clarification of their offer. The Bank has the right to disqualify the bidder whose clarification is found not suitable to the proposed project.
- hh) No Commitment to Accept Lowest bid or Any Tender – The Bank shall be under no obligation to accept the lowest price bid or any other offer received in response to this Tender notice and shall be entitled to reject any or all offers including those received late or incomplete offers without assigning any reason whatsoever. The Bank reserves the right to make any changes in the terms and conditions of procurements. The Bank will not be obliged to meet and have discussions with any Bidder, and / or to listen to any representations unless there is change in the terms and conditions of purchase
- ii) Erasures or Alterations – The offers containing erasures or alterations will not be considered. There should be no hand-written material, corrections or alterations in the offer. Technical details must be completely filled up. Correct information of the services being offered must be filled in. Filling up of the information using terms such as "OK", "accepted", "noted", "as given in brochure / manual" is not acceptable. The Bank may

treat the offers not adhering to these guidelines as unacceptable.

- jj) Price Discussion – It is absolutely essential for the Bidders to quote the lowest price at the time of making the offer in their own interest. The Bank reserves the right to do price discovery and engage the successful bidder in discussions on the prices quoted.
- kk) If the Bank is not satisfied with the specifications as specified in the tender document and observes major deviations, the bids of such bidders will not be short-listed for further evaluation. No further discussions shall be entertained with such bidders in respect of the subject bid.
- ll) The Bidder shall perform its obligations under this Tender as an independent contractor, and shall not engage subcontractors to perform any of the Deliverables or Services without the prior permission from Bank. Neither this Tender nor the Bidder's performance of obligations under this Tender shall create an association, partnership, joint venture, or relationship of principal and agent, master and servant, or employer and employee, between the Bank and the Bidder or its employees, subcontractor; and neither Party shall have the right, power or authority (whether expressed or implied) to enter into or assume any duty or obligation on behalf of the other Party.
- mm) The Bidder shall solely be responsible for all payments (including any statutory payments) to its employees and / or sub-contractors and shall ensure that at no time shall its employees, personnel or agents hold themselves out as employees or agents of the Bank, nor seek to be treated as employees of the Bank for any purpose, including claims of entitlement to fringe benefits provided by the Bank, or for any kind of income or benefits. The Bidder alone shall file all applicable tax returns for all of its personnel assigned hereunder in a manner consistent with its status as an independent contractor of services; and the Bidder will make all required payments and deposits of taxes in a timely manner.
- nn) Successful Vendor/Service Provider/Supplier/ Consultant/Contractor, who will be selected according to the service/work/project for which the proposal or quotation is invited shall comply with the Bank's Code of Ethics which is available on the Bank's website>Shareholder's Corner> Policies/Codes> Our Code of Ethics and a clause to this effect shall be included in the agreement/contract.
- oo) Service Provider shall provide background verification report of all the resources deployed (if any) on the BOB Sponsored RRBs' project on the Bank's premises within 1 month from the date of on boarding on the project. For subsequent deployment of resources during the contract period, on boarding of the resource to be done preferably after background verification, however not later than 1 month from the date of on boarding.
- pp) The bidder at no point in time can excuse themselves from any claims by the Bank whatsoever for their deviations in confirming to the terms and conditions, payments schedules, time frame for solution etc. as mentioned in the tender document circulated by the Bank. Bidder shall be fully responsible for deviations to the terms & conditioned

as proposed in the tender document.

- qq) This RFP is not a contract offer. Receipt of a proposal neither commits Bank to award a contract to any bidder, nor limits Bank's rights to negotiate with any bidders, suppliers or contractors in Bank's best interest. Bank reserves the right to contract with any bidder, supplier or contractor at its own discretion.
- rr) Bank reserves the right to request additional information necessary and pertinent to the project so as to assure the bidder's ability and qualification to perform the contract.
- ss) Failure to answer any questions within stipulated timeline at any stage of this RFP may be considered non-responsive and the proposal may be disqualified.
- tt) For any ambiguity, omissions or unclear content in the RFP the bidders should request Bank to clarify along with pre-bid queries within the time line mentioned in the "[A] Important Dates"
- uu) For all technical details and relevant standards and specifications of this RFP that may not be stated in detail; bidders should ensure and provide quality and industrial standard products to Bank. In case of any difference in the standards between this RFP and the bidders' proposal, the higher standards shall prevail and be applicable.
- vv) Expenses incurred in the preparation of proposals in response to this RFP are the sole responsibility of the bidders.
- ww) Bank reserves the right to accept or reject any and all proposals, or any part of any proposal, without penalty. Any allowance for oversight, omission, error, or mistake by the bidder made after receipt of the proposal will be at the sole discretion of Bank.
- xx) The bidder must strictly adhere to the delivery dates or lead times identified in their proposal and as agreed by the Bank. Failure to meet these delivery dates, unless it is due to reasons entirely attributable to the Bank, may constitute a material breach of the bidder's performance. In the event that the Bank is forced to cancel an awarded contract (relative to this tender document) due to the bidder's inability to meet the established delivery dates or any other reasons attributing to the bidder then that bidder will be responsible for any re- procurement costs suffered by the Bank. The liability in such an event could be limited to the differential excess amount spent by the Bank for procuring similar deliverables and services
- yy) The bidder shall represent that the hardware / software/ Service provided and / or use of the same by the Bank shall not violate or infringe the rights of any third party or the laws or regulations under any governmental or judicial authority. The bidder further represents that the documentation to be provided to the Bank shall contain a complete and accurate description of the deliverables and services (as applicable), and shall be prepared and maintained in accordance with the highest industry standards. The bidder represents and agrees to obtain and maintain validity throughout the specified term, of all appropriate registrations, permissions and approvals, which are statutorily required to be obtained by the bidder for performance of the obligations of the bidder. The bidder further agrees to inform and assist the Bank for procuring any registrations,

- permissions or approvals, which may at any time during the Contract Period be statutorily required to be obtained by the Bank for availing services from the bidder.
- zz) All terms and conditions, payments schedules, time frame for expected service levels as per this tender will remain unchanged unless explicitly communicated by the Bank in writing to the bidder. The Bank shall not be responsible for any judgments made by the bidder with respect to any aspect of the Service. The bidder shall at no point be entitled to excuse themselves from any claims by the Bank whatsoever for their deviations in confirming to the terms and conditions, payments schedules, expected service levels etc. as mentioned in this tender document
- aaa) Incidental Services - The bidder shall provide all the services as specified in the tender document, particularly the Project Details and Scope of Work including Functional and Technical Requirement. The price for performing the required incidental services shall be deemed to be included in the Contract Price
- bbb) At Bank's discretion, there will be an acceptance test by the Bank after supply of services as mentioned in the RFP. In case of discrepancy in the implementation, the Bank reserves the right to cancel the entire purchase contract.
- ccc) Bidder shall indemnify, protect and save the Bank against all claims, losses, costs, damages, expenses, action, suits and other proceedings, resulting from infringement of any patent, trademarks, copyrights etc or such other statutory infringements under any laws including the Copyright Act, 1987 in respect of services provided by them in the Bank from whatsoever source, provided the Bank notifies the bidder in writing as soon as practicable when the Bank becomes aware of the claim. However, (i) the bidder has sole control of the defense and all related settlement negotiations (ii) the Bank provides the bidder with the assistance, information and authority reasonably necessary to perform the above and (iii) the Bank does not make any statements or comments or representations about the claim without the prior written consent of the bidder, except where the Bank is required by any authority / regulator to make a comment / statement / representation
- ddd) This tender document may undergo change by either additions or deletions or modifications before the actual award of the contract by the Bank. The Bank also reserves the right to change any terms and conditions of the tender document and its subsequent addendums as it deems necessary at its sole discretion. The Bank will inform all bidders about changes, if any.
- eee) The Bank may revise any part of the tender document, by providing a written addendum at stage till the award of the contract. The Bank reserves the right to issue revisions to this tender document at any time before the award date. The addendums, if any, shall be published on Bank's website only.
- fff) The Bank reserves the right to extend the dates for submission of responses to this document

3.3 Bid Security / Earnest Money Deposit

Bidders are required to provide an earnest money deposit (EMD) of an amount as mentioned in "[A] Important Dates" at the time of submission of bid. The proof of the same is to be submitted while opening of eligibility cum technical bid, failing of which the bid of the concerned bidder may be rejected. Bid Security (Earnest Money Deposit)" shall be paid through electronic mode or a Bank Guarantee (Annexure 04) of an equal amount issued by a Schedule Commercial Bank (other than Bank of Baroda) located in India. This Bid-security is valid for 8 months and to be submitted through the electronic mode to the below mention account. The details of the account are as under.

- ✓ **Account Number-29040400000417**
- ✓ **Account Name – Bank of Baroda**
- ✓ **Branch- BKC, Mumbai**
- ✓ **IFSC- BARB0BANEAS.**

Non-submission of Earnest Money Deposit in the format prescribed in RFP will lead to outright rejection of the Offer.

- Unsuccessful Bidders who have not been shortlisted -Earnest money of unsuccessful bidders shall be returned within 15 days after the award of contract or expiry of bid validity, whichever is earlier. However, in case of two packet or two stage bidding, Bid securities of unsuccessful bidders during first stage i.e. technical evaluation should be returned within 15 days of declaration of result of first stage itself i.e. technical evaluation. No interest shall be paid on Bid security money deposit to unsuccessful bidder.
- Successful Bidder – Earnest money of successful bidder shall be returned within 15 days after receipt of Performance Security / e-PBG.

The amount of Earnest money deposit would be forfeited in the following scenarios:

- a. In case the bidder withdraws the bid prior to validity period of the bid for any reason whatsoever.
- b. In case of the successful bidder, if the bidder fails or refuses
 - ▶ To accept and sign the contract as specified in this document within 1 month of issue of contract order/letter of intent for any reason whatsoever; or
 - ▶ Fail To provide the performance guarantee within 30 days from the purchase order date, for any reason whatsoever.
 - ▶ To comply with any other condition precedent to signing the contract specified in the RFP documents.

3.4 Exemption for EMD amount

Exemption from submission of EMD shall be given to bidders, who are Micro and Small Enterprises (MSE) / Startups. The bidders who are MSE have to submit necessary document issued by NSIC / Udyam Registration Certificate and the bidders who are Startups have to be recognized by Department of Industrial Policy & Promotion (DIPP) to avail the exemption. To qualify for EMD, firms should necessarily enclose a valid copy of registration certificate issued by NSIC / Udyam Registration Certificate / DIPP which are valid on last date of submission of the tender documents along with "Bid Security Declaration" accepting

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that if they withdraw or modify their bids during period of validity etc., they will be suspended for the period of 6 months. MSE / Startup firms which are in the process of obtaining NSIC certificate / Udyam Registration Certificate / DIPP will not be considered for EMD exemption.

Since RFP is being floated on GeM Portal, Bid Security related exemptions as specified in clause 4, Section xiii, Sub-section 'm' of GeM GTC are applicable as the case may be.

3.5 Preference to make in India initiative

Government has issued Public Procurement (Preference to Make in India) [PPP-MII] Order 2017 vide the Department for Promotion of Industry and Internal Trade (DPIIT) Order No.P-45021/2/2017-B.E.-II dated 15.06.2017 , revision vide Order No. 45021/2/2017-PP (BE-II) dated 16-9-2020 and subsequent revisions if any, to encourage 'Make in India' and to promote manufacturing and production of goods, services and works in India with a view to enhancing income and employment.

Preference will be given with the criteria laid down by Bank and as per procedures laid down in Public Procurement (Preference to Make In India) order 2017, revision dated 16/09/2020 vide order P-45021/2/2017-PP (BE – II) dated 16-9-2020 and subsequent revisions if any issued by GOI.

The guidelines under PPP-MII order and subsequent revisions as mentioned above shall be applicable subject to bidder submitting Class-I/Class-II local content certificate for the quoted product.

Ministry of Electronics & Information Technology (MEIT) vide their notification no. F.No.W-43/4/2019 -IPHW – MeitY /GOI/MeIT (IPHW Division) dated 7.09.2020 has notified list of products under the public procurement preference (Preference to Make - in- India) order 2017. Bidders are required to comply with these guidelines for preference to MII Products.

Bidders are required to comply with this guideline for Preference to MII Product and need to submit the Self- Declaration as format mentioned under Annexure II under the same notification (File No. 1(10)/2017- CLES dated 6.12.2019) regarding 'local supplier'. The said declaration needs to be submitted as part of eligibility criteria evaluation.

As part of every bidder evaluation requirement Bank will first evaluate the Bidders complying with preference to 'Make in India' initiative of Govt. of India.

In case two or more than two bidders complying with preference to 'Make in India' initiative are found to be eligible then commercial bids of only those bidders will be opened. In case sufficient bidders complying with preference to 'Make in India' initiative are not found to be eligible, then commercial bids of all participating bidders as part of the requirement will be opened.

3.6 Performance Guarantee

The successful Service Provider shall provide a Performance Bank Guarantee (PBG) within 30 days from the date of receipt of the order or signing of the contract whichever is earlier in the format mentioned under Annexure 17 to the extent of 5% of the total order value for the entire period of the contract plus 3 months and such other extended period as the Bank

may decide for due performance of the project obligations. The guarantee should be of that of a schedule commercial Bank in India, other than Bank of Baroda.

In the event of non-performance of obligation or failure to meet terms of this Tender the Bank shall be entitled to invoke the performance guarantee without notice or right of demur to the bidder. Any amount pending for payment due to non-achieving of milestone/s set under the agreement or any other reason solely attributable to the bidder should be included in the remaining amount of the contract value.

The Bank reserves the right to recover any dues payable by the selected bidder from any amount outstanding to the credit of the selected bidder, including the pending bills and/or invoking Performance Guarantee, if any, under this contract.

If the Performance guarantee is not submitted within the stipulated time, the Bank reserves the right to cancel the order / contract and the bid security/ earnest money deposit taken from the bidder, will be forfeited.

3.7 Service Level Agreement and Non-Disclosure Agreement

The successful bidder shall execute a) Service Level Agreement (SLA), which must include all the services and terms and conditions of the services to be extended as detailed herein, and as may be prescribed or recommended by the Bank and b) Non-Disclosure Agreement (NDA).

The successful bidder shall execute the SLA and NDA within 30 days from the date of acceptance of Purchase Order. If the contract is not signed within the given period (30 working days or till such period as extended by the Bank), the EMD will be forfeited after a grace period of 15 working days. The Bank reserves the right to incorporate additional clauses as per legal and regulatory requirements of the Bank.

All the expenses related to execution of the document such as the applicable stamp duty and registration charges if any shall be borne by the vender as per article 63 Works Contract of Maharashtra Stamp Act.

4. General Terms and Conditions

4.1 Compliance with Laws

Compliance in obtaining approvals/permissions/licenses: The Bidder shall promptly and timely obtain all such consents, permissions, approvals, licenses, etc., as may be necessary or required for any of the purposes of this project or for the conduct of their own business under any applicable Law, Government Regulation/Guidelines and shall keep the same valid and in force during the term of the project. Also the bidder shall comply with the provisions of code of wages, and other labour welfare legislations. In the event of any failure or omission to do so, shall indemnify, keep indemnified, hold harmless, defend, protect and fully compensate the Bank and its employees/ officers/ staff/ personnel/ representatives/agents from and against all claims or demands of liability and all consequences that may occur or arise for any default or failure on its part to conform or comply with the above and all other statutory obligations arising there from. The Bank will give notice of any such claim or demand of liability within reasonable time to the Bidder.

The Bidder is not absolved from its responsibility of complying with the statutory obligations as specified above. Indemnity shall exclude indirect, consequential and incidental damages.

4.2 Grievance Redressal

Any bidder who claims to have a grievance against a decision or action with regards to the provisions of this RFP may file a request to the Chief General Manager at cgm.it.bcc@bankofbaroda.com. It may please be noted that the grievance can be filed by only that bidder who has participated in Procurement proceedings in accordance with the provisions of this RFP. All letters must be addressed to the following:

The Chief General Manager (IT)
Bank of Baroda, Baroda Sun Tower,
C-34, G-Block, BKC, Mumbai – 400051

4.3 Dispute Resolution

The Bank and the Bidder shall make every effort to resolve amicably, by direct informal negotiation between the respective project managers/ directors of the Bank and the Bidder, any disagreement or dispute arising between them under or in connection with the contract.

If the Bank project manager/director and Bidder project manager/ director are unable to resolve the dispute after thirty days from the commencement of such informal negotiations, they shall immediately escalate the dispute to the senior authorized personnel designated by the Bidder and Bank respectively.

If after thirty days from the commencement of such negotiations between the senior authorized personnel designated by the Bidder and Bank, the Bank and the Bidder have been unable to resolve contractual dispute amicably, either party may require that the dispute be referred for resolution through formal arbitration.

All questions, disputes or differences arising under and out of, or in connection with the contract or carrying out of the work whether during the progress of the work or after the

completion and whether before or after the determination, abandonment or breach of the contract shall be referred to arbitration by a sole Arbitrator acceptable to both parties OR the number of arbitrators shall be three, with each side to the dispute being entitled to appoint one arbitrator. The two arbitrators appointed by the parties shall appoint a third arbitrator shall act as the chairman of the proceedings. Arbitration will be carried out at Bank's office that placed the order. The Arbitration and Conciliation Act 1996 or any statutory modification thereof shall apply to the arbitration proceedings

The arbitral award shall be in writing, state the reasons for the award, and be final and binding on the parties. The award may include an award of costs, including reasonable attorneys' fees and disbursements. Judgment upon the award may be entered by any court having jurisdiction thereof or having jurisdiction over the relevant Party or its assets.

4.4 Governing Laws

This RFP and the subsequent contract shall be governed and construed and enforced in accordance with the laws of India both Parties shall agree that in respect of any dispute arising upon, over or in respect of any of the terms of this Agreement, only the courts in Mumbai shall have exclusive jurisdiction to try and adjudicate such disputes to the exclusion of all other courts.

4.5 Prevention of Corrupt and Fraudulent Practices

As per Central Vigilance Commission (CVC) directives, it is required that Bidders / Suppliers / Contractors observe the highest standard of ethics during the procurement and execution of such contracts in pursuance of this policy:

- ▶ "Corrupt Practice" means the offering, giving, receiving or soliciting of anything of value to influence the action of an official in the procurement process or in contract execution AND
- ▶ "Fraudulent Practice" means a misrepresentation of facts in order to influence a procurement process or the execution of contract to the detriment of the Bank and includes collusive practice among Bidders (prior to or after bid submission) designed to establish bid prices at artificial non-competitive levels and to deprive the Bank of the benefits of free and open competition.

The Bank reserves the right to reject a proposal for award if it determines that the Bidder recommended for award has engaged in corrupt or fraudulent practices in competing for the contract in question.

The Bank reserves the right to declare a firm ineligible, either indefinitely or for a stated period of time, to be awarded a contract if at any time it determines that the firm has engaged in corrupt or fraudulent practices in competing for or in executing the contract.

Bidders responding to this RFP need to sign the Integrity Pact (IP) as detailed in Annexure 20 which will be also signed by Bank's representative.

Successful bidder, who will be selected according to the service / work / project for which this Request for Proposal is invited shall comply with the Bank's Code of Ethics which is available on the Bank's website > Shareholder's Corner > Policies / Codes > Our Code of Ethics.

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4.6 Notices and other Communication

If a notice has to be sent to either of the parties following the signing of the contract, it has to be in writing and shall be sent personally or by certified or registered post with acknowledgement due or overnight courier or email duly transmitted, facsimile/fax transmission (with hard copy to follow for email/fax), addressed to the other party at the addresses, email and fax number given in the contract.

Notices shall be deemed given upon receipt, except that notices sent by registered post in a correctly addressed envelope shall be deemed to be delivered within 5 working days (excluding Sundays and public holidays) after the date of mailing dispatch and in case the communication is made by facsimile transmission or email, on business date immediately after the date of successful facsimile/email transmission (that is, the sender has a hard copy of a confirmation page evidencing that the facsimile was completed in full to the correct fax number or email sent to correct email address).

Any Party may change the address, email address and fax number to which notices are to be sent to it, by providing written notice to the other Party in one of the manners provided in this section.

4.7 Force Majeure

The Service Provider shall not be liable for forfeiture of its performance security, liquidated damages, penalties or termination for default, if any to the extent that its delay in performance or other failure to perform its obligations under the contract is the result of an event of Force Majeure.

For purposes of this Clause, "Force Majeure" means an event explicitly beyond the reasonable control of the Service Provider and not involving the Service Provider's fault or negligence and not foreseeable. Such events are Acts of God or of public enemy, acts of Government of India in their sovereign capacity, strikes, political disruptions, bandhs, riots, civil commotions and acts of war.

If a Force Majeure situation arises, the Service Provider shall promptly notify the Bank in writing of such conditions and the cause thereof within fifteen calendar days. Unless otherwise directed by the Bank in writing, the Service Provider shall continue to perform Service Provider's obligations under this Agreement as far as is reasonably practical and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event.

In such a case the time for performance shall be extended by a period(s) not less than duration of such delay. If the duration of delay continues beyond a period of three months, the Bank and Service Provider shall hold consultations in an endeavor to find a solution to the problem.

4.8 Assignment

The Bidder agrees that the Bidder shall not be entitled to assign any or all of its rights and or obligations under this Tender and subsequent Agreement to any entity including Bidder's affiliate without the prior written consent of the Bank.

If the Bank undergoes a merger, amalgamation, takeover, consolidation, reconstruction, change of ownership, etc., this RFP along with the subsequent Addendums published shall be considered to be assigned to the new entity and such an act shall not affect the rights of the Bidder under this RFP.

4.9 Sub-Contracting

The selected vender shall not subcontract or permit anyone other than its personnel to perform any of the work, service or other performance required under this project. In case any particular specialized service in the prescribed in the scope of work requires subcontracting, it needs to be specified in the proposal/ response document with all the details of the work/ services. Please note that no work/services shall be subcontracted without prior permission from the Bank in writing.

4.10 Waiver

No failure or delay on the part of either party relating to the exercise of any right power privilege or remedy provided under this tender document or subsequent agreement with the other party shall operate as a waiver of such right power privilege or remedy or as a waiver of any preceding or succeeding breach by the other party nor shall any single or partial exercise of any right power privilege or remedy preclude any other or further exercise of such or any other right power privilege or remedy provided in this tender document all of which are several and cumulative and are not exclusive of each other or of any other rights or remedies otherwise available to either party at law or in equity.

4.11 Confidentiality

The Service Provider acknowledges that in the course of performing the obligations under this Agreement, it shall be exposed to or acquire information of the bank, which the Service Provider shall treat as confidential.

a. Bank of Baroda product and process details, documents, data, applications, software, systems, papers, statements and business / customer information which may be communicated to or come to the knowledge of Service Provider or Service Provider's employees during the course of discharging their obligations shall be treated as absolutely confidential and Service Provider irrevocably agrees and undertakes and ensures that Service Provider and its employees shall keep the same secret and confidential and not disclose the same, in whole or in part to any third party without prior written permission of Bank of Baroda. The Service Provider shall not use or allow to be used any information other than as may be necessary for the due performance by Service Provider of its obligations hereunder.

b. The Service provider shall not make or retain any copies or record of any Confidential Information submitted by Bank of Baroda other than as may be required for the performance of Service Provider.

c. The Service provider shall notify Bank of Baroda promptly of any unauthorized or improper use or disclosure of the Confidential Information.

d. The Service provider shall return all the Confidential Information that is in its custody,

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upon termination / expiry of this Agreement. Also, so far as it is practicable Service Provider shall immediately expunge any Confidential Information relating to the projects from any computer, word processor or other device in possession or in the custody and control by Service Provider or its affiliates.

e. The Service provider shall extent practicable, immediately furnish a certificate signed by its director or other responsible representative confirming that to the best of his/her knowledge, information and belief, having made all proper enquiries the requirements of this paragraph have been fully complied with.

f. The service provider hereby unconditionally agrees and undertakes that it and its employees shall not disclose the terms and conditions of the engagement Agreement/ Work Order or any other oral or written information which may contain, hold or bear confidential information or disclose the information submitted by Bank of Baroda under any other Agreement to any third party unless such disclosure is mandatorily required by law or if it is required necessarily to be disclosed to any other agency/subcontractor or the like for the purpose of performing any of its obligations under the agreement.

g. It shall be the incumbent duty of the Service Provider to undertake not to disclose any business related information of Bank to any third person and the Service Provider shall keep all knowledge of the business activities and affairs of Bank strictly confidential and shall ensure that neither the Service Provider nor any of its officers, employees directly or indirectly assist any third person with the promotion of activities which may be prejudicial to the interest or in competition to the activities of Bank. Service provider shall also ensure to keep the Bank's data separate from data of other entities to whom services are being provided.

However, the Confidential Information will not be limited to the information mentioned above but not include the following as Confidential Information:

Without breach of these presents, has already become or becomes and/or hereinafter will become part of the public domain;

Prior to the disclosure by BoB was known to or in the possession of the Service Provider at the time of disclosure;

Was disclosed or parted with the prior consent of BoB;

Was acquired by Service Provider from any third party under the conditions such that it does not know or have reason to know that such third party acquired directly or indirectly from Bank of Baroda.

The Service provider shall take all necessary action to protect Confidential Information against misuse, loss, destruction, deletion and/or alteration. It shall neither misuse or permit misuse directly or indirectly, nor commercially exploit the Confidential Information for economic or other benefit.

In any dispute over whether information or matter is Proprietary Information or not mentioned herein, it shall be the burden of Service Provider to show that such contested information or matter is not Proprietary Information within the meaning of this Agreement,

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and that it does not constitute violation under any laws for the time being enforced in India. The confidentiality obligations shall survive the expiry or termination of this Agreement between the Service Provider and the Bank.

4.12 Termination

In following events Bank shall terminate this assignment or cancel any particular order if service provider:

- a. Breaches any of its obligations set forth in this agreement and such breach is not cured within 15) Working Days after Bank gives written notice; or
- b. Failure by Service Provider to provide Bank, within 15) Working Days, with a reasonable plan to cure such breach, which is acceptable to the Bank. Or
- c. The progress regarding execution of the contract/ services rendered by the Service Provider is not as per the prescribed time line, and found to be unsatisfactory.
- d. Supply of substandard materials/ services
- e. Delay in delivery / installation / commissioning of services.
- f. Discrepancy in the quality of service / security expected during the implementation, rollout and subsequent maintenance process.
- g. If deductions of penalty exceed more than 10% of the total contract price.

Further Bank may terminate this agreement on happening of following events:

- a. A liquidator or a receiver is appointed over all or a substantial part of the undertaking, assets or revenues of the Service Provider and such appointment continues for a period of twenty one (21) days;
- b. The Service Provider is subject of an effective resolution for its winding up other than a voluntary winding up for the purpose of reconstruction or amalgamation.
- c. The Service Provider becomes insolvent or goes into liquidation voluntarily or otherwise
- d. An attachment is levied or continues to be levied for a period of 7 days upon effects of the Agreement.
- e. The Service Provider becomes the subject of a court order for its winding up.
- f. The Service provider is unable to pay its debt as they fall due or otherwise enters into any composition or arrangement with or for the benefit of its creditors or any class thereof;

Notwithstanding above, in case of change of policy or any unavoidable circumstances or without any reason Bank reserve the right to terminate this assignment or any subsequent agreement and / or any particular order, in whole or in part by giving Service Provider at least 30 days prior notice in writing.

Effect of termination

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If bank terminates or cancels the assignment on the default mentioned in the termination clause, in such case Bank of Baroda reserves the right to get the balance contract executed by another party of its choice. In this event, the Service Provider shall be bound to make good the additional expenditure which the Bank may have to incur to carry out bidding process for the selection of a new service provider and for execution of the balance of the contract.

Immediately upon the date of expiration or termination of the Agreement, Bank shall have no further obligation to pay any fees for any periods commencing on or after such date.

Without prejudice to the rights of the Parties, upon termination or expiry of this Agreement, Bank shall pay to Service Provider, within thirty (30) days of such termination or expiry, All the undisputed fees outstanding till the date of termination;

Upon the termination or expiry of this Agreement:

- a) The rights granted to the Service Provider shall immediately terminate.
- b) The Service Provider shall not be relieved of its obligations under the reverse transition mechanism notwithstanding the termination of the agreement.
- c) The Parties therefore agree and undertake that an exit at any point in time resulting due to expiry or termination of this Tender and subsequent Agreement for any reason whatsoever would be a slow process over a period of six (6) months, after the completion of the notice period of three (3) months. During this period, the Vendor shall continue to provide the Deliverables and the Services in accordance with this Tender and subsequent Agreement and shall maintain the agreed Service levels
- d) At the end of contract period and / or as and when desired by the Bank, Vendor must arrange for data as per bank format / process reverse migration to Bank or to new service provider, as & when finalized by the Bank at free of cost.
- e) Upon Bank's request, with respect to (i) any agreements for maintenance, disaster recovery services or other third-party services, and any Deliverables not owned by the Service Provider, being used by Service Provider to provide the Services and (ii) the assignable agreements, Service Provider shall, use its reasonable commercial endeavors to transfer or assign such agreements and Service Provider Equipment to Bank and its designee(s) on commercially reasonable terms mutually acceptable to both Parties.
- f) Upon Bank's decision in writing, Service Provider shall be under an obligation to transfer to Bank or its designee(s) the Deliverables being used by Service Provider to perform the Services free and clear of all liens, security interests, or other encumbrances at a value calculated as stated.

In the event that this Agreement is terminated for any reasons, either Party shall forthwith hand over to the other the possession of all documents, material and any other property

belonging to the other that may be in the possession of the Party or any of its employees, agents or individuals.

In the event the Bank terminates the Contract on the ground of default/ breach in whole or in part, the Bank may, among other applicable remedies, procure Goods, Works or Services similar to those undelivered upon such terms and in such manner as it deems appropriate, and hold the Service Provider liable to the Bank for any excess costs for such similar Goods, Works or Services. However, the Service Provider shall continue performance of the Contract to the extent not terminated.

- g. The rights granted to the Service Provider shall immediately terminate.
- h. Upon Bank's request, with respect to (i) any agreements for maintenance, disaster recovery services or other third-party services, and any Deliverables not owned by the Service Provider, being used by Service Provider to provide the Services and (ii) the assignable agreements, Service Provider shall, use its reasonable commercial endeavors to transfer or assign such agreements and Service Provider Equipment to Bank and its designee(s) on commercially reasonable terms mutually acceptable to both Parties.
- ▶ Upon Bank's request in writing, Service Provider shall be under an obligation to transfer to Bank or its designee(s) the Deliverables being used by Service Provider to perform the Services free and clear of all liens, security interests, or other encumbrances at a value calculated as stated.

4.13 Publicity

Any publicity by the Bidder in which the name of the Bank is to be used should be done only with the explicit written permission of the Bank.

4.14 Solicitation of Employees

The selected Bidder, during the term of the contract shall not without the express written consent of the Bank, directly or indirectly: a) recruit, hire, appoint or engage or attempt to recruit, hire, appoint or engage or discuss employment with or otherwise utilize the services of any person who has been an employee or associate or engaged in any capacity, by the Bank in rendering services in relation to the contract; or b) induce any person who shall have been an employee or associate of the Bank at any time to terminate his/ her relationship with the Bank.

4.15 Inspection of Records

All bidder records with respect to any matters covered by this RFP shall be made available to auditors and or inspecting officials of the Bank and/or Reserve Bank of India and/or any regulatory authority, at any time during normal business hours, as often as the Bank deems necessary, to audit, examine, and make excerpts or transcripts of all relevant data. Said records are subject to examination. Bank's auditors would execute confidentiality agreement with the bidder provided that the auditors would be permitted to submit their findings to the Bank, which would be used by the Bank. The cost of the audit will be borne by the Bank.

The scope of such audit would be limited to Service Levels being covered under the contract, and financial information would be excluded from such inspection, which will be subject to the requirements of statutory and regulatory authorities.

4.16 Visitorial Rights

The Bank and its authorized representatives, including Reserve Bank of India (RBI) or any other regulator shall have the right to visit any of the Bidder's premises without prior notice to ensure that data provided by the Bank is not misused. The Bidder shall cooperate with the authorized representative/s of the Bank and shall provide all information/ documents required by the Bank.

4.17 Compliance with Laws

Compliance in obtaining approvals/permissions/licenses: The Bidder shall promptly and timely obtain all such consents, permissions, approvals, licenses, etc., as may be necessary or required for any of the purposes of this project or for the conduct of their own business under any applicable Law, Government Regulation/Guidelines and shall keep the same valid and in force during the term of the project, and in the event of any failure or omission to do so, shall indemnify, keep indemnified, hold harmless, defend, protect and fully compensate the Bank and its employees/ officers/ staff/ personnel/ representatives/agents from and against all claims or demands of liability and all consequences that may occur or arise for any default or failure on its part to conform or comply with the above and all other statutory obligations arising there from and the Bank will give notice of any such claim or demand of liability within reasonable time to the Bidder.

The Bidder is not absolved from its responsibility of complying with the statutory obligations as specified above. Indemnity shall exclude indirect, consequential and incidental damages.

4.18 Indemnity

The Service Provider shall indemnify the Bank, and shall always keep indemnified and hold the Bank, its employees, personnel, officers, directors, (hereinafter collectively referred to as "Personnel") harmless from and against any and all losses, liabilities, claims, actions, costs and expenses (including attorneys' fees) relating to, resulting directly or indirectly from or in any way arising out of any claim, suit or proceeding brought against the Bank as a result of:

- a. Bank's authorized / bona fide use of the Deliverables and /or the Services provided by Service Provider under this Agreement; and/or
- b. an act or omission of the Service Provider and/or its employees, agents, sub-contractors in performance of the obligations under this Agreement; and/or
- c. claims made by employees or subcontractors or subcontractors' employees, who are deployed by the Service Provider, against the Bank; and/or
- d. claims arising out of employment, non-payment of remuneration and non-provision of statutory benefits by the Service Provider to its employees, its agents, contractors and sub-contractors

- e. breach of any of the term of this Agreement or breach of any representation or false representation or inaccurate statement or assurance or covenant or warranty of the Service Provider under this Agreement; and/or
- f. any or all Deliverables or Services infringing any patent, trademarks, copyrights or such other Intellectual Property Rights; and/or
- g. breach of confidentiality obligations of the Service Provider contained in this Agreement; and/or
- h. Negligence or gross misconduct attributable to the Service Provider or its employees or sub-contractors.

The Service Provider shall be responsible for applicable insurance coverage such as ESI, Workmen compensation and Employer's Liability Insurance, Accident or injury to workmen Transit Insurance Comprehensive General Liability Insurance, any other insurance required under Law of Regulations or by Employer etc. and indemnifies the Bank against all claims under such requirements.

The Service Provider shall at its own cost and expenses defend or settle at all point of time any claim against the Bank that the Deliverables and Services delivered or provided under this Agreement infringe a patent, utility model, industrial design, copyright, trade secret, mask work or trade mark in the country where the Deliverables and Services are used, sold or received, the Bank:

- notifies the Service Provider in writing as soon as practicable when the Bank becomes aware of the claim; and
- Co-operates with the Service Provider in the defense and settlement of the claims.

However, (i) the Service Provider has sole control of the defense and all related settlement negotiations (ii) the Bank provides the Service Provider with the assistance, information and authority reasonably necessary to perform the above and (iii) the Bank does not make any statements or comments or representations about the claim without the prior written consent of the Service Provider, except where the Bank is required by any authority/regulator to make a comment/statement/representation.

If use of deliverables is prevented by injunction or court order because of any such claim or deliverables is likely to become subject of any such claim then the Service Provider, after due inspection and testing and at no additional cost to the Bank, shall forthwith either 1) replace or modify the software / equipment with software / equipment which is functionally equivalent and without affecting the functionality in any manner so as to avoid the infringement; or 2) obtain a license for the Bank to continue the use of the software / equipment, as required by the Bank as per the terms and conditions of this Agreement and to meet the service levels; or 3) refund to the Bank the amount paid for the infringing software / equipment and bear the incremental costs of procuring a functionally equivalent software / equipment from a third party, provided the option under the sub clause (3) shall be exercised by the Bank in the event of the failure of the Service Provider to provide

effective remedy under options (1) to (2) within a reasonable period which would not affect the normal functioning of the Bank.

The Service Provider shall not be liable for defects or non-conformance resulting from:

- a. Software, hardware, interfacing, or supplies for the solution not approved by Service Provider; or
- b. any change, not made by or on behalf of the Service Provider, to some or all of the deliverables supplied by the Service Provider or modification thereof, provided the infringement is solely on account of that change ;

Indemnity shall exclude indirect, consequential and incidental damages. However, indemnity would cover damages, loss or liabilities suffered by the Bank arising out of claims made by customer and / or regulatory authorities for reasons attributable to breach of obligations under this agreement by the Service Provider.

In the event of Service Provider not fulfilling its obligations under this clause within the period specified in the notice issued by the Bank, the Bank has the right to recover the amounts due to it under this provision from any amount payable to the Service Provider under this project.

The indemnities under this clause are in addition to and without prejudice to the indemnities given elsewhere in this Agreement. The provisions of this Clause shall survive the termination of this Agreement.

4.19 Corrupt and Fraudulent Practices

As per Central Vigilance Commission (CVC) directives, it is required that Bidders / Suppliers / Contractors observe the highest standard of ethics during the procurement and execution of such contracts in pursuance of this policy:

- ▶ “Corrupt Practice” means the offering, giving, receiving or soliciting of anything of values to influence the action of an official in the procurement process or in contract execution AND
- ▶ “Fraudulent Practice” means a misrepresentation of facts in order to influence a procurement process or the execution of contract to the detriment of the Bank and includes collusive practice among Bidders (prior to or after bid submission) designed to establish bid prices at artificial non-competitive levels and to deprive the Bank of the benefits of free and open competition.

The Bank reserves the right to reject a proposal for award if it determines that the Bidder recommended for award has engaged in corrupt or fraudulent practices in competing for the contract in question.

The Bank reserves the right to declare a firm ineligible, either indefinitely or for a stated period of time, to be awarded a contract if at any time it determines that the firm has engaged in corrupt or fraudulent practices in competing for or in executing the contract.

4.20 Violation of Terms

The Bank clarifies that the Bank shall be entitled to an injunction, restraining order, right for recovery, suit for specific performance or such other equitable relief as a court of competent jurisdiction may deem necessary or appropriate to restrain the Bidder from committing any violation or enforce the performance of the covenants, obligations and representations contained in this tender document. These injunctive remedies are cumulative and are in addition to any other rights and remedies the Bank may have at law or in equity, including without limitation a right for recovery of any amounts and related costs and a right for damages.

4.21 Information/Cyber-Security Measures/Controls for selected SP:

The Service Provider (SP) shall provide an undertaking on their letter head as per Annexure 19 to comply with the Information and cyber security controls, on an ongoing basis and regulatory / legal guidelines and directives related to SP / outsourcing issued by regulators / legal entities from time to time. The SP shall provide access to the regulators, legal authorities, Bank and Bank appointed auditors for on-site/off-site supervision.

Service providers have to ensure that outsourced critical IT service is subjected to the annual IT audit / Technology risk assessment process by an independent professional agency as approved by the local government or regulator at no extra cost to the Bank.

The selected SP has to abide with all clauses of Bank's Cyber Security Controls which will be part of the NDA/SLA signed with the Bank at the time of award of contract.

4.22 Information Confidentiality

This document is meant for the specific use by the Company / person/s interested to participate in the current tendering process. This document in its entirety is subject to copyright laws. Bank of Baroda expects the bidders or any person acting on behalf of the bidders to strictly adhere to the instructions given in the document and maintain confidentiality of information. The Bidders will be held responsible for any misuse of the information contained in the document and liable to be prosecuted by the Bank, in the event of such circumstances being brought to the notice of the Bank. By downloading the document, the interested party is subject to confidentiality clauses.

4.23 Limitation of Liability

- a) Except the grounds mentioned under the para two of this clause, Service Provider's aggregate liability in connection with obligations undertaken as a part of the Agreement regardless of the form or nature of the action giving rise to such liability (whether in contract, tort or otherwise), shall be at actual and limited to the Total Contract Value.
- b) However, Service Provider's liability in case of claims against the Bank resulting from Willful Misconduct or Gross Negligence of Service Provider, its employees and Subcontractors or from infringement of patents, trademarks, copyrights or such other Intellectual Property Rights or breach of confidentiality obligations shall be unlimited.

- c) Bank shall not be held liable for and is absolved of any responsibility or claim / litigation arising out of the use of any third party software or modules supplied by Service Provider as part of procurement under the Agreement.
- d) Under no circumstances Bank of Baroda shall be liable to the Service Provider for direct, indirect, incidental, consequential, special or exemplary damages arising from termination of this Agreement, even if Bank of Baroda has been advised of the possibility of such damages, such as, but not limited to, loss of revenue or anticipated profits or lost business.
- e) It is expressly agreed between the Parties that for any event giving rise to a claim, Bank shall have the right to make a claim (including claims for indemnification under the procurement in this RFP) against Service Provider.
- f) Subject to any law to the contrary, and to the maximum extent permitted by law neither parties shall be liable to other for any consequential/ incidental, or indirect damages arising out of this agreement.
- g) All employees engaged by the party shall be in sole employment of the party and the respective parties shall be solely responsible for their salaries, wages, statutory payments etc. That under no circumstances shall other party be liable for any payment or claim or compensation (including but not limited to compensation on account of injury/death/termination) of any nature to the employees and personnel of the other party.

4.24 INTELLECTUAL PROPERTY RIGHTS

Each Party owns and retains all rights, title and interests in and to its respective Pre-Existing Intellectual Property and Independent Intellectual Property. Independent Intellectual Property means any Intellectual Property developed by a Party independently of the applicable statement of work. "Pre-Existing Intellectual Property" means any Intellectual Property owned by a Party, or licensed to such Party (other than by the other Party), as at the commencement date of the applicable statement of work.

Whereas title to all inventions and discoveries made jointly by the parties resulting from the Work performed as per this agreement shall reside jointly between the parties. Both the parties shall mutually decide the future course of action to protect/ commercial use of such joint IPR. The Intellectual Property Rights shall be determined in accordance with Indian Laws.

Without prejudice to above paras all the interim/ final deliverables shall be property of bank. Subject to requisite payments the service provider deemed to grand exclusive, perpetual rights to use of the deliverables in favor of bank.

4.25 SET-OFF

Without prejudice to other rights and remedies available to Bank, Bank shall be entitled to set-off or adjust any amounts due to Bank under this clause from the Service Provider against payments due and payable by Bank to the Service Provider for the services rendered.

The provisions of this Clause shall survive the termination of this Agreement.

4.26 COVENANTS OF THE SERVICE PROVIDER

The Service Provider shall deploy and engage suitably experienced and competent personnel as may reasonably be required for the performance of the services. During the currency of this Agreement, the Service Provider shall not substitute the key staff identified for the services mentioned in this Agreement.

The Service Provider shall forthwith withdraw or bar any of its employee/s from the provision of the services if, in the opinion of BANK:

- (i) The quality of services rendered by the said employee is not in accordance with the quality specifications stipulated by BANK; or
- (ii) The engagement or provision of the services by any particular employee is prejudicial to the interests of BANK.

All employees engaged by the Service Provider shall be in sole employment of the Service Provider and the Service Provider shall be solely responsible for their salaries, wages, statutory payments etc. That under no circumstances shall BANK be liable for any payment or claim or compensation (including but not limited to compensation on account of injury/death/termination) of any nature to the employees and personnel of the Service Provider.

The Service provider and sub-contractor, if any, is required to adhere to RBI guidelines for storage of data in India as per regulatory requirements, also to provide complete details of data captured, processed and stored, maintain confidentiality of the Bank's and its customers data and report the same to the Bank. The Service provider will be liable to the Bank for any event of security breach and leakage of data/information. The Service Provider and sub-contractor, if any, should not store or share any data outside the Bank's infrastructure.

The Service Provider:

- i. The Service provider shall be responsible for all negotiations with personnel relating to salaries and benefits and shall be responsible for assessments and monitoring of performance and for all disciplinary matters.
- ii. The Service provider shall not knowingly engage any person with a criminal record/conviction and shall bar any such person from participating directly or indirectly in the provision of services under this Agreement.
- iii. The Service provider shall at all times use all reasonable efforts to maintain discipline and good order amongst its personnel.

- iv. The Service provider shall not exercise any lien on any of the assets, documents, instruments or material belonging to BANK and in the custody of the Service Provider for any amount due or claimed to be due by the Service Provider from BANK.
- v. The Service provider shall regularly provide updates to BANK with respect to the provision of the services and shall meet with the personnel designated by BANK to discuss and review its performance at such intervals as may be agreed between the Parties.
- vi. The Service provider shall be responsible for compliance of all laws, rules, regulations and ordinances applicable in respect of its employees, sub-contractors and agents (including but not limited to code of Wages Act, Provident Fund laws, Workmen's Compensation Act) and shall establish and maintain all proper records including, but not limited to, accounting records required by any law, code, practice or corporate policy applicable to it from time to time, including records and returns as applicable under labor legislations.
- vii. The Service provider shall not violate any proprietary and intellectual property rights of BANK or any third party, including without limitation, confidential relationships, patent, trade secrets, copyright and any other proprietary rights in course of providing services hereunder.
- viii. The Service provider shall ensure that the quality and standards of materials and services to be delivered or rendered hereunder, will be of the kind, quality and timeliness as designated by the BANK and communicated to the Service Provider from time to time.
- ix. The Service provider shall not work in a manner which, in the reasonable opinion of BANK, may be detrimental to the interests of BANK and which may adversely affect the role, duties, functions and obligations of the Service Provider as contemplated by this Agreement.
- x. The Service provider shall be liable to BANK for any and all losses of any nature whatsoever arisen directly or indirectly by negligence, dishonest, criminal or fraudulent act of any of the representatives and employees of the Service Provider while providing the services to the BANK.
- xi. The Service provider shall itself perform the obligations under this Agreement and shall not assign, transfer or sub-contract any of its rights and obligations under this Agreement except with prior written permission of BANK.
- xii. The Service provider shall be responsible for applicable insurance coverage such as ESI, Workmen compensation and Employer's Liability Insurance, Accident or injury to workmen Transit Insurance Comprehensive General Liability Insurance, any other insurance required under Law of Regulations or by Employer etc.
- xiii. The Service provider shall supply a confirmation to the effect that they are not owned or controlled by any director, or key managerial personnel, or approver of the Bank, or their relatives. The terms 'control', 'director', 'key managerial personnel', and 'relative' have the same meaning as assigned under the Companies Act, 2013 and the Rules framed thereunder from time to time. The Service provider shall also

inform the Bank in writing if any such occasion arises in future where such ownership or control is exercised by any director, or key managerial personnel, or approver of the Bank, or their relatives.

- xiv. The Service provider shall provide a confirmation to the effect that their entity is not funded by Bank of Baroda and hence no sacrifice from the Bank's side is involved

OR

Bidder confirms that their entity is funded by Bank of Baroda and there is no sacrifice involved."

OR

Bidder confirms that their entity is funded by Bank of Baroda and amount of sacrifice involved is Rs. _____"

- xv. The Service provider shall ensure that background verification of all the resources to be deployed on the Bank of Baroda project / on the Bank's premises has been / will be carried out. Whenever required, we shall provide such report within 1 month from the date of on boarding the resources on the project. For subsequent deployment of resources during the contract period, on boarding of the resource to be done preferably after background verification, however not later than 1 month from the date of on boarding.
- xvi. The Service provider shall ensure that it is complying with all the directions and clauses as stated in the said circulars:
- a) RBI/2023-24/102 DoS.CO.CSITEG/SEC.1/31.01.015/2023-24 dated 10.04.2023 regarding Master Direction on Outsourcing of Information Technology Services
 - b) RBI/2023-24/107 DoS.CO.CSITEG/SEC.7/31.01.015/2023-24 dated 07.11.2023 regarding Master Direction on Information Technology Governance, Risk, Controls and Assurance Practices
- xvii. The Service provider along with the resources deployed by it and services provided by it, shall ensure compliance of all the clauses and directions of the aforesaid circulars and any subsequent circular/guidelines on the same, throughout the period of the contract.
- xviii. The commercial proposal is inclusive of all costs till acceptance of the application / hardware / deliverables as per scope of work by the Bank. The vendor has the option to use transportation from any eligible source. Insurance cover may be taken by the vendor from any eligible source till the acceptance of the Hardware items by Bank. Hence, insurance shall be at sole responsibility of the vendor. The vendor shall also assure that the product would be replaced with no cost to Bank in case insurance cover is not taken.
- xix. The Service provider shall co-operate with the relevant authorities in case of insolvency/ resolution of the Bank.
- xx. After consulting the bank, the service provider shall identify some of the deployed resources as Essential Personnel under this Agreement. Essential Personnel refers to those who can work on-site during exigencies (including pandemic situations). The roles (Level 1/Level 2/Level 3 and higher) and number of Essential Personnel
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required may change during exigencies, subject to mutual agreement between the parties. (Where onsite resources are part of SoW requirement).

- xxi. The Service provider shall ensure to have provision for the secure removal and/or destruction of data, hardware and all records (both digital and physical), if necessary. To ensure the seamless transition, the vendor should cooperate fully with the Bank / the new service provider and agree not to delete, purge, revoke, alter or update any data during this time unless specifically instructed to do so by the Bank/regulator.
- xxii. The Service provider shall ensure to have effective business continuity and disaster recovery plan and to ensure the agreed upon service levels. The Service provider shall develop and establish a robust framework for documenting, maintaining and periodic testing of business continuity and recovery procedures and shall maintain a record of the same as per applicable law. The Service Provider shall periodically test the Business Continuity and Management of Disaster Recovery Plan. The Bank may consider joint testing and recovery exercise with the Service provider/vendor..

4.27 VICARIOUS LIABILITY

The Service Provider shall be the principal employer of the employees, agents, contractors, subcontractors, etc., if any, engaged by the Service Provider and shall be vicariously liable for all the acts, deeds, matters or things, whether the same is within the scope of power or outside the scope of power, vested under the contract. No right of any employment in the Bank shall accrue or arise, by virtue of engagement of employees, agents, contractors, subcontractors etc., by the Service Provider for any assignment under the contract. All remuneration, claims, wages dues etc., of such employees, agents, contractors, subcontractors etc., of the Service Provider shall be paid by the Service Provider alone and the Bank shall not have any direct or indirect liability or obligation, to pay any charges, claims or wages of any of the Service Provider 's employees, agents, contractors, subcontractors etc. The Service Provider shall agree to hold the Bank, its successors, assigns and administrators fully indemnified, and harmless against loss or liability, claims, actions or proceedings, if any, whatsoever nature that may arise or caused to the Bank through the action of Service Provider 's employees, agents, contractors, subcontractors, etc.

4.28 Order / Contract Cancellation

The Bank reserves its right to cancel the order / contract in the event of one or more of the following situations, that are not occasioned due to reasons solely and directly attributable to the Bank alone and it will be considered as a breach of obligations of vendor:

- Delay in implementation beyond the specified period that is agreed in the contract that will be signed with the successful vendor.
- Delay in site readiness and handing over the site to the Bank.
- Serious discrepancy in the quality of service / facility / security expected during the implementation, rollout and subsequent maintenance process

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- The amount of penalties has exceeded the overall cap of 10% of the yearly contract value in any year during the contract period.
- Failure of the vendor makes good the situation within the remedy period.
- The selected vendor commits a breach of any of the terms and conditions of the RFP / contract.
- The selected vendor becomes insolvent or goes into liquidation voluntarily or otherwise.
- An attachment is levied or continues to be levied for a period of 7 days upon effects of the tender.

In case of order cancellation, any payments made by the Bank to the Service provider would necessarily have to be returned to the Bank with interest @ 15% per annum. Further the Service provider would also be required to compensate the Bank for any direct loss incurred by the Bank due to cancellation of the contract and any additional expenditure to be incurred by the Bank to appoint any other SP. This is after repaying the original amount paid

4.29 Authorized Signatory

The selected Bidder shall indicate the authorized signatories who can discuss and correspond with the Bank, with regard to the obligations under the contract. The selected Bidder shall submit at the time of signing the contract, a certified copy of the resolution of their Board, authenticated by Company Secretary/Director, authorizing an official or officials of the company or a Power of Attorney copy to discuss, sign agreements/contracts with the Bank. The Bidder shall furnish proof of signature identification for above purposes as required by the Bank.

4.30 The bid submission by related parties

If related parties (as defined below) submit more than one bid then both /all bids submitted by related parties are liable to be rejected at any stage at Bank's discretion:

- a) Bids submitted by holding company and its subsidiary company;
- b) Bids submitted by two or more companies having common director/s
- c) Bids submitted by partnership firms / LLPs having common partners
- d) Bids submitted by companies in the same group of promoters/management

4.31 Right to Reject Bids

Bank reserves the absolute and unconditional right to reject the response to this RFP if it is not in accordance with its requirements and no correspondence will be entertained by the Bank in the matter. The bid is liable to be rejected if:

- ▶ It is not in conformity with the instructions mentioned in the RFP document.
- ▶ It is not accompanied by the requisite Earnest Money Deposit (EMD).
- ▶ It is not properly or duly signed.
- ▶ It is received through any mode other than online GeM / Bank's e-Procurement portal as the case may be.
- ▶ It is received after expiry of the due date and time.
- ▶ It is incomplete including non- furnishing the required documents.
- ▶ It is evasive or contains incorrect information.
- ▶ There is canvassing of any kind.
- ▶ Submitted by related parties
- ▶ It is submitted anywhere other than the place mentioned in the RFP. Further Bank reserves the rights to:
 - ▶ Reject any or all responses received in response to the RFP
 - ▶ Extend the time for submission of all proposals
 - ▶ Cancel the RFP at any stage, without assigning any reason whatsoever.
 - ▶ Visit the place of work of the bidder

- ▶ Conduct an audit of the services provided by the bidder.
- ▶ Ascertain information from the Banks and other institutions to which the bidders have rendered their services for execution of similar projects.
- ▶ Revise any part of the tender document, by providing a written addendum at any stage till the award of the contract. The Bank reserves the right to issue revisions to this tender document at any time before the award date. The addendums, if any, shall be published on Bank's website and Gem only.

5. Disclaimer

Subject to any law to the contrary, and to the maximum extent permitted by law, the Bank and its directors, officers, employees, contractors, representatives, agents, and advisers disclaim all liability from any loss, claim, expense (including, without limitation, any legal fees, costs, charges, demands, actions, liabilities, expenses or disbursements incurred therein or incidental thereto) or damage, (whether foreseeable or not) ("Losses") suffered by any person acting on or refraining from acting because of any presumptions or information (whether oral or written and whether express or implied), including forecasts, statements, estimates, or projections contained in this RFP document or conduct ancillary to it whether or not the Losses arises in connection with any ignorance, negligence, inattention, casualness, disregard, omission, default, lack of care, immature information, falsification or misrepresentation on the part of the Bank or any of its directors, officers, employees, contractors, representatives, agents, or advisers.

Annexure 01 – Guidelines for submission details and E-tendering

Eligibility and Technical Bid must contain the following (All the documents should be digitally signed by authorized representative of bidder):

Section#	Section Heading	Performa Given
1.	Covering letter certifying compliance of Eligibility Criteria and Scope of Work compliance	Bidder to provide
2.	Eligibility criteria compliance with bidder comments	Annexure 02
3.	Undertaking from the bidder (regarding applicability of restrictions on procurement from a bidder of a country which shares a land border with India)	Annexure 03
4.	<u>Bid Security (Earnest Money Deposit) from Bidder:</u> • Transaction details in case paid through electronic mode (Annexure 04) OR • Original Bank Guarantee (in the format Annexure 05) OR • Bid Security Declaration in case of exemption (Annexure 06)	Annexure 04 / 05 / 06
5.	Letter of Undertaking from the bidder	Annexure 07
6.	Letter of Undertaking from OSD	Annexure 08
7.	Conformity Letter	Annexure 10
8.	Undertaking of Information Security	Annexure 11
9.	Technical Proposal: The proposal based on Technical Specification compliance should be submitted with pages properly numbered, each page signed and stamped/ digitally signed. (Signed /Digitally signed documents from authorized representative of bidder)	Bidder need to provide the compliance of all technical requirement mentioned in Annexure 12
10.	Copy of the tender document along with annexures and addendum duly sealed and signed on all the	Bidder to provide

Request for Proposal for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution

Section#	Section Heading	Performa Given
	pages of the document / digitally signed tender document from authorized representative of bidder.	
11.	Masked price bid (Please note that the masked price bid should be exact reflection of the commercial bid except that the masked price bid <u>should not contain any financial information</u>)	Annexure 14
12.	Letter of authorization from the company authorizing the person to sign the tender response and related documents.	Bidder to provide
13.	A certified copy of the resolution of Board, authenticated by Company Secretary/Director, authorizing an official/s of the company or a Power of Attorney copy to discuss, sign agreements/contracts with the Bank.	Bidder to provide (To submit Board Resolution copy of authorizing official to submit the Bid)
14.	Declaration/ undertaking from bidder to comply with the Information and cyber security controls	Annexure 18
15.	Information/Cyber-Security Measures/Controls for selected Service Provider	Annexure 19
16.	Integrity pact (Bidder to submit duly Signed and Stamped /digitally signed Integrity Pact with Rs. 600 Non Judicial stamp paper /eSBTR along with Bid)	Annexure 20
17.	Service Level And Non-Disclosure Agreement Format	Annexure 21
18.	Know Your Employee (KYE)	Annexure 22
19.	SLA/BG Execution Conformity Letter	Annexure 23
20.	Software Bill of Material (SBOM)	Annexure 24
21.	Sizing Requirement	Annexure 25
Commercial Bid should be strictly as per Commercial bid format (Annexure 15). Any commercial bid submitted not in conformity with Annexure 15 and provided along with the Eligibility cum Technical bid, then whole bid will be rejected outright.		

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1. Guidelines

1.1. Support Details for GeM Portal:

Support details of Online Portal facilitator	helpdesk-gem@gov.in 1800-419-3436; 1800-102-3436
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1.2. Downloading of Tender Document

The tender document is uploaded / released on GeM Portal. Tender document and supporting documents may be downloaded from same link. Subsequently, bid has to be prepared and submitted ONLINE ONLY as per the schedule given in Notice Details. The Tender document will be available online only. Tender document will not be sold / issued manually.

Only those tenders shall be accepted for evaluation for which Earnest Money Deposit (EMD) is deposited as per the terms mentioned in this RFP.

1.3. Preparation & Submission of Bids

The bids (Pre-Qualification, Eligibility, Technical as well as Commercial) shall have to be prepared and subsequently submitted online only. Bids not submitted "ONLINE" or by any other mean shall be summarily rejected. No other form of submission shall be permitted.

1.4. Do's and Don'ts for Bidder

- ▶ Registration process for new Bidders should be completed within first week of release of tender.
- ▶ The GeM Portal is open for uploading documents from the start of the bid submission date. Hence bidders are advised to start the process of uploading bid documents well in advance.
- ▶ Bidders must prepare for submission of their bid documents online well in advance as
 - The encrypt/upload process of soft copy of the bid documents large in number to the portal may take longer time depending upon bidder's infrastructure and connectivity.
 - To avoid last minute rush & technical difficulties faced by bidders in uploading/submission of bids, bidders are required to start the uploading of all the required documents -01- week in advance for timely online submission of bid.
- ▶ Bidders to initiate uploading of few primary documents during the start of the tender submission and any request for help/support required for uploading the documents / understanding the system should be taken up with GeM authorities well in advance.
- ▶ Bidder should not raise requests for extension of time on the last day of submission due to non-submission of their bids on time as Bank will not be in a position to provide any support at the last minute as the portal is managed by GeM authorities.
- ▶ Bidder should not raise request for offline submission or late submission since ONLINE submission is accepted only.

- Partly or incomplete submission of bids by the bidders will not be processed and will be summarily rejected.

Annexure 02 – Evaluation Terms

A. Eligibility Criteria Compliance

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Required
A	General		
1	Bidder must be a Government Organization / PSU / PSE / partnership firm / LLP or private / public limited company in India at least for the last 3 years.		Documentary Proof to be attached (Certificate of Incorporation)
2	Bidder must not be blacklisted / debarred by any Statutory, Regulatory or Government Authorities or Public Sector Undertakings (PSUs / PSBs) within last 2 years from the RFP date.		Letter of confirmation (self-certified letter signed by authorized official of the bidder)
3	The Bidder to provide information that any of its subsidiary or associate or holding company or companies having common director/s or companies in the same group of promoters/management or partnership firms/LLPs having common partners has not participated in the bid process.		Letter of confirmation (self-certified letter signed by authorized official of the bidder)
4	The Bidder to provide an undertaking on his letter head that all the technical requirements highlighted as part of Technical Scope are covered in totality in the proposal submitted by the bidder.		Letter of confirmation from bidder (self-certified letter)
B	Financial		
1	The Bidder must have registered average annual turnover of Rs. 50 Crore during the last three completed financial years i.e for FY 2022-23, 2023-24 & FY 2024-25 from Indian Operations only (Not inclusive of the turnover of associate companies).		Audited Financial statements for the financial years 2022-23, 2023-24 & FY 2024-25. Certified letter from the Chartered Accountant clearly mentioned Turnover, Net Profit (After Tax) and Net worth. The

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S No	Eligibility Criteria	Complied (Yes/No)	Supporting Required
2	The Bidder must be net profit making entity continuously for the last three years that is financial years 2022-23, 2023-24 & FY 2024-25 OR The net worth of the bidder should be positive as on RFP date and should not have eroded by more than 30% in the last three years.		CA certificate in this regard should be without any riders or qualification.
C	Experience & Support Infrastructure		
1.	The bidder should have implemented the following functionality/modules in the proposed solution. 1.Export Collection (LC/Collection/Direct Dispatch) and Export Finance (Pre/Post Shipment) 2.Import Collection (LC/Collection/Direct Bill) and Import LC/SBLC and Foreign Bank Guarantee. 3.Outward Remittances (including LRS) and Inward Remittance (Including advance against export/STP) 4. Inland bank guarantee and other Trade Products. 5. Customer facing online web portal with all trade functionalities mentioned above. STP of various products through customer online journey must be available in this portal. In at least one scheduled commercial bank in India with at least 1500 Branches in last three years.		Purchase Order / Work Order / Contract Agreement AND Customer Credential clearly indicating the scope, modules and duration.

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Required
2.	Proposed trade finance solution should be SWIFT latest version complied.		Letter of Undertaking by the OSD
3	The Trade Finance solution should comply with data security and privacy standards ISO 27001		Copy of the certificate
4	The bidder should have ISO 9001:2008/2015 certifications and the certificate should be valid as on date of RFP submission		Copy of the certificate
5	The Bidder should be an OSD or authorized partner of OSD for supply of licenses and solution implementation and maintenance support under warranty / AMC / ATS for the solution		Letter of confirmation by the OSD
6	If OSD is bidding directly, they cannot submit another bid with any bidder		Letter of confirmation by the OSD

All dates if not specified to be applicable from the date of the RFP.

In case the bidding company/ firm is hived off from the demerged company, the experience, eligibility etc. as per the requirement of the RFP may be considered as of the demerged company, provided the demerged company doesn't apply in the same RFP process and Novation / Other Relevant Agreement is in place. In that case, Relevant Novation / Other Relevant Agreement need to be submitted.

Annexure 03 – Declaration/ undertaking from bidder regarding applicability of restrictions on procurement from a bidder of a country which shares a land border with India as per the order no. 6/18/2019-PPD dated 23rd July 2020 issued by Ministry of finance department of expenditure

(This letter should be on the letterhead of the bidder duly signed by an authorized signatory)

To
Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Re: RFP for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution.

Sir,

We, M/s ----- are a private/public limited company/LLP/Firm ~~<strike off whichever is not applicable>~~ incorporated under the provisions of the Companies Act, 1956/2013 Limited Liability Partnership Act 2008/ Indian Partnership Act 1932, having our registered office at - ----- (referred to as the “Bidder”) are desirous of participating in the Tender Process in response to your captioned RFP and in this connection we hereby declare, confirm and agree as under:

We, the Bidder have read and understood the contents of the RFP and Office Memorandum & the Order (Public Procurement No.1) both bearing no. F.No.6/18/2019/PPD of 23rd July 2020 and subsequent addendum dated 02nd July 2022 issued by Ministry of Finance, Government of India on insertion of Rule 144 (xi) in the General Financial Rules (GFRs) 2017 and the amendments & clarifications thereto, regarding restrictions on availing/procurement of goods and services, of any Bidder from a country which shares a land border with India and / or sub-contracting to contractors from such countries.

In terms of the above and after having gone through the said amendments including in particular the words defined therein (which shall have the same meaning for the purpose of this Declaration cum Undertaking), we the Bidder hereby declare and confirm that:

(Please strike off whichever is not applicable)

1. “I/ we have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India / ToT arrangement in sensitive technologies with an entity having beneficial ownership from a country which shares a land border with India ; I/ we certify that _____ is not from such a country / not having any related ToT arrangement with entity of such a country.”
2. “I/ we have read the clause regarding restrictions on procurement / ToT arrangement in sensitive technologies with an entity having beneficial ownership from a country which shares a land border with India; I/ we certify that _____ is from such a country /

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having related ToT arrangement with entity of such a country. I hereby certify that _____ fulfills all requirements in this regard and is eligible to be considered. [Valid registration by the Competent Authority is attached.]”

In case the work awarded to us, I/ we undertake that I/ we shall not subcontract any of assigned work under this engagement without the prior permission of bank.

Further we undertake that I/we have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries; I certify that our subcontractor is not from such a country or, if from such a country, has been registered with the Competent Authority and will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority. I hereby certify that our subcontractor fulfills all requirements in this regard and is eligible to be considered. [Valid registration by the Competent Authority is attached herewith.]”

We hereby confirm that we fulfill all the eligibility criteria as per the office memorandum/ order mentioned above and RFP and we are eligible to participate in the Tender process.

We also agree and accept that if our declaration and confirmation is found to be false at any point of time including after awarding the contract, Bank shall be within its right to forthwith terminate the contract/ bid without notice to us and initiate such action including legal action in accordance with law. Bank shall also be within its right to forfeit the Bid Security Money/ earnest money provided by us and also recover from us the loss and damages sustained by the Bank on account of the above.

This declaration cum undertaking is executed by us or through our Authorized person, after having read and understood the terms of RFP and the Office Memorandum and Order.

Dated this.....by20

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

List of documents enclosed:

1. Copy of certificate of valid registration with the Competent Authority (strike off if not applicable)

Please note:

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- I. Any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority.
- II. Bidders having Transfer of Technology (ToT) arrangement in sensitive technologies (as defined in point VIII) with an entity having beneficial ownership from land border sharing countries will also require mandatory approval of Competent Authority for participation in this bid.
- III. "Bidder" (including the term 'tenderer', 'consultant' or 'service provider' in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.
- IV. "Bidder from a country which shares a land border with India" for the purpose of this Order means: -
 - a. An entity incorporated, established or registered in such a country; or
 - b. A subsidiary of an entity incorporated, established or registered in such a country; or
 - c. An entity substantially controlled through entities incorporated, established or registered in such a country; or
 - d. An entity whose *beneficial owner* is situated in such a country; or
 - e. An Indian (or other) agent of such an entity; or
 - f. A natural person who is a citizen of such a country; or
 - g. A consortium or joint venture where any member of the consortium or joint venture falls under any of the above
- V. The *beneficial owner* for the purpose of (iii) above will be as under:
 1. In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has a controlling ownership interest or who exercises control through other means.
Explanation—
 - a. "Controlling ownership interest" means ownership of or entitlement to more than twenty-five per cent, of shares or capital or profits of the company;
 - b. "Control" shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholding or management rights or shareholders agreements or voting agreements;
 2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;
 3. In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;
 4. Where no natural person is identified under (1) or (2) or (3) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;

5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.
- VI. An Agent is a person employed to do any act for another, or to represent another in dealings with third person.
- VII. The successful bidder shall not be allowed to sub-contract works to any contractor from a country which shares a land border with India unless such contractor is registered with the Competent Authority.
- VIII. For Bidders having Transfer of Technology (ToT) arrangement with entities having beneficial ownership in land border sharing countries; following seven technologies are considered as sensitive technologies:
1. Additive Manufacturing (e.g. 3D Printing)
 2. Any equipment having electronic programmable components or autonomous systems (e.g. SCADA systems)
 3. Any technology used for uploading and streaming of data including broadcasting, satellite communication etc.
 4. Chemical Technologies
 5. Biotechnologies including Genetic Engineering and Biological Technologies
 6. Information and Communication Technologies
 7. Software

Annexure 04 – Bid Security (Earnest Money Deposit)

(Bidder need to provide the Transaction Details of Bid Security (EMD) (in case paid through electronic mode)

To,

Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051
Sir,

Sub: RFP for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution.

We having our registered office at (herein after called the 'BIDDER') are offering Earnest Money Deposit as per details below for consideration of the bid of the above mentioned Bidder.

Amount: Rs. _____ /- (Rupees _____ Only)

Mode: Online Transfer/Bank Guarantee

Payment Type: RTGS (Real Time Gross Settlement) / NEFT (National Electronics Fund Transfer) / Bank Guarantee

UTR / Txn ref. No. _____

Txn Date: _____

Remitting Bank: _____

Remitting Bank IFSC Code: _____

Beneficiary Account: Bank of Baroda, Bank Account No. 29040400000417

Beneficiary Bank IFSC Code: BARB0BANEAS

The details of the transaction viz. scanned copy of the receipt of making transaction or Bank Guarantee or Micro and Small Enterprises (MSE) / Startups Certificate (if EMD not applicable) to be enclosed.

The Bank at its discretion, may reject the bid if the EMD money doesn't reflect in beneficiary account or BG not received as per details furnished above.

Account Details for refund of Bid Security (Earnest Money Deposit) as per terms & conditions mentioned in the Tender document

We having our registered office at

Request for Proposal for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution

..... (herein after called the 'BIDDER') are providing our bank account details as per below to be considered as our account for refund of Bid Security (Earnest Money Deposit), wherever applicable as per terms & conditions mentioned in the Tender document.

A/C Name:

A/C No. (Company account details):

IFSC Code:

Bank Name:

Bank Address:

The details mentioned above is treated as final & bank shall not be held responsible for any wrong/failed transaction due to any discrepancy in above details.

Dated this.....by20

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Annexure 05 – Bid Security Form

(Pro forma for Bank Guarantee in lieu of EMD - Bidder need to provide the Bank Guarantee in following format in lieu of Bid Security Transaction)

To,

Date DD-MM-YYYY

Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sub: RFP for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution.

Dear Sir,

WHEREAS.....(Company Name) registered under the Indian Companies Act 1956 and having its Registered Office at India (hereinafter referred to as “the VENDOR”) proposes to offer its response to RFP No.. #: (RFP details) (hereinafter called the “RFP”)

AND WHEREAS, in terms of the conditions as stipulated in the RFP, the VENDOR is required to furnish a Bank Guarantee in lieu of the Earnest Money Deposit (EMD), issued by a Scheduled Commercial Bank in India in your favour to secure the order of the RFP in accordance with the RFP Document (which guarantee is hereinafter called as “BANK GUARANTEE”)

AND WHEREAS the VENDOR has approached us, for providing the BANK GUARANTEE.

AND WHEREAS at the request of the VENDOR and in consideration of the proposed RFP response to you, WE,.....having..... Office at....., India has agreed to issue the BANK GUARANTEE.

THEREFORE, WE,, through our local office at India furnish you the Bank GUARANTEE in manner hereinafter contained and agree with you as follows:

1. We....., undertake to pay the amounts due and payable under this Guarantee without any demur, merely on demand from you and undertake to indemnify you and keep you indemnified from time to time to the extent of Request for Proposal for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution

Rs.....(Rupeesonly) an amount equivalent to the EMD against any loss or damage caused to or suffered by or that may be caused to or suffered by you on account of any breach or breaches on the part of the vender . any of the terms and conditions contained in the RFP and in the event of the VENDOR commits default or defaults in carrying out any of the work or discharging any obligation in relation thereto under the RFP or otherwise in the observance and performance of any of the terms and conditions relating thereto in accordance with the true intent and meaning thereof, we shall forthwith on demand pay to you such sum or sums not exceeding the sum of Rs.....(Rupees..... only) as may be claimed by you on account of breach on the part of the VENDOR of their obligations in terms of the RFP.

2. Notwithstanding anything to the contrary contained herein or elsewhere, we agree that your decision as to whether the VENDOR has committed any such default or defaults and the amount or amounts to which you are entitled by reasons thereof will be binding on us and we shall not be entitled to ask you to establish your claim or claims under Bank Guarantee but will pay the same forthwith on your demand without any protest or demur.
3. This Bank Guarantee shall continue and hold good until it is released by you on the application by the VENDOR after expiry of the relative guarantee period of the RFP and after the VENDOR had discharged all his obligations under the RFP and produced a certificate of due completion of work under the said RFP and submitted a "No Demand Certificate" provided always that the guarantee shall in no event remain in force after the day of without prejudice to your claim or claims arisen and demanded from or otherwise notified to us in writing before the expiry of the said date which will be enforceable against us notwithstanding that the same is or are enforced after the said date.
4. Should it be necessary to extend Bank Guarantee on account of any reason whatsoever, we undertake to extend the period of Bank Guarantee on your request under intimation to the VENDOR till such time as may be required by you. Your decision in this respect shall be final and binding on us.
5. You will have the fullest liberty without affecting Bank Guarantee from time to time to vary any of the terms and conditions of the RFP or extend the time of performance of the RFP or to postpone any time or from time to time any of your rights or powers against the VENDOR and either to enforce or forbear to enforce any of the terms and conditions of the said RFP and we shall not be released from our liability under Bank Guarantee by exercise of your liberty with reference to matters aforesaid or by reason of any time being given to the VENDOR or any other forbearance, act or omission on your part or any indulgence by you to the VENDOR or by any variation or modification of the RFP or any other act, matter or things whatsoever which under law relating to sureties, would but for the provisions hereof have the effect of so releasing us from our liability hereunder provided always that nothing herein contained will enlarge our liability hereunder beyond the limit of Rs.....(Rupees.....only) as aforesaid or extend the period of the guarantee beyond the said day of unless expressly agreed to by us in writing.

6. The Bank Guarantee shall not in any way be affected by your taking or giving up any securities from the VENDOR or any other person, firm or company on its behalf or by the winding up, dissolution, insolvency or death as the case may be of the VENDOR.
7. In order to give full effect to the guarantee herein contained, you shall be entitled to act as if we were your principal debtors in respect of all your claims against the VENDOR hereby guaranteed by us as aforesaid and we hereby expressly waive all our rights of surety ship and other rights, if any, which are in any way inconsistent with any of the provisions of Bank Guarantee.
8. Subject to the maximum limit of our liability as aforesaid, Bank Guarantee will cover all your claim or claims against the VENDOR from time to time arising out of or in relation to the said RFP and in respect of which your claim in writing is lodged on us before expiry of Bank Guarantee.
9. Any notice by way of demand or otherwise hereunder may be sent by courier, e-mail or registered post to our local address as aforesaid and if sent accordingly it shall be deemed to have been given when the same has been posted.
10. The Bank Guarantee and the powers and provisions herein contained are in addition to and not by way of limitation of or substitution for any other guarantee or guarantees here before given to you by us (whether jointly with others or alone) and now existing un-cancelled and that Bank Guarantee is not intended to and shall not revoke or limit such guarantee or guarantees.
11. The Bank Guarantee shall not be affected by any change in the constitution of the VENDOR or us nor shall it be affected by any change in your constitution or by any amalgamation or absorption thereof or therewith but will ensure to the benefit of and be available to and be enforceable by the absorbing or amalgamated company or concern.
12. The Bank Guarantee shall come into force from the date of its execution and shall not be revoked by us any time during its currency without your previous consent in writing.
13. We further agree and undertake to pay you the amount demanded by you in writing irrespective of any dispute or controversy between you and the VENDOR.
14. Notwithstanding anything contained herein above;
 - i) our liability under this Guarantee shall not exceed Rs.....(Rupees.....only) ;
 - ii) this Bank Guarantee shall be valid up to and including the date and
 - iii) we are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before the expiry of this guarantee.
15. We have the power to issue this Bank Guarantee in your favour under the Memorandum and Articles of Association of our Bank and the undersigned has full power to execute this Bank Guarantee under the Power of Attorney issued by the Bank.

For and on behalf of
Branch Manager
Seal & Address

Annexure 06 – Bid security Declaration for MSE/Startup

(For Micro and Small Enterprises (MSE) / Startups)

To,

Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sir,

Sub: RFP for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution.

1. I/We, the undersigned, declare that M/s.....is a Micro and Small Enterprise and the copy of registration certificate issued by NSIC/DIPP for Micro and Small Enterprises (MSE) / Startups which are valid on last date of submission of the tender documents are enclosed.
2. I/We understand that, according to your conditions, bids must be supported by a Bid Securing Declaration as per Rule 170 of General Financial Rules (GFRs) 2017 by Micro and Small Enterprises (MSEs).

OR

2A. as per the tender / RFP no:floated for At para no: a Bid

Declaration Form in lieu of Bid Security is required to be submitted by me/ as per Rule 170 of General Financial Rules (GFRs) 2017 by Micro and Small Enterprises (MSEs).

3. I/We accept that I/We may be disqualified from bidding for any contract with you for a period of 6 months from the date of notification if I am /We are in a breach of any obligation under the bid conditions, because I/We
 - a) have withdrawn/modified/amended, impairs or derogates from the tender, my/our Bid during the period of bid validity specified in the form of Bid; or
 - b) Having been notified of the acceptance of our Bid by the purchaser during the period of bid validity (i) fail or reuse to execute the contract, if required, or (ii) fail or refuse to furnish the Performance Security, in accordance with the Instructions to Bidders.
4. I/We understand this Bid Securing Declaration shall cease to be valid if I am/we are not the successful Bidder, upon the earlier of (i) the receipt of your notification of the name of the successful Bidder; or (ii) thirty days after the expiration of the validity of my/our Bid.

5. I/We declare that I am the authorized person ofto make the declaration for and on behalf of Letter of Authority for executing declaration is enclosed

Signed: (insert signature of person whose name and capacity are shown)

In the capacity of: (insert legal capacity of person signing the Bid Securing Declaration)

Name: (insert complete name of person signing the Bid Securing Declaration)

Duly authorized to sign the bid for an on behalf of (insert complete name of Bidder)

Dated on _____ day of _____ (insert date of signing)

Corporate Seal (where appropriate)

(Note: in case of a Joint Venture, the Bid Securing Declaration must be in the name of all partners to the Joint Venture that submits the Bid)

Annexure 07 – Letter of Undertaking from the bidder

To

Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sir,

Sub: RFP for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution.

1. Having examined the Tender Documents including all Annexures and Appendices, the receipt of which is hereby duly acknowledged, we, the undersigned offer to supply, deliver, implement and commission ALL the items mentioned in the 'Request for Proposal' and the other schedules of requirements and services for your bank in conformity with the said Tender Documents in accordance with the schedule of Prices indicated in the Price Bid and made part of this Tender.
2. If our Bid is accepted, we undertake to comply with the delivery schedule as mentioned in the Tender Document.
3. All 'Bill of Material' line items have been quoted as per requirement in Commercial Bid format without any deviation.
4. Masked Commercial Bid (Annexure 14) and Commercial Bid (Annexure 15) have been submitted without any deviation. Bill of Materials which have been marked in the masked Commercial Bid is as per the submitted Commercial Bid without any deviation.
5. We agree to abide by this Tender Offer for 180 days from date of bid opening and our Offer shall remain binding on us and may be accepted by the Bank any time before expiry of the offer.
6. This Bid, together with your written acceptance thereof and your notification of award, shall constitute a binding Contract between us.
7. a) We undertake that in competing for and if the award is made to us, in executing the subject Contract, we will strictly observe the laws against fraud and corruption in force in India namely "Prevention of Corruption Act 1988".
b) Commission or gratuities, if any paid or to be paid by us to agents relating to this Bid and to Contract execution, if we are awarded the Contract are listed below.
 - i. Name and Address of the Agent -(please specify NA if not applicable)
 - ii. Amount and Currency in which Commission paid / payable -(please specify NA if not applicable)
 - iii. Purpose of payment of Commission (If commission is not paid / not payable indicate the same here) -(please specify NA if not applicable)

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applicable)

8. We agree that the Bank is not bound to accept the lowest or any Bid the Bank may receive.
9. We certify that we have provided all the information requested by the bank in the format requested for. We also understand that the bank has the exclusive right to reject this offer in case the bank is of the opinion that the required information is not provided or is provided in a different format.
10. We confirm that we are not owned or controlled by any director, or key managerial personnel, or approver of the Bank, or their relatives. The terms 'control', 'director', 'key managerial personnel', and 'relative' have the same meaning as assigned under the Companies Act, 2013 and the Rules framed thereunder from time to time. We also undertake to inform the Bank in writing if any such occasion arises in future where such ownership or control is exercised by any director, or key managerial personnel, or approver of the Bank, or their relatives.
11. We confirm that our company is not funded by Bank of Baroda and hence no sacrifice from the Bank's side is involved.
(OR) We confirm that our company is funded by Bank of Baroda and there is no sacrifice involved.
(OR) We confirm that our company is funded by Bank of Baroda and amount of sacrifice involved is Rs. _____.
12. We confirm that background verification of all the resources to be deployed on the Bank of Baroda project / on the Bank's premises has been / will be carried out. Whenever required, we shall provide such report within 1 month from the date of on boarding the resources on the project. For subsequent deployment of resources during the contract period, on boarding of the resource to be done preferably after background verification, however not later than 1 month from the date of on boarding.
13. We undertakes that presently it is not "Debarred from Bidding" on the grounds mentioned in Rule 151 of GFR 2017.

Dated this.....by202

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Annexure 08 - Letter of Undertaking from OSD

(This letter should be on the letterhead of the OEM / Manufacturer duly signed by an authorized signatory)

To

Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sir,

Sub: RFP for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution.

We (Name of the OSD / OEM) who are established and reputable manufacturers / developers of having factories / offices at and do hereby authorize M/s (who is the bidder submitting its bid pursuant to the Request for Proposal issued by the Bank) to submit a Bid and negotiate and conclude a contract with you for providing manufactured / developed by us against the Request for Proposal received from your Bank by the Bidder and we have duly authorized the Bidder for this purpose.

We undertake to perform the obligations as set out in the RFP in respect of such services and hereby extend our support and services through M/s..... during the contract period as per terms and conditions of the RFP.

We assure you that in the event of M/s not being able to fulfill its obligation in respect of the terms defined in the RFP then (OEM / OSD Name) would continue to meet these either directly or through alternate arrangements without any additional cost to the Bank.

Dated this.....by20

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Annexure 09 – Pre-Bid Queries Form

(Please note that all pre-bid queried need to be send by email in excel format only)

[Please provide your comments on the Terms & conditions in this section. You are requested to categorize your comments under appropriate headings such as those pertaining to the Scope of work, Approach, Work plan, Personnel schedule, Curriculum Vitae, Experience in related projects etc. You are also requested to provide a reference of the page number, state the clarification point and the comment/ suggestion/ deviation that you propose as shown below.

Name of the Bidder:

Contact Person Name:

Tel No:

Email-ID:

S No	Page #	Point / Section #	Clarification point as stated in the tender document	Comment/ Suggestion/ Deviation
1				
2				
3				
4				
5				
6				

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Date:

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Annexure 10 – Conformity Letter

(This letter should be on the letterhead of the Bidder duly signed by an authorized signatory)

To

Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sir,

Sub: RFP for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution.

Further to our proposal dated, in response to the Request for Proposal..... (Bank's tender No. hereinafter referred to as "RFP") issued by Bank of Baroda ("Bank") we hereby covenant, warrant and confirm as follows:

We hereby agree to comply with all the terms and conditions / stipulations as contained in the RFP and the related addendums and other documents including the changes made to the original tender documents issued by the Bank shall form a valid and binding part of the aforesaid RFP document. The Bank is not bound by any other extraneous matters or deviations, even if mentioned by us elsewhere either in our proposal or any subsequent deviations sought by us, whether orally or in writing, and the Bank's decision not to accept any such extraneous conditions and deviations will be final and binding on us.

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Annexure 11–Undertaking of Information Security

***(This letter should be on the letterhead of the Bidder as well as the OEM/
Manufacturer duly signed by an authorized signatory on Information security as per
regulatory requirement)***

To
Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sir,

Sub: RFP for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution.

We hereby undertake that the proposed hardware / software/Services to be supplied will be free of malware, free of any obvious bugs and free of any covert channels in the code (of the version of the application being delivered as well as any subsequent versions/modifications done)

Further we undertake that the Software/ hardware and Services which will be delivered or provided under this Agreement are not infringe any IPR such as patent, utility model, industrial design, copyright, trade secret, mask work or trade mark.

Dated this.....by20

Yours faithfully,

Authorized Signatory
Name:
Designation:
Bidder's Corporate Name
Address
Email and Phone #

Annexure 12 – Project Scope

A. Project Scope

Bank intends to procure an Artificial Intelligence (AI) and Machine Learning (ML) enabled Trade Finance and Payments application/solution as per the Bank's requirement with detailed scope of work mentioned below for Domestic (India) and 9 International Centres (IFSCBU, UAE, Mauritius, Singapore, UK, Kenya, Uganda, Tanzania and New Zealand).

The selected bidder will be required to undertake the following services:

- a) Supply, Implementation and Support for a Trade Finance and Payments.
- b) User Acceptance Testing
- c) Training/Handholding of the solution
- d) Handover the fully developed solution, with all functional and technical knowledge transfer to the Bank and/or Bank designated Vendor.

Description of the envisaged scope is enumerated below however the Bank reserves its right to change the scope of work considering the extensive requirements and the changing business environment. The bidder needs to quote as per the Commercial Sheet mentioned in Annexure.

Considering the enormity of the assignment, any service which forms a part of the Project Scope that is not explicitly mentioned in scope of work as excluded, would form part of this RFP, and the Bidder is expected to provide the same at no additional cost to the Bank. The Bidder needs to consider and envisage all services that would be required in the Scope and ensure the same is delivered to the Bank. The Bank will not accept any plea of the Bidder later for omission of services on the pretext that the same was not explicitly mentioned in the RFP.

Bidder should conduct study of existing trade finance (inland as well as cross border), payments and treasury workflows/processes of bank, primarily related to operations at back offices, branches and controlling offices (regions, zones, and central office) and produce the feasible suggestive/recommendation-based approach paper to improvise/design work flows as per Indian market practices.

Bidder should have a comprehensive migration plan for all outstanding legacy transactions from CBS or Existing Trade Solution. The migration should envisage all relevant details available in the current application along with corresponding documents available in DMS.

Bidder should conduct localized training sessions for bank's forex back office, B as well as C category branches, International Centres, treasury, and core team members before UAT and before Go-Live.

Bank is looking for integration and re-designing of workflow with bank's other systems which primarily includes CBS (Finacle – OEM (Infosys)), Treasury Front office system (Kondor+ - OEM (Finastra)), Fx Retail, FX One, Net Banking, Mobile Banking, Information systems, Swift, Data warehouse, API Setu, NeSL, NPCI, IFTAS etc.

The application should be capable of maintaining hierarchy of branches, regions and zones and generating standard as well as customized MIS reports. Bidder should provide a

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dedicated report server to meet MIS requirements of various verticals of the bank.

1. Broad Scope of Work

- 1.1. The license for the solution be perpetual at level for all the modules offered without any constraint on number of branches, customers, or users for the Bank 's operations in India, present & future subsidiaries, and associates, International Centres and present & future RRBs. The Solution Should support be capable to support 3000 concurrent users at a time.
- 1.2. The Bidder is expected to provide the solution including middleware, training and installation, testing, migration, providing requisite interfaces and provide technical support for a period of 5 years. The 5-year contract period consists of AMC/ATS support, from the date of implementation.
- 1.3. Implementation of the proposed solution should be completed within the time mentioned in delivery clause. The implementation of the proposed front-end, back-end, customer facing portal and DMS will be done concurrently.
- 1.4. By means of diagrammatic/ pictorial representations, the Bidder should provide complete details of the hardware (sizing for DC & DR) requirements for deployment of application & architecture of the solution offered, including the project plan for going live. Bidder should also provide security set-up proposed in the solution and various layers of risk identification and mitigation measures.
- 1.5. The Bidder should also support the requisite certifications, integration, and maintenance, compliance, etc. and day to day operations on 24* 7* 365 basis.
- 1.6. The Bidder should host the solution at Bank's premise/advised premises in High Availability mode, along with DR and a minimum uptime of 99.90 %.
- 1.7. The vendor shall do proactive monitoring and capacity planning at regular intervals and advise the Bank on Hardware / Software upgrades. However, there should not be any additional cost to the Bank for any software or hardware upgrade during the contract period as the Bank may use existing IT infrastructure or procure separately the required infrastructure based on the sizing proposed by the vendor. As part of the technical solution, the Vendor must provide the complete IT infrastructure details like Server, GPU, Operating System, Database, Storage Capacity, and other related requirements. In the event the sizing proposed by the Vendor does not meet the performance / service levels of the Bank, the Vendor will at their cost carry out the necessary upgrades / replacements. The Bank has the right to deduct / recover from the Vendor the required additional expenses which the Bank may incur on account of such upgrades/ replacements.
- 1.8. This RFP envisages procurement of a suitable SWIFT Certified Trade Finance/Transaction Processing Solution with Artificial Intelligence (AI) & Machine Learning (ML) capabilities which will take care of Back Office and Branch operations with a full-fledged DMS and Customer Portal of our Trade Operations. The customer portal should offer our corporate as well as retail clients full suite of Trade Finance/Payment Services through an online portal and seamlessly integrate their

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requirement into Trade Back office as well as our existing Core Banking Solution. As the solution would be deployed mostly in India and well-developed overseas markets, the product should be already operational in such comparable locations. Moving forward the solution should be capable of adaptation of Generative AI and deep learning for data analysis, prevention of TBML (Trade based Money Laundering), enhanced and proactive compliance etc.

- 1.9. The solution should have the ability to generate various MIS and audit reports as per the Bank's requirement. The said reports should be modular and configurable based on the ever-changing requirements of the local, regulatory & statutory requirement of the centre, Bank and/or its various verticals. The reports will be, but not limited to the following:
- A. R-Return
 - B. CRMS
 - C. 15-CC
 - D. SMR VI AB
 - E. Turnover (Zone > Region > Branch>Customer)
 - F. TC I and TC II
 - G. Income Reports Interest/Commission/Charges (Zone > Region > Branch> Customer)
 - H. TBML Alerts as per the latest FIU guidelines
 - I. DRI/FIU
 - J. Audit Trail
 - K. QAB Report (Fund as well as Non-Fund Based)
 - L. ECGC Premium
 - M. Cross-border wire transfer report (Regulatory)
 - N. Merchanting Trade Transactions
- 1.10. The Bank already has corporate licenses for SQL and Oracle and the Vendor need not mention the price of SQL / Oracle in the commercials.
- 1.11. The proposed solution should provide a robust MIS support by way of Dashboard with certain in-built reports. These reports would inter alia cover extraction of data for various internal, external MIS and regulatory purposes including Transaction Monitoring activities. The dashboard must be multi-level both at front end and back end viz: (1) Corporate Level/Group level information; and (2) Branch/Country/Region level information for the Bank users/ Administrators. The indicative list of reports which come out of the box should be provided with technical bid. The reports should be generated for different domain like universal, country specific and frequency for

generating these reports should be as per Bank's requirement (monthly, quarterly, annually etc).

- 1.12. The proposed solution should include a dedicated report server for generation of MIS reports.
- 1.13. The Bidder should provide the complete documentation including technical, operations, user manual, etc.
- 1.14. For every software including any third-party software before software/ service becomes operational, the Vendor must deliver to the Bank documents including user manuals, installation manuals, operation manuals, design documents, process documents, technical manuals, functional specification, software requirement specification, system configuration documents, system/database administrative documents, debugging/ diagnostics documents, test procedures etc.
- 1.15. The Bidder should also provide documents related to Review Records/ Test Bug Reports/ Root Cause Analysis Report, list of all product components, list of all dependent/ external modules and list of all documents related to traceability of the product as and when applicable. Audit trail should be maintained for all core functionalities as well as any customizations and shall be reproduceable in the form of reports. The proposed solution should be capable of enriching each document with additional meta-data fields to ensure end-to-end audit trail and tracking.
- 1.16. Any level / version changes and / or clarification or corrections or modifications in the above-mentioned documentation should be supplied by the Bidder to the Bank free of cost and in timely manner.
- 1.17. The proposed solution should be web-based solution and should support majority of browsers. The solution should support, but not limited to, latest versions of standard browser like Internet Explorer, Google Chrome, Mozilla, Opera, Microsoft Edge, Safari etc. The vendor should clearly mention browsers and versions which are not supported by the solution.
- 1.18. The solution must provide the Bank with escrow of the application software.
- 1.19. The solution must benchmark with the market if desired by the Bank.
- 1.20. The Bidder should provide APIs to the Bank that are compatible with bank application. Application must be capable of accepting API provided by any other application of bank or outside bank. APIs should be integrated with bank's API Management (APIM) gateway.
- 1.21. The Bidder should provide product APIs for different trade products so that the same can be integrated with bank's Alternate Delivery Channels (ADCs) like internet banking, mobile banking etc.

- 1.22. Provide open APIs so that the Bank's different applications and third-party applications (API Setu, DGFT, RBI, NeSL, SWIFT, IFTAS, IBDIC etc.) can be integrated with the proposed software.
- 1.23. The proposed solution should support encryption and digital signature features as stated in DPDP act 2023 and notified DPDP Rules 2025 (Modified).
- 1.24. The proposed solution should support access control and maker-checker-authorization matrix at multiple levels for Customer facing, Branch user and Back-office modules. The authorization matrices should be customizable based on the Bank's requirement.
- 1.25. The proposed solution should provide web content management capabilities for providing web-based access to users.
- 1.26. The proposed solution should support virtual keyboard.
- 1.27. The proposed solution should support two factor authorization (2FA), biometric authorization for bank's application and OTP based authorization for customer facing portal.
- 1.28. The Bidder must provide design & sizing of hardware required at DC & DR. The Bidder is supposed to provide the complete details of requirement for the end-to-end functioning of the solution.
- 1.29. The Vendor is also required to quote for supporting software and the same will be considered for commercial evaluation. However, the Bank reserves the right to procure it from their empanelled vendors and not take it from the Vendor.
- 1.30. The solution / software developed or customized should follow a standard development process to ensure that it meets functional, security, performance & regulatory requirements of the Bank.
- 1.31. The solution should have the flexibility to align with any future changes in regulatory / Government guidelines, including compliance with local regulations and data privacy requirements of overseas centre.
- 1.32. The Bidder needs to troubleshoot any problems occurring in the system during contract period. First-point-of-contact for all service issues (Web, Email and Telephone support) should be available for the Bank to contact. If the issue is not resolved in one working day, then on-site support should be provided, and issue should be resolved within two working days. Escalation matrix must be provided for escalation of issues which are not resolved within the stipulated time.
- 1.33. All the patches/fixes, version upgrades of all the software components released by the Principal OEM during the contract period should be provided. The Vendor should ensure implementation of all the patches/ fixes and version upgrades in the production environment to the latest version during the contract period.
- 1.34. The Bidder should provide on-site comprehensive warranty for the software solution & produce documentary evidence from software OEM/ OSD of having agreed to provide back-to-back warranty and technical support for its supplied products and related services on the terms agreed between the parties. The warranty shall start from the Request for Proposal for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution

date of the go-live of the proposed solution. The ATS for the entire contract duration shall start immediately after the warranty period is over. ATS of 4 years will be considered for commercial evaluation.

- 1.35. The solution should be able to provide the FAQs from the database and the ability to accept the suggestions on the FAQs.
- 1.36. The Bidder must ensure seamless migration of the application and solution after expiry of contract period, if Bank selects another vendor after the contract period or during the contract period due to any reason.
- 1.37. If the bank desires to upgrade to higher version of database or hardware, the vendor shall be required to comply with banks requirement. The solution should support the database and hardware version provided by Bank. Bank will take care of hardware and database upgrade activity. The Vendor must ensure that the application should be compatible with hardware and database etc. without any additional cost.
- 1.38. The solution should be capable of maintaining the client limits or should have the capability to dynamically fetch client limit and facilities related information from CBS/ any other system maintaining it, as part of transaction processing and maintain record of these limits facility wise.
- 1.39. The solution should integrate with Customer ERP/SAP and Finacle Core Banking for transaction processing (Adapter based/ API based/ Web Service/ File Based). System should support authentication through Tokens/ Soft Token, OTP, Digital Certificates, IP Address & Mobile Application.
- 1.40. The solution should have the ability to interface with other third-party solutions like AML and sanctions screening software solutions, transaction monitoring solutions, etc. is mandatory. The solution should also have the capability to generate alerts (e-mails/SMS) to applicants/beneficiary. The solution must provide the capability of document upload and transfer both from customer and back end. Vendor should clearly indicate the size /type of document and scanning specifications for this facility, as also the bandwidth needed. It is expected that the bidder clearly specifies the file types supported and the estimated bandwidth requirement for a given file size.
- 1.41. The solution should check/record/verify authentication of source of each transaction like user IDs, IP address, Mac address etc. which is required for audit/regulatory reporting purpose.
- 1.42. System integration testing will be followed by user acceptance testing, plan for which must be submitted by the vendor to the Bank. The UAT includes Functional tests, Resilience tests, Benchmark Comparisons, Operational tests, Load tests etc. BOB staff/ third party Vendor designated by the Bank will carry out the functional testing. These staff members/ third party vendor should be trained by the Vendor for this purpose. Vendor should carry out other testing like resiliency / benchmarking / load / stress etc. Vendor should submit result log for all testing to the Bank.
- 1.43. Mandatory comprehensive training (technical and functional separately) to the Bank Staff, at least once a year during the contract period. The training shall be provided as

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and when required by the Bank. The vendor shall train designated/nominated BOB officials on the configuration, operation / functionalities, maintenance, support & administration for software / hardware / Database/ OS / Middleware, application architecture and components, installation, troubleshooting processes of the proposed solution.

- 1.44. Training will need to be carried out onsite at Mumbai and at the Bank's training centres (including at Back Office Gandhinagar and Bengaluru or any other place). The training program may be split into 2 groups – Technical and Functional training. The groups may be covered in 2 batches of 15 officers each. The bidders are requested to indicate the optimum number of days / hours required for both Technical and User level training programs onsite. The Vendor can use the infrastructure at the Bank for this purpose.
- 1.45. The solution should be able to generate the demo in flash or similar technology for customer training and better understanding of functionalities available in the solution.
- 1.46. The solution should have the capability to support the customization of the product for different jurisdictions as per the local Regulations as well as client needs.
- 1.47. The Solution should be capable of handling multi country, multi-currency, multi-product administration and services. Going forward the Solution should also be capable of interfacing with multiple back-office solutions and core banking systems, if required. In addition, the solution should be dynamic enough to configure for all types of operations, viz. centralized model, hub and spoke model and at regional centres. The solution needs to have an inbuilt feature of assigning / reassigning tasks even across various branches / regions.
- 1.48. The Solution should also have proven capabilities of assisting the Bank in maintaining audit trails, audit logs of all its functions/processes.
- 1.49. If there is any core banking system upgrade or replacement of any other dependent system, then it is vendor's responsibility to ensure that the integration with the core banking system is provided without affecting the normal course of business without any additional cost.
- 1.50. The Solution developed or customized should follow a standard development process to ensure that it meets functional, security, performance & regulatory requirements of the Bank.
- 1.51. The Vendor should provide post implementation support.
- 1.52. Backup System: The vendor will be responsible for Backup up of Application and Data Base as per the requirement of the Bank.
- 1.53. Test & Training: Exclusive Test & Training environment should be made available outside production area in the respective DC.
- 1.54. A Migration environment should be made available to ensure seamless migration activity.
- 1.55. A pre-production environment should be made available to mimic the production environment.

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- 1.56. Installation, configuring, clustering, maintaining and supporting of the application including middleware etc. is the responsibility of the vendor.
- 1.57. All the patches/fixes, version upgrades of all the software components released by the Principal OEM during the contract period should be provided with no extra cost. The Vendor should ensure implementation of all the patches/ fixes and version upgrades in the production environment to the latest version during the contract period.
- 1.58. An authenticated session, together with its encryption protocol, should remain intact throughout the interaction with the customer. In the event of interference, the Developer will ensure controls are in place to terminate the session and reverse out the affected transactions. As an integral part of the two-factor authentication architecture, appropriate measures to minimize exposure to a middleman attack which is more commonly known as a man-in-the-middle attack (MITMA), man-in-the browser attack or man-in-the application attack, are implemented.
- 1.59. The Vendor should comply with the Bank's IS Security policy in key concern areas relevant to the RFP. Some of the key areas are as under:
 - Responsibilities for data and application privacy and confidentiality
 - Responsibilities on system and software access control and administration
 - Custodial responsibilities for data, software, hardware, and other assets of the Bank being managed by or assigned to the Vendor.
 - Physical Security of the facilities, wherever required to be provided by the vendor.
 - Physical and logical separation from other customers of the Vendor, wherever required to be provided by the vendor.
 - Incident response and reporting procedures.
 - Password Policy of the Bank
 - Data Encryption/Protection /XBRL requirement of the Bank
 - The Bank will share its security requirement with the Vendor.
- 1.60. The Vendor shall create adequate controls ensuring that, when exception or abnormal conditions occur, resulting errors do not allow users to bypass security checks or obtain core dumps.
- 1.61. The Solution should be capable of providing zero downtime patching and updates.
- 1.62. The Solution should be able to provide Automatic End of Day (EOD) and Beginning of Day (BOD).
- 1.63. The Solution should be able to integrate with third party 2FA product.
- 1.64. The Solution should be able to support Disaster Recovery by replicating the data at remote locations.
- 1.65. The Solution should have the ability to support web-based administration module for the complete management of system.

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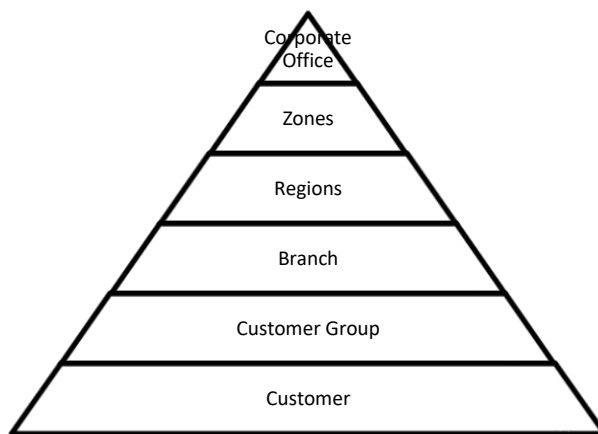
- 1.66. The admin module of the Solution should have the ability to support users/ groups / role definition and granting access rights to them and set password expiries.
- 1.67. The admin module of the Solution should have the facility to take complete and incremental backups and should be able to integrate with third party backup solutions.
- 1.68. The Solution should be capable of providing Time - based / Event - based reminders.
- 1.69. The Solution should have facility of forget user id / password and integration to reset the same through various channels including mobile, contact centre etc. including password retrievals online and CAPTCHA authentication.
- 1.70. The proposed solution should be capable of taking care of both back-end [Bank side- Back office as well as the Branch] and the front end [Customer side] requirements. The corporate clients should be able to access services through multiple channels including but not limited to online portal, host-to-host integration with customer ERP system, SFTP, SWIFT, APIs and web-services for seamlessly integrating their requirement into proposed solution as well as our existing Core Banking Solution.
- 1.71. The portal must support Hindi language including online help / tutorials for guiding customers on functions / searches.
- 1.72. The system should support online / real-time comprehensive and customizable management dashboard along with functionality for queue and team allocation and management.
- 1.73. The proposed solution must have the capability of batch / file uploads of the data.
- 1.74. Facility to integrate with CRM for all customer communication.
- 1.75. Facility to provide the relationship manager module.
- 1.76. Facility to handle upload documents and/or integration with DMS.
- 1.77. Facility to support secure two / three-way structured messages / communication between bank, various branches, its customers and vice-versa.
- 1.78. Facility to manage and register digital signature for the customers.
- 1.79. Should have the facility to support drill down of transactions, queries, reports etc. with graphic presentation.
- 1.80. System should be able to track, monitor, report unsuccessful attempts in log-in with details to the customer / admin.
- 1.81. Customer and admin should be able to create its own reports / analytics.
- 1.82. The system should be able to give the feature of split screen functionality for ease of data entry.
- 1.83. The solution being offered should be a SWIFT Certified Trade Finance Solution and the vendor should confirm that it complies with the latest SWIFT SR (Standard Release) during the contract period shall be provided at no additional cost. The solution

should be MX message compliant. Any further SWIFT message transition from MT to MX should be undertaken during the contract period.

- 1.84. The solution should be able to provide the workflow and ability to create the new workflows.
- 1.85. The system should have ample checks to detect duplications such as same invoices, Nostro references, shipping bills, bills of entry etc.
- 1.86. The system should be capable of printing/displaying the bank's logo and brand on all advice, reports, communications etc.
- 1.87. Ability to integrate with eKYC platform and generate updates automatically in case of expiry.
- 1.88. The product should offer versatile but robust access controls and user rights controls – both physical and logical. The solution should support super administration for the Bank as whole as well as local administrators and user controls at country / branch level.
- 1.89. System should be capable of saving the templates, drafts for various products.
- 1.90. System should be capable of creating new transactions from existing transactions as well as saved templates.
- 1.91. System should integrate with the Bank's AML screening application and provide real time prompts/notifications.
- 1.92. The system should provide space for Bank to market other products to customers and to provide useful trade related information on the home page.
- 1.93. System should send intimation/communication/email to corporate customers via email for relevant actions taken by the Bank. The system should be capable of maintaining multiple email ids of the customer.
- 1.94. It should have functionality of Queue management, job re-allocation, dash boards including TAT monitoring at Back Office.
- 1.95. System should be able to integrate for trade loans.
- 1.96. The solution should support to customize the product for different jurisdictions as per the local Regulations as well as client needs.
- 1.97. The system should be compliant with latest version of UCP, URR, URDG, URC, INCOTERMS, e-UCP, ISBP etc and SWIFT standards.
- 1.98. System should have Artificial Intelligence and Machine Learning Capabilities, though not restricted to the following:
 - A. Scanning of documents and enriching details by leveraging OCR/ICR capabilities.
 - B. Scrutiny and prompts based on ICC publications such as UCP, URC, URDG, ISBP etc.
 - C. Scrutiny and prompts based on FEMA Regulations.

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- D. Scrutiny and prompts based on RBI directives.
 - E. Scrutiny and prompts based on bank's internal guidelines.
 - F. Scrutiny and prompts based on OFAC/EU/UN sanctions, MoF/MoH lists, FIU, Court orders etc.
 - G. Training for Bank's staff to set, train and fine tune the prompts.
- 1.99. The system should permit configuration of outward messages based on the lifecycle of the transactions or the event created under a transaction.
- 1.100. The system should permit mapping and creation of events based on the reference number of inward messages and the type of message.
- 1.101. The system should be capable of maintaining hierarchy of branches, regions, and zones of the bank.



System should be capable of generating MIS reports for every level of hierarchy.

- 1.102. The system should be capable of maintaining or fetching the following branch details from CBS:
- A. SWIFT compliant Branch address
 - B. Branch ALPHA
 - C. Branch Sol ID
 - D. Branch AD ID
 - E. Branch IFSC (Indian Financial System Code)
 - F. Branch BIC (Bank Identifier Code)
 - G. Branch GFSC (Global Financial System Code)
- 1.103. The system should have Message Manager capabilities as under.
- A. Handle all Inward and Outward messages from/to,
 - i. SWIFT

- ii. SFMS
 - iii. Global SFMS
 - iv. CIMPLER Solution for SWIFT India
- B. Integration with bank's AML screening application to ensure compliance with sanctions and prevent money laundering.
- C. Detection of duplicate messages. Defining criterion for such detection.
- D. Routing of messages from one branch to another one or more time.
- E. Creation and maintenance of user authorization matrices as per bank's requirement.
- F. Linking inward payment messages to single or multiple clean payments/export bills based on the disposal instructions provided by the beneficiary.
- G. Separate dashboards should be available for SWIFT, SFMS and Global SFMS messages.
- H. A single message should not be utilized more than once and should be marked as utilized once acted upon.
- 1.104. System should be capable of integrating with SWIFT GPI and GO.
- 1.105. API integration with, though not limited to, following:
- A. Connect 24 (Finacle)
 - B. Finacle (CBS)
 - C. SWIFT/SFMS/Global SFMS
 - D. API Setu
 - E. NeSL
 - F. NSDL
 - G. FX One (Treasury)
 - H. FRMS
 - I. Dow Jones
 - J. ITN (India Trade Network) of IBDIC
 - K. TRACCS (EDPMS/IDPMS)
 - L. Probe 42
 - M. FTS (Funds Transfer System) of domestic/overseas territories
- 1.106. System should be capable of maintaining Purchase Orders (PO) and linking them with transactions.
- 1.107. System should be capable of maintaining Licences and linking them with transactions.

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- 1.108. System should be capable of temporarily carving balances in Finacle if a transaction is under process. The carved amount should be released if the transaction is cancelled/aborted.
- 1.109. System should be capable of interest calculation and accrual in advance as well as arrears. In case an account is classified as NPA system should be capable of refunding the interest collected from the date of NPA. For NPA accounts the calculation should be done and stored in the background without actual application. Rate of interest may be tiered based on period or due date.
- 1.110. Rate of interest can be maintained as static as well as fetched from Finacle.
- 1.111. The following factors should be factored while arriving at ROI.
- A. Base Rate (MCLR/Repo Rate/ARR)
 - B. Customer Premium (Internal/External Rating Based)
 - C. Strategic Premium
- 1.112. System should be capable of commission/charges calculation and accrual in advance, arrears, deferred, bullet, ballooning, and periodic basis. In case an account is classified as NPA system should be capable of refunding the commission/charges collected from the date of NPA. The parameters for configuring the commission/charges should factor the following variables:
- A. Customer Specific
 - B. Branch Specific
 - C. Category Specific (SME, Large Corporate, Exporter, Retail etc)
 - D. Fixed
 - E. Ad valorem
 - F. Tiered based on amount as well as period.
- 1.113. System should process the following clean payment products:
- A. Outward Remittances
 - i. Customer Payment
 - Advance Remittance against Imports (including SRVA and Global-SFMS)
 - Real time integration with API Setu for HS ITC
 - Real time Integration with TRACCS to update IDPMS data.
 - ORM Notification
 - ORM Closure
 - Remittance of other purposes (including SRVA and Global-SFMS)
 - Liberalized Remittance Scheme

- API integration with NSDL for PAN validation
- API integration with RBI (FRBS API Channel CIMS) to check utilization/ update of LRS limits.
- Demand Draft Issuance
- ii. Bank to Bank Payment
 - Return of Funds
 - Other Remittances
- B. Inward Remittances
 - i. Customer Payment
 - Advance Remittance against exports (including SRVA and Global-SFMS)
 - Real time integration with API Setu for HS ITC
 - Real time Integration with TRACCS to update EDPMS data.
 - IRM Notification
 - FIRC Notification
 - IRM Extension
 - IRM Adjustment/Closure
 - Remittance for other purposes (including SRVA and Global-SFMS)

System should be capable of segregating the MT 103/pacs.008 messages received in two categories Auto and Manual. Auto messages are eligible for Straight through Process (STP) whereas the Manual messages are parked in respective branches for obtaining disposal instructions from the customer. The logic for Auto messages will be shared by the bank.
 - Inward Cheque Collection
 - ii. Bank to Bank Payment
 - Return of Funds
 - Other Remittances

1.114. System should process following types of Documentary Collection:

- A. Outward Documentary Collection (Inland and Cross border transactions including SRVA and G-SFMS transactions)
 - i. Outward Documentary Collection – Sight
 - ii. Outward Documentary Collection – Usance
 - iii. Outward Documentary collection – Advance Received (only for exports)

Underlying Actions:

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- Lodge
- Extend
- Amend
- Finance
 - Purchase in INR
 - Discount in INR
 - Purchase in FCY
 - Discount in FCY
 - Post-shipment Demand Loan – Sight
 - Post-shipment Demand Loan – Usance
 - Advance against Undrawn balances – Sight
 - Advance against Undrawn balances – Usance
- Realize
- Lodge & Realize
- Dishonour
- Linking multiple IRMs at the same time for realization of shipping bills
- Lodge & Finance
- Liquidate multiple packing credits during single finance or realization
- Attach multiple Shipping bills in the same bill
- Real time integration with API Setu for HS ITC
- Real time Integration with TRACCS to update EDPMS data (only for exports)
 - Shipping Bill Acknowledgement
 - Payment Realization Notification (Split/Part/Full)
 - Shipping Bill Write Off/Set Off/Net Off Notification
 - Payment Extension
 - eBRC generation

B. Inward Documentary Collection (Inland and Cross border transactions including G-SFMS transactions)

- i. Inward Documentary Collection – Sight
- ii. Inward Documentary Collection – Usance
- iii. Inward Documentary Collection – Direct

Underlying Actions:

- Lodge
- Extend
- Amend
- Payment
- Lodge & Pay
- Dishonour
- Creating linked Shipping Guarantees
- Real time integration with API Setu for HS ITC

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- Real time Integration with TRACCS to update EDPMS data (only for imports)
 - ORM Notification
 - BOE Extension
 - BOE settlement against ORM
 - BOE Closure

1.115. System should process following types of Documentary Credits:

A. Inward Documentary Credits (Inland and Cross border transactions including SRVA and G-SFMS transactions)

- i. Inward Documentary Credits Advised
- ii. Inward Documentary Credits Lodged
- iii. Inward Stand-by LC

Underlying Actions:

- Advise
- Pre-Advise
- Amend
- Confirm
- Assignment of Proceeds
- Lodge Presentation
- Mark Acceptance
- Mark Discrepancies
- Mark Rejection/Refusal
- Mark Stay Orders/Court Orders
- Finance (Purchase/Discount/Negotiation)
 - Purchase in INR
 - Discount in INR
 - Negotiation in INR
 - Purchase in FCY
 - Discount in FCY
 - Negotiation in FCY
 - Post-shipment Demand Loan – Sight
 - Post-shipment Demand Loan – Usance
- Realization
- Reimbursement Claims
- Revolving Events and Notifications
- Cancel
- Expire
- Closure
- Recording Applicant's and Beneficiary's Actions
- Correspondence
- Back-to-back LC Issuance
- Transfer LC in part or full

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- Real time Integration with TRACCS to update EDPMS data (only for exports)
 - Shipping Bill Acknowledgement
 - Payment Realization Notification (Split/Part/Full)
 - Shipping Bill Write Off/Set Off/Net Off Notification
 - Payment Extension
 - eBRC generation
- Real time integration with Treasury for marking and unmarking of ASL.
- Temporary carving of available limits (ASL as well as Customer) prior to completion of transactions should be available.
- Real time integration with API Setu for HS ITC

B. Outward Documentary Credits (Inland and Cross border transactions including SRVA and G-SFMS transactions)

- i. Letters of Credit
- ii. Letters of Credit– Deferred Payment Terms
- iii. Letter of Credit – Usance Payable at Sight (UPAS)
- iv. Stand-by Letters of Credit

Underlying Actions:

- Issue
- Pre-Advise
- Provisional Issuance (Drafts)
- Amend (With and without Beneficiary Approval)
- Lodge Claims
- Acceptance of Claims
- Discrepancies in Claims
- Reject/Refuse Claims
- Payment of Claims
- Devolvement
- Cancel (With and without Beneficiary Approval)
- Reimbursement Authorization
- Creating linked Shipping Guarantees
- Assignment of Proceeds
- Finance Claims
- Expire
- Closure
- Revolving Events and Notifications
- Recording Applicant's and Beneficiary's Actions
- Real time Integration with TRACCS to update EDPMS data (only for imports)
 - ORM Notification
 - BOE Extension

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- BOE settlement against ORM
- BOE Closure
- Real time Integration with Finacle to update customer limits.
- Real time Integration with Finacle to mark lien against cash margin/term deposits
- Real time integration with API Setu for HS ITC
- Temporary carving of available limits and balances prior to completion of transactions should be available.

1.116. System should process following types of Bank Guarantees/Undertakings:

A. Inward Guarantees/Undertakings (Inland and Cross border transactions including SRVA and G-SFMS transactions)

- i. Performance
- ii. Bid-bond
- iii. Financial
- iv. Deferred Payment
- v. Shipping
- vi. Stand-by LC

Underlying Actions:

- Advise
- Acknowledge
- Amendment
- Lodge Demands
- Pay Demands
- Cancel
- Expire
- Closure

B. Outward Guarantees/Undertakings (Inland and Cross border transactions including SRVA and G-SFMS transactions)

- i. Performance
- ii. Bid-bond
- iii. Financial
- iv. Deferred Payment
- v. Shipping
- vi. Stand-by LC

Underlying Actions:

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- Issue
- Record Acknowledgement
- Amendment (With and without Beneficiary Approval)
- Lodge Claims/Demands/Invocation
- Record Discrepancies
- Pay Claims/Demands/Invocation
- Cancel (With and without Beneficiary Approval)
- Expire
- Closure
- Real time Integration with Finacle to update customer limits.
- Real time Integration with Finacle to mark lien against cash margin/term deposits.
- Real time integration with Treasury for marking and unmarking of ASL.
- Temporary carving of available limits (ASL as well as Customer) prior to completion of transactions should be available.
- API integration with SWIFT for e-BGs.
- API integration with NeSL for paperless BGs (Inland).
- API integration for automated e-stamping (AeS).
- Support transmission of SFMS 760 as well as SFMS 760 COV for inland guarantees/undertaking and SBLCs.
- Facility to create / Save template based on standard terms & conditions.

1.117. System should process following types of Buyers Credits:

- A. Trade credit through SBLC – Inward Documentary Collection
- B. Trade credit through SBLC – Outward Documentary Credit

Underlying Actions:

- Issue
- Amend
- Credit Received
- Interest Component
- Rollover
- Credit Repayment
- Payment of interest in case of rollover
- Creation of TC I and TC II reports
- Real time Integration with Finacle to update customer limits.
- Real time Integration with Finacle to mark lien against cash margin/term deposits.
- Temporary carving of available limits and balances prior to completion of transactions should be available.

1.118. System should process following types of Packing Credits:

- A. Packing Credit in INR (Running as well as Order Specific)

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B. Packing Credit in FCY (Running as well as Order Specific)

Underlying Actions:

- Disbursement
- Amendment
- Extension
- Local Repayment (Full/Partial)
- Repayment from Export proceeds (Inward Remittance/Export Bills)
- Temporary carving of available limits and balances prior to completion of transactions should be available.

1.119. System should process Banker's Acceptance

1.120. System should support creation and transmission of correspondence messages.

1.121. Integration with TRACCS

- A. Request AD transfer.
- B. Approve AD transfer.
- C. Fetch/Search Shipping Bill/IRM
- D. Fetch/Search Bill of Entry
- E. Manual Bill of Entry
- F. Reports
- G. Notification and Alerts
- H. Realtime update in TRACCS

1.122. Customer Portal with following capabilities (Web Version and Mobile Version)

- A. Submission of requests/applications for all trade and payment transactions and underlying events:
 - i. Clean Payments
 - Inward Remittances
 - Outward Remittances
 - ii. Trade Transactions
 - Inward Documentary Collections
 - Outward Documentary Collections
 - Inward Documentary Credits
 - Outward Documentary Credits
 - Received Guarantee/Undertaking
 - Issue Guarantee/Undertaking

- Packing Credits
 - Trade Credit
 - Stand-by LC
- B. Portal should be capable of receiving queries raised in transaction processing system and responding to them.
- C. Download SWIFT/SFMS/Global SFMS messages, debit/credit advice, covering schedules etc.
- D. Integration with TRACCS (IDPMS/EDPMS)
- E. Integration with Finacle (CBS) to fetch account and Sanctioned limit details, save response for records and reports.
- F. Integration with SWIFT to display details of MT 103/pacs.008 and capture disposal instructions.
- G. Integration with FX One (Treasury) to fix/book exchange rates.
- H. Interactive dashboard with due date diary and daily notification.
- I. Bulletin Board for information broadcasting and advertisement
- J. AI enabled chat-bot.
- K. SSO with Internet banking or any other alternate delivery channel
- L. Request initiation from Internet, Mobile banking, and any other alternate delivery channel for LRS/Packing credit / EEFC Conversion transactions.
- M. Create/Save templates and ability to create new transaction based on existing template or completed transactions.
- N. MIS Report generation capabilities with following variables:
- i. Product/Sub-product
 - ii. Event
 - iii. Date
 - iv. Amount
 - v. Applicant
 - vi. Beneficiary
- 1.123. Integration with Trade Compliance and Sanctions Screening tools, including but not limited to:
- Centralized AML/TBML solution deployed by the Bank
 - Dow Jones
 - PurpleTRAC (vessel tracking)
 - OFAC / EU / Internal watchlists
 - Sanction country, port & vessel screening

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- Credit and regulatory checks
- 1.124. Integration with Domestic CBS and International CBS for:
- KYC / onboarding
 - Dynamic fetching of client limits and customer parameters
 - Credit limit validation during transaction processing
- 1.125. In case of Trade Credit (Buyer's / Supplier's Credit) against LC/SBLC issued by domestic branches where:
- NFB exposure is taken by domestic branches and
 - FB exposure is taken by overseas branches, the system should ensure supersession of NFB exposure by FB exposure (in case of trade credit only) and enable reporting of only FB exposure to regulators / authorities / auditors.
- 1.126. Interest reset functionality with automated alerts (MIS/Dashboard) for resets due within the next 2–3 days.
- 1.127. Comprehensive Approval Matrix with:
- Threshold-based authorization
 - Admin-configurable transaction authorization structure
- 1.128. Exception Management framework with full audit trail.
- 1.129. Minimal data entry at branch level with intelligent field population and validations.
- 1.130. Support for the following Trade Finance and related business functions (including but not limited to):
- Forward Contracts (sale & purchase) and hedging tools
 - Trade Risk Distribution and Participations
 - FI Trade Loans
 - Invoice Discounting / PPC Discounting / Invoice Financing
 - Cheques Purchased / Cheques Discounted
 - Factoring & Forfaiting
 - Deferred Payment / Trust Receipt
 - FDI / ODI transactions
 - Trust Receipt Financing
 - Reimbursement Authorization (RA) Financing
 - Trade Credit against SBLC
- 1.131. Calendar functionality displaying due dates and maturity dates for:
- LCs
 - Bills
 - Bank Guarantees / Undertakings
 - Others
- 1.132. Online tracking of transactions, including visibility of:
- Current status
 - Pending level within the Bank
 - Workflow stage
- 1.133. Workflow management capabilities including:
- Creation of workflows
 - Queue management (prioritize / de-prioritize requests)

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- Job reallocation
 - TAT monitoring dashboards (including Mid Office / Processing Centres)
- 1.134. Capability to monitor and report transaction status across all teams, branches, and processing centres.
- 1.135. Time-based and Event-based reminders and alerts (SMS / Email) for customer and Bank notifications.
- 1.136. Facility to preview advices/messages (including L/C) before approval and provision to print hard copies.
- 1.137. Capability to generate electronic BG / LC as per latest E-UCP guidelines, wherever feasible.
- 1.138. Ability to view complete and updated versions of LC / Guarantee / Undertaking along with:
- Amendments
 - Comments
 - Attachments
 - Discrepancies
 - Audit trails
- 1.139. Capability to enrich documents with additional metadata fields for end-to-end tracking and auditability.
- 1.140. Provision to link images / scanned documents to corresponding transactions throughout the lifecycle.
- 1.141. Duplication checks within the system (e.g., duplicate bills, duplicate LC issuance, etc.).
- 1.142. Corporate customer features:
- Online Help functionality
 - Save incomplete transactions (draft mode)
 - Quick save option
 - Auto-save of data if not submitted
 - Copy master data between clients within the same group
 - Capability to dynamically change transaction priority for urgent requests (with configurable limits per customer per month/week).
- 1.143. Provision for user management including:
- Forgot User ID / Password
 - Password reset through online portal, email, mobile, contact centre
 - CAPTCHA-based authentication
- 1.144. Customizable reporting capability with Centre-specific branding (Bank of Baroda logo of respective Centre) on all standard and customized reports.
- 1.145. Online Transaction Tracking: The solution should enable real-time tracking of pending transactions, clearly indicating the current stage and the level within the Bank where the transaction is pending.
- 1.146. Vessel Tracking
- 1.147. The solution should generate intimation to Bank via SMS/email in case of any request by customer and vice-versa.

- 1.148. The proposed solution is to be implemented as per the Time Zone of the respective Centre.
- 1.149. Tracking of Bill of lading // to check against fake BL (Bill of Lading).
- 1.150. Due diligence of counterparty of exporter --disclosed /undisclosed related party transactions are to be verified for enhanced due diligence.
- 1.151. Full tracking of trade cycle for trading entities.
- 1.152. Integration with UFCE portal, Fraud Database of India/Overseas Centre as per the requirement.

2. General / Common Requirement

The AI/ML based Trade Finance Automation Solution should be a Web-application software system ("systems") need to be design, developed and deployed. The proposed solution should support requests for all above functionalities of Trade Finance Business Function mentioned under Functional requirement & Subsequent clauses, as may be applicable for Customer Portal, Branch front Desk and Mid office users.

The proposed solution is to be implemented for Front Office Layer (Customer / Branch) for request initiation/generation and Mid Office Layer for assessment, compliance and fulfilment. Mid office layer of function will be undertaken at controlling office at respective centre. Further, below high-level requirement, but not limited to, should be facilitated as part of the solution

2.1 The solution should be implemented for complete Life Cycle Management for each event or product of Trade Finance Business function.

2.2 The solution should have paperless multi-channel initiation, automatic retrieval of Customer limits, Account Balances & Country limits for customer convenience. The customer Web portal should have multi-channel computability through electronic devices with a two-way communication.

2.3 The solution should provide internet based front-end portal for customers to initiate transactions and create their user Authorization matrix.

2.4 The solution should have in-built mechanism to create Email, Letter, Advices, SMS, Swift Copy and follow-ups.

2.5 The solution should provide a holistic view of the system for monitoring purpose for all end users (Customer & Bank user) through a dashboard with real time out of the Box reports e.g. TAT, Volume, Business, discrepancies, productivity, customer profiling/limit and balance checks.

2.6 The solution should be flexible to adapt new customizations and new processes.

2.7 The solution should be integrated seamlessly real time with Finacle 10.x CBS backend system, Payments, Remittances, Internet Banking, SWIFT, FCSS, Mobile

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banking, Treasury, AML, GST module, third-party integration (local level integration) etc. wherever required.

2.8 The solution should also have auto escalation matrix

2.9 The solution should be capable of document watermark.

2.10 The solution should be SWIFT compliant and interface all the back-office accounting and liability entries have to be triggered in CBS apart from dynamically fetching client limit and facilities related information from there as part of transaction processing.

2.11 The Bidder is required to provide the Software solution including middleware, training, third party utilities and installation, testing, migration (if any), integrating requisite interfaces and provide technical support for a period of 5 years.

2.12 Implementation of the proposed solution should be completed within 6 months of the acceptance of order.

2.13 The Bidder should also support the requisite certifications, integration, and maintenance, compliance, etc. and day to day operations at our data centre, post implementation. Bidder is required to deploy on-site support resource as per requirement factored in the commercial sheet.

2.14 The solution must include pre- and post-implementation support.

2.15 The solution should benchmark with the market if desired by the Bank.

2.16 The solution should be complaint to various latest international standards:

- UCP (Uniform Customs & Practice for documentary credits),
- URR (Uniform Rules for Bank-to Bank Reimbursements under Documentary Credits published by the International Chamber of commerce),
- URDG (Uniform Rules for Demand Guarantees/ Undertaking)
- URC (Uniform Rules for Collection),
- ISBP
- INCOTERMS
- SWIFT
- FCSS
- Any other laws, rules, practice, regulations introduced/implemented later on.

2.17 The solution should provide space for Bank to market other products to customers and to provide useful trade related information on the home page.

2.18 The solution should preferably be able to generate Single, customizable landing page and interface for the client across different platforms.

2.19 The solution should be able to generate the demo in flash or similar technology or any other standard acceptable method for customer training and better understanding of functionalities available in the solution.

2.20 The Bidder have to ensure seamless migration of the application and solution after expiry of contract period, if Bank selects another Bidder after the contract period or during the contract period due to any reason.

2.21 The solution should have the capability of providing comprehensive audit trail features to monitor activity of specific programs and data files etc. The solution should also provide on-line access to audit trail information. Time/date stamp, user ID, & before and after changes. It should also keep a track of activities executed by the Application system administrator. The solution should also allow for segregation of duties is (e.g. segregated function between system and application administration). The solution should have ability to define groups so that access can be categorized.

2.22 The solution should have the ability to select and/or modify standard clauses from the library including capturing additional details for Documents Required, Goods Description, Additional Conditions etc.

2.23 The solution should be able to provide the FAQs from the repository and the ability to accept the suggestions on the FAQs.

2.24 The Solution should offer maximum flexibility in User administration for the Customers while making available all the required user control tools at the hands of the Bank users.

2.25 The Solution should support Document preparation and e-presentment related to Trade Finance business/ products

3. Interfaces & Integrations and Reports Requirements:

The bidder must provide their plan for implementation for Integrating & interfacing the AI/ML based Trade Finance Automation Solution with the following but not limited to:

3.1.1 Bank's existing Core Banking System (i.e. Finacle 10. X Core Banking System)

3.1.2 Email/SMS Gateway for the sending transaction alert/ information / advice / messages

3.1.3 Integration with AML / Watchlist / Sanction list Systems (OFAC, US/EU Sanctions, etc) or any other screening solution (Centre specific requirement).

3.1.4 Integration with GST module.

3.1.5 Bank's Active Directory for user id validations

3.1.6 Interfaces/Extracts for Banks existing Big Data, Lake / Data Warehouse

3.1.7 Interface with Treasury for forward rate contract/ Rates automation, etc.

3.1.8 Internet banking & Mobile banking Application integration.

3.1.9 The solution should have ability to generate various MIS reports/audit reports as per regulators / statutory requirements. Bidder to arrange for necessary customizations wherever required during the contract period adhering to data privacy law.

- 3.1.10 The solution should support online/ real-time comprehensive and customizable management dashboard.
- 3.1.11 The solution should provide open APIs so that the Bank's different applications can be integrated with the solution.
- 3.1.12 The solution should have capability to integrate with CRM for all customer communication.
- 3.1.13 The Solution should support specific requirement for integration with local regulatory requirement, if any.
- 3.1.14 The solution should integrate with Customer ERP and Finacle Core Banking for all transactions (Adapter based/ API based/ Web Service/ File Based). System should support authentication through Tokens/ Soft Token, OTP, Digital Certificates, IP Address & Mobile Application.
- 3.1.15 The Solution should be capable of handling multi country, multi- currency, cross-currency multi-product administration and services. Solution should also be capable of interfacing with multiple back-office solutions and core banking systems, if required. In addition, the solution should be dynamic enough to configure for all types of operations, viz. centralized model, hub and spoke model etc.
- 3.1.16 The Solution must be capable of supporting LDAP and system can be integrated with Windows Active Directory to achieve Single Sign on (SSO).
- 3.1.17 The Solution should be able to integrate with third party/ 2FA product.
- 3.1.18 Data dictionary to be provided for the solution.
- 3.2 The Solution should provide a robust MIS support by way of Dashboard with certain in built reports. These reports would inter alia cover extraction of data for various internal, external MIS and regulatory purposes including Transaction Monitoring activities. The dashboard has to be multi-level both at front end and Mid office viz:
- 3.2.1 Corporate Level/Group level information and
- 3.2.2 Branch/Bank/Country level information for the Bank users/ Administrators.
- 3.3 The reports should be generated for different domain like universal, country specific and frequency for generating these reports should be as per Bank's requirement (daily, weekly, monthly, quarterly, annually etc).
- 3.4 The solution should be having provision for user and administrator to create its own reports / analytics.
- 3.5 The Solution should have capability to generate digitally signed / Encrypted MIS in any format i.e. csv, xls, XML, pdf etc.

3.6 The Trade Origination and process Automation Platform should have Dashboard and Reports which are required to meet Banks /centre specific / customer requirement for Balancing or other purposes.

3.7 A report for all the Request/Modification/ rejection done through portal by bank user and customer should be available to the bank user and customer should have report for actionable by him.

3.8 The solution should maintain detailed record of every addition/modification/verification/ Rejection detail of each transaction and provide a menu option to generate report, if required.

4. Technical Requirement

Bank has implemented Global Data Center in India and hosted various Applications, including Core Banking System, for domestic and all International Centres. To comply with local regulation & data privacy law, each Application (along with it's underlying layers i.e. Web, Application & Database Layers) have been configured under separate instances. Also, instances of surrounding applications e.g. SWIFT, FCSS, AML are also hosted centrally at Global Data Center for respective Center. In the same line, the proposed AI/ML based Trade Finance Automation Solution is to be hosted at Bank's Global Data Center in India. Bidder is required to provide Software License, as mentioned, undertake customisation in CBS System, implement, support under this engagement. Bank has specifically included the CBS Customisation (i.e. API Development & integration) so as to ensure end-to-end implementation under this engagement. The high level, technical requirement, but not limited to, are as under:

4.1 The solution is to be implemented (at each layer i.e. Web, Application, Database) for Bank of Baroda International centres to comply with local regulation including data privacy rules/laws. The configuration is to be done under a high-availability cluster environment setup at DC/DR Sites to achieve 99.9% uptime SLA. The Cluster environment is to be built under each layer i.e. Web, Application & Database Layer so as to ensure high availability.

4.2 Hardware Infrastructure - Bank will provide all Hardware Infrastructure all i.e. Server, Storage space, Load Balancer etc for the proposed solution. Bidder is not required to factor any Hardware / Infrastructure in their commercial proposal.

4.3 Software – Bank will provide Operating System Software, Oracle Database Software for all the instances. It may be noted that the Database should be used as Oracle only as Bank has the Enterprise Agreement with Oracle. Bidder need not to factor these Software in their commercial proposal.

4.4 Other Associated Software - Bidder needs to factor other associated software license, if any, including Document Management Software license in their commercial as indicated in the commercial sheet. Bidder need to factor implementation & ATS cost accordingly in their commercial proposal.

4.5 As part of the technical solution, the Bidder must provide the complete IT infrastructure requirement details like Server, Operating System, Oracle Database, Storage Capacity and other related requirements. Bidder is required to submit the optimised Infrastructure sizing and ensure correct sizing for all the proposed environment i.e. DC (the Primary Site), DR (The Backup Site), UAT/SIT (at One of the site Primary / Backup).

4.6 The Bidder is to design the Solution Architecture so as to optimize the Hardware requirement while ensuring the logical segregation of data for the respective country and time zone. As the implementation is hosted at Global Data Center, the bidder is to ensure optimal sizing of Load Balancer requirement in both Layers i.e. DMZ & MZ so as to ensure Infrastructure requirements are optimised. Bidder needs to provide options of Load Balancer i.e. Hardware Appliance Load Balancer as well as Software Load Balancer along with technical justification towards both option which will enable Bank to take a suitable decision in this regard.

4.7 Bidder need to ensure VA/PT Observations, if any, are complied with for both Application Software component Setup implemented at DMZ & MZ Layer.

4.8 As a part of proposed Hardware Sizing, Bidder needs to submit year wise capacity planning for the contract period of five years. Bank shall provide necessary input based on the request by the Bidder. Bidder needs to provide the template in this regard.

4.9 In the event the sizing proposed by the Bidder does not meet the performance / service levels of the Bank, the Bidder will at their cost carry out the necessary upgrades/ replacements. The Bank has the right to deduct/ recover from the Bidder, the required additional expenses which the Bank may incur on account of such upgrades/ replacements.

4.10 The Hardware sizing, along with Project Implementation Plan, is to be provided within -4- weeks of acceptance of PO, so as to enable Bank to initiate Hardware & Software provisioning requirement well before the live implementation. Any delay on part of the Bidder shall be treated as Delay in Delivery and factored accordingly under the non-compliance to the delivery schedule.

4.11 Bidder is to submit the Solution architecture as a part of the Technical Proposal bid submission. By means of diagrammatic/ pictorial representations, the Bidder should provide complete details of the hardware, software and network architecture of the solution offered, including the project plan for going live. Bidder should also provide security set-up proposed in the solution and various layers of risk identification and mitigation measures. Hardware & network will be provided by bank.

4.12 The solution is to be integrated with back-end CBS Finacle 10.x system. For this purpose, the API development under Finacle 10.x CBS is to be undertaken by the bidder.

Bank will enable Test and Development Environment for the necessary development. It will be Bidder's responsibility for complete end-to-end integration of their proposed solution with Bank's existing Back-end System i.e. Trade Finance Module of Finacle CBS 10.x. Bidder need to factor all effort (customisation, integration, implementation, post implementation support, if any) in this regard accordingly in their commercial proposal. Customisation / API Development under Bank-end System i.e. CBS Finacle 10.x is to be undertaken for each CBS Instance.

4.13 Bidder is to ensure BCP Scenario (DC/DR Cutover & Cutback) successful implementation of proposed solution at both data center and ensure data synchronization. Realtime replication will be undertaken at Database Level. Bidder need not factor any additional software for auto replication or auto failover.

4.14 The Onsite Resource is required to ensure Application Monitoring, Maintenance & support.

4.15 The Bidder shall do proactive monitoring and capacity planning at regular intervals and advise the Bank on Hardware / Software upgrades. However, there should not be any additional cost to the Bank for any software or hardware upgrade during the contract period as the Bank may use existing IT infrastructure or procure separately the required infrastructure based on the sizing proposed by the Bidder.

4.16 If Bank desires to upgrade to higher version of Oracle Database or hardware, the Bidder shall be required to comply with banks requirement. The solution should support the Oracle Database and hardware version provided by Bank. Bank will take care of hardware and Oracle Database upgrade activity. The Bidder has to ensure that the application should be compatible with hardware and Oracle Database etc. without any additional cost.

4.17 The Application and Oracle Database architecture should have the ability to increase the number of concurrent instances to keep the application server parameters below 70% utilization (CPU, Memory, Hard disk, etc.)

4.18 For every software including any third-party software before software/ service become operational, the Bidder must deliver to the Bank documents including user manuals, installation manuals, operation manuals, design documents, process documents, technical manuals, functional specification, software requirement specification, system configuration documents, system/ database administrative documents, debugging/ diagnostics documents, test procedures etc.

4.19 The Bidder should also provide documents related to Review Records/ Test Bug Reports/ Root Cause Analysis Report, list of all product components, list of all dependent/ external modules and list of all documents related to traceability of the product as and when applicable. The Bidder should also provide the MIS reports as per requirement of the Bank.

4.20 The Bidder must provide hand-holding support during roll-out of the Solution.

4.21 The Bidder should provide ATS for proposed solution, including other software, associated modules and services required to meet the requirements in the RFP. The

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ATS for entire contract duration shall start from the date of go-live of Trade Origination Automation solution. ATS of 5 years will be considered for commercial evaluation.

4.22 The solution / software developed or customized should follow a standard development process to ensure that it meets functional, security, at par with Industry coding standards, performance & regulatory requirements of the Bank.

4.23 The Bidder should comply with the Bank's IS Security policy in key concern areas relevant to the RFP. Some of the key areas are as which are not limited to as under: Responsibilities for data and application privacy and confidentiality

- Responsibilities on system and software access control and administration
- Custodial responsibilities for data, software, hardware and other assets of the Bank being managed by or assigned to the Bidder
- Incident response and reporting procedures
- Password Policy of the Bank
- Data Encryption/Protection /XBRL requirement of the Bank
- Personal identifiable information (PII) – Encryption guidelines & standards. Bidder need to extend necessary support towards implementation of this requirement.
- General Data Protection Regulation (GDPR) – Application should be compliant towards GDPR guidelines and Bidder should extend necessary support towards implementation of this requirement.

4.24 Application should follow standard security features like ISO, OWSP, etc. The security requirement of the Bank will be shared with the successful Bidder.

4.25 Bidder needs to troubleshoot any problems occurring in the system during contract period. On-site support should be provided and issue should be resolved within defined TAT. Escalation matrix has to be provided for escalation of issues which are not resolved within the stipulated time.

4.26 All the patches/fixes, version upgrades of all the software components released by the Principal OSD (Original Software Developer) during the contract period should be provided. The Bidder should ensure implementation of all the patches/ fixes and version upgrades in the production environment to the latest version during the contract period.

4.27 The Bidder should provide on-site comprehensive warranty for the software solution & produce documentary evidence from software OEM/ OSD of having agreed to provide back-to-back warranty and technical support for its supplied products and related services on the terms agreed between the parties.

4.28 The solution integration testing will be followed by user acceptance testing, plan which has to be submitted by the Bidder to the Bank. The UAT includes Functional tests, Resilience tests, Benchmark Comparisons, Operational tests, Load tests etc. BOB staff/ third Party Bidder designated by the Bank will carry out the functional testing. The staff / third party Bidder are to be trained by the solution provider for this

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purpose. Solution provider should carry out other testing like resiliency / benchmarking / load etc. and should submit result log for all testing to the Bank.

4.29 The solution should have the capability to support the customization of the product as per local requirement as well as client/customer needs.

4.30 The Bidder will be responsible for Management of Application & Database Backup as per the requirement of the Bank as a part of onsite support services. Onsite support resources need to co-ordinate with respective Bank's service provider team providing support Services towards Infrastructure, OS, DB provided by Bank.

4.31 The ATS support for the proposed Solution should include the following:

- All version upgrades during the period of contract should be available to bank at no extra cost.
- Program updates, patches, fixes and critical security alerts as required.
- Documentation updates.
- 24*7*365 backend support for the proposed solution related malfunctions as defined in SLAs and ability to log requests online.

4.32 The solution should be capable of being installed either as a single instance or multi or multi-tenant instance depending on Bank's requirements

4.33 An authenticated session, together with its encryption protocol, should remain intact throughout the interaction with the customer. In the event of interference, the Developer will ensure controls are in place to terminate the session and reverse out the affected transactions. As an integral part of the multi factor authentication architecture, appropriate measures to minimize exposure to a middleman attack which is more commonly known as a man-in-the-middle attack (MITMA), man-in-the-browser attack or man-in-the-application attack, are implemented.

4.34 The Bidder shall create adequate controls ensuring that, when exception or abnormal conditions occur, resulting errors do not allow users to bypass security checks or obtain core dumps

4.35 The Bidder shall only install or use cryptographic modules based on authoritative standards and reputable protocols (Please refer to the Customer's Cryptographic Key Management Guidelines). The Service Provider shall implement strong cryptography and end-to-end application layer encryption to protect customer PINs, user passwords and other sensitive data in networks and storage. The Bidder shall implement & support encryption when client account and transaction data is transmitted, transported, delivered or couriered to external parties or other locations.

4.36 The solution should have the capability of supporting security framework in terms of authentication, multi-level authorization, auto log-off, password control, single sign-on audit. The solution should allow administrators to implement access management in a granular manner.

4.37 The Solution should be able to provide session log files. The user should be able to analyse the information (e.g., account id, session time etc.). The solution should provide tracking of the client's IP & Network Interface address.

4.38 The solution should be capable of providing zero downtime patching and updates.

4.39 Ability to support web-based administration module for the complete management of system.

4.40 Capability of logging successful and unsuccessful authentication attempts.

4.41 The solution should check/record/verify authentication of source of each transaction like user IDs, IP address, machine address etc. which is required for audit purpose.

4.42 Till currency of the solution, any version upgrade related changes in the solution will be responsibility of the Bidder without any cost to the bank.

4.43 Cloud Adaptive: - The Solution should be 100% cloud native. Solution should be able to migrate to cloud without any additional cost (if Bank wants to migrate its solutions/applications to cloud in future).

4.44 Open-Source Software: Open-source software should be supported in the proposed solution.

The Bidder should provide API's to the Bank that are customizable with its applications for related products

5. Training

The Vendor shall organize for training (familiarization) to the Bank's team as follows:

1. Five working days training to Bank's Core Team is to be imparted before UAT.
2. Training of IT team, support, and Front Office Users to be provided separately in different batches in Modular form. At least 5 full days training is to be given to the users for each group.
3. Bidder to provide separate User Operational manual (Functional & technical). Technical manual to include details of Implementation, Integration, customization, API's, Troubleshooting, SOP (Standard Operating procedure). Also, module wise Job cards to be provided to all the trainees.
4. The Bidder shall train officials of respective Domestic/International centre on configuration, operation / functionalities, maintenance, support & administration for software / Middleware, application architecture and components, installation, troubleshooting processes of the Trade Origination and process Automation platform.
5. The training to be carried out in phases or as required by bank. The training program may be split into 2 groups – Admin Training -(Functional & technical) and Technical -

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(Trainer level training). The bidders are requested to indicate the optimum number of days / hours required for both Technical and User level training programs through teams. The Bidder can use the infrastructure at the Bank for this purpose.

6. Training to the IT team should cover the system administration viz.
 - a. User management
 - b. Management of server,
 - c. Management of Operating System,
 - d. Management of Database,
 - e. Management of Application software
 - f. Report writing.
 - g. Security & Network management
 - h. Backup & Disaster Recovery Operations
 - i. Troubleshooting etc.
7. Training to the User Groups of around 50 engaged with various domains of the Bank's operations about:
 - a. Functionality available in the Module
 - b. Parameterization
 - c. Auditing Techniques
 - d. Report Generation etc.

6. Monitoring and Audit

Compliance with security best practices may be monitored by periodic computer security audits / Information Security Audits performed by or on behalf of the Bank. The periodicity of these audits will be decided at the discretion of the Bank. These audits may include, but are not limited to, a review of access and authorization procedures, backup and recovery procedures, network security controls and program change controls. The Vendor must provide the Bank access to various monitoring and performance measurement systems. The Vendor must remedy all discrepancies observed by the auditors at no additional cost to the Bank. For service level measurement, as defined in SLA, data recording is to be captured by the industry standard tools implemented by the Vendor. These tools should be a part of the proposed solution.

7. Regulatory / Compliance Requirements

As the product needs to be rolled out in several countries, respective country specific customization—both at product level and from the regulatory angle is considered necessary. The vendor needs to submit the proven track record of implementation of the solution across various regulatory jurisdictions is mandatory. The successful vendor, based on their experience, should be able to provide the Bank with an insight and upfront customization for various countries wherever considered feasible of that the implementation is expedited.

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8. Onsite Support

There should be at least 1 technical expert throughout the project period for on-site support who is conversant with the Trade Finance operations. The on-site support should extend to services like helpdesk, data backup, user management, database management/maintenance, updating of data, maintaining integrity of data, loading application upgrades, technical support for ad-hoc queries, archival of data etc.

9. Helpdesk Requirement

- I. 24*7, 365 days a year, online support facility through phone, email, and SMS alerts by L1, L2 and L3 onsite/remote staff with at least 6 persons from Systems integrator /vendor depending on the criticality of the issue.
- II. Escalation process should be in place for unresolved issues.
- III. The Vendor support staff should be well trained to effectively handle queries raised by the Bank customer / employees, etc.
- IV. The Vendor should have ability to generate MIS reports periodically for example: volume of calls / per day, resolution % per day etc.
- V. The Vendor should provide cost of above-mentioned support exclusive of software license cost.

10.B. Technical Features / Specification of Solution:

The Bidder should provide compliance for the mentioned technical features/ specification. Technical bid evaluation of the RFP will be done based on Technical & Functional scoring Sheet. Functional scoring will be evaluated on following criteria as part of technical evaluation.

B.1 Mandatory functional Requirements:

- a) All the line items mentioned below are mandatory and should be delivered on Day 1 of the GO-Live date.
- b) If some features are not readily available, the Bidder will have to develop/customize the same to suit Bank's requirement and cost/man days/efforts of all such development/customization should be the part of the TCO.
- c) In case any of the requirement is marked as not supported, technical qualification marks for Mandatory compliance will be treated as zero marks.
- d) **Functional Scoring Sheet:** Functional Specification scoring will be evaluated on following criteria as part of technical evaluation.

Sr No.	Functional Requirements	RA	CU
	Digital Transformation		

1.	Artificial intelligence and Machine Learning Capabilities, though not restricted to the following:		
	A. OCR/ICR for extraction of data from documents and enrichment of appropriate fields.		
	B. Scrutiny and prompts based on ICC publications such as UCP, URC, URDG, ISBP, eUCP.		
	C. Scrutiny and prompts based on FEMA Regulations.		
	D. Scrutiny and prompts based on RBI directives.		
	E. Low Code Approach for Machine Learning and generating prompts.		
	F. Chatbot		
2.	Configurable and Interactive Dashboard for		
	A. Back Office		
	B. Branches		
	C. Auditors		
	D. Central Office/Zonal Offices/Regional Offices		
	E. Support Departments		
	F. Corporates/Retail Users		
3.	Team and Queue Management Features		
	A. Back Office		
	B. Support Departments		
	C. Zonal/Regional Offices		
4.	Multichannel support - web/desk/mobile/branches and includes support for aggregators and API integration with external/internal application of bank.		
	A. Web		
	B. Desktop		
	C. Aggregators		
	D. API integration for pricing, enquiry, and trade generation.		
5.	Configuration driven White Labelling capabilities to meet bank's branding requirements.		
6.	Seamless user experience in terms of performance of the screens/system, flow of information from transaction processing system to customer portal and vice versa without any latency, quick screen/data refresh.		
7.	File upload facilities – supporting all file types and sizes from Bank to Client, Client to Bank with minimum bandwidth		
8.	Multi factor authentication, password management, AD integration, Biometric, OTP etc. System should be configurable enough to enable different type of authentication method for every type of user.		

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9.	Solution supports designation of a few offices as front office with designated back offices elsewhere like, transactions completed partly in one office to be picked up by another office for further processing		
10	Supports the designated front office to complete the remaining process like generation of advice, messages, cover letters, transaction entries, etc. once the Back office completes their assigned tasks		
11	User notification and actionable links example, trade confirmation, limit threshold-based notification, due date reminder etc.		
12	Workflow based design for various applications and transaction originations & management.		
13	Facility for building parameter-based validation checks at bank as well as customer level		
14	Multi-level user administration – dynamic user rights assignment at group / user / transaction level for the Bank through ready to use menus		
15	Multi-level user administration – dynamic user rights assignment at group / user / transaction level for the Corporates through ready to use menus		
16	Customization / Personalization of screens / panels / skins		
17	Dash boards capable of personalization –Design, Content, Colour, Language, Logos, etc.		
18	Ability for users to view transactions at a Corporate or Group level [Corporates belonging to the same group]		
19	Ability for Bank Administrators to view transactions at a Corporate or Group level from the back-end application		
20	Ability for Bank Administrators to monitor and maintain TAT of various in-process or completed transactions vis-à-vis client SLA		
21	Solution supports reassignment of in-process tasks by Administrators to other users / other offices / other regions for completion		
22	Features to display consolidated information for a given Corporate or Group as to the nature, volume and value of the transactions for any given period and income thereon (Customer One-view, Value of account / connection)		
23	Solution has certain inbuilt standard alerts for various events, milestones in the transaction life cycle		
24	Supports user modifiable alerts / alert settings for various events, milestones in the transaction life cycle		

25	Supports recovery of charges upfront, in arrears or as per schedule		
26	Supports splitting of charges recovery as well as income booking into multiple accounts at a single instance		
27	Supports accrual of commission over a period.		
28	Supports waiver and deferment features for charges		
29	Ability for the Operations team to escalate transactions to a higher level within the Trade Finance Administration team for approval process		
30	Ability for the Operations team to make referrals to the Relationship Teams / AMTs for Credit and other Relationship based approvals at transaction level		
31	Supports display of certain standard and routine information from the Bank side to Corporates, upon sign on – like Exchange rates, Market indices, News feeds, etc.		
32	Provides monitoring tools for load balancing & tracking, TAT across various zones, branches including ability to reassign priority for various transactions		
33	Supports dynamic maintenance of exchange rate tables and conversion at transaction level for appropriate booking of GL and income entries		
34	Real time online validation of various inputs based on preset parameters at transaction level, like counter parties, NOSTRO accounts, GL Heads, User Rights, etc.		
35	User maintainable Tables for various purposes within the application for Banks & Corporates – These tables may be Universal, Country, Region, Branch or Corporate or product specific		
36	User maintainable Ready to use Templates / Library / Tables for various applications like LCs, SBLCs, Guarantees, etc.		
37	Online access to user manuals – both at Bank and Corporate user levels		
38	Facility for scheduling transactions / setting up Standing Instructions by both Bank users and corporate users		
39	Facility for built in smart search features with drill down features		
40	Facility for Corporates to view all transactions – completed as well as in- process with status		

41	Solution supports audit trails at all levels for both Bank as well as corporate users with easy-to-use storage, retrieval, display and print of audit logs based on various parameters		
42	Supports messaging and information exchange between B2C and C2B – both at transaction level and on stand-alone basis.		
43	Inbuilt features for generation and transmission of email / SMS messages at various stages of the transaction life cycles – including advice of payments, due dates, settlements, reminders, charges, cover letters, etc. for all types of Trade transactions		
44	Supports clients in document preparation by making available Templates, Library of terms, text download from LCs / BGs / SBLCs advised, copy from existing record, incorporating Corporate's own reference numbers, etc.		
45	Mirroring of fields from previously completed events.		
46	Supports Corporate users to input special instructions at transaction level including their instructions for payment, fees, charges, etc.		
47	Support storage and display of Event history of all transactions		
48	Preserves all transaction details, files, images, user access, audit trails, etc. for retrieval on a future date based on the unique reference number		
49	Supports a two-way secure email communication working in sync with Bank's mail servers		
50	Generation / transmission of email alerts / advice at various stages of the transaction – including templated messages incorporating information fetched from the data base		
51	Supports seamless interfacing with corporate client's internal systems / ERPs		
52	Inbuilt capabilities to interface with SWIFT Alliance, Payment Hubs & Systems of the Bank including populating the fields with inputs from the transaction records and carrying out validation checks		
53	Inbuilt capabilities to interface with other third-party software solutions of the Bank as well as Corporates like Sanctions Screening, AML, Transaction Monitoring, etc.		
54	Has inbuilt menus / support for BPO (Bank payment obligation), MT 798 functionalities, SWIFT API based integration for C2B transactions		
55	Flexible Reporting Engine - Bank should be able to create/run own queries & fields, save (per user group) as reports		

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56	API Integration to fetch Rate of Interest and posting of accounting entries, from/to Finacle wherever required		
57	API Integration to fetch Card Rates from Finacle		
58	SWIFT compliant trade finance and payment products/sub-products. Compliant with latest SWIFT standards, MT as well as ISO.		
59	Supports integration of contents of inward SWIFT messages into the application in a structured manner and retrieval / downloading of the contents by the Bank and Corporate users for further processing		
60	The OEM or SI has implemented Trade Finance or similar solutions (Back Office as well as Customer Portal) in comparable Indian banks		
61	The proposed solution has been implemented in major banks with global / multi-national presence		
62	Maintain hierarchy of branches, regions and zones for MIS		
63	Trade Finance Products with complete life cycle: A. Inward Documentary Collection B. Outward Documentary Collection C. Inward Documentary Credits D. Outward Documentary Credits E. Inward Guarantees/Undertakings F. Outward Guarantees/Undertakings G. Stand-by LCs H. Post shipment Export Credit I. Pre shipment Export Credit The required functionality and features are mentioned in the Broad Scope above.		
64	Customer Portal with complete suite of Trade Finance and Payment products/sub-products		
65	Two-way communication between the trade finance and payments solution, and the customer portal		
66	Customizable defining of variables which form part of ROI (Rate of Interest)		
67	Supports creation and maintenance of fixed as well as multi-tiered charges / fee table – with ability to customize for a Corporate or Group of clients		
68	Customizable options for defining commission and charges		
69	Reversal of interest in case of NPA		

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70	Reversal of commission/charges in case of NPA		
71	Encryption and Digital Signature capabilities		
72	Has an inbuilt Document Management System for storage, retrieval, display, and printing of documents / images relating to various product types / transactions – to include documents generated within the application and any Bank or third party provided documents		
73	Auto generation of sequential unique reference numbers and auto population of available information from uploaded documents, static data to minimize data entry at transaction level across all screens.		
74	Inbuilt support to dynamically define default GL, Income, Expenditure, Commission, Tax etc accounts numbers based on the product/sub-product type and the event in lifecycle of the transaction.		
75	Supports creation of documents / outputs / printing, both at Bank level and corporate level complete with respective logos and templates and information extracted from the data base		
76	Supports a dynamic Calendar and Holiday maintenance across zones and branches – for both bank holidays and currency holidays across various locations / currencies		
77	Calendar Feature with due date monitoring, action points, to do list etc		

B.2 Technical Specification and Scoring

The Bidder should submit the compliance in the strictly in the following format for below mentioned Technical Specification/requirement. All the Technical Specification are required to be made available and need to be developed during implementation phase if not readily available.

Technical Specification Scoring: Technical scoring will be evaluated on following criteria as part of technical evaluation.

Sr. No.	Technical Requirements	RA	CU
	Application Architecture		
1	Solution is platform agnostic – not dependent on a particular hardware setup		
2	Solution is capable of being interfaced with any existing or future back-office system / CBS system of the Bank		

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3	Solution is capable of being interfaced with multiple back offices and other bank applications simultaneously		
4	Document/Image upload facilities – supporting all file types and sizes from Bank to Client, Client to Bank, Front end to Mid office, with minimum bandwidth.		
5	Solution is capable and being offered in such a manner that includes installation either as a single instance or multi-instance depending on Bank's requirements		
6	Capable of being implemented on a Centralized, localised and / or a hub and spoke model implementation		
7	Open architecture / Fully enabled through open APIs - Build your own UI/UX or incorporate in bank's existing portals		
8	Application APIs should be capable to integrate with bank's API Management (APIM) gateway.		
9	Application APIs should be provided for integration with bank's Alternate Delivery Channels (ADCs) such as net banking, mobile banking etc		
10	Supports appropriate printer interfaces with outputs configurable in terms of layouts as well as file types – outputs may relate to transaction details, Bank documents, advice, mails, messages, reports, etc.		
11	Solution supports audit trails at all levels for both Bank as well as corporate users with easy-to-use storage, retrieval, display and print of audit logs based on various parameters.		
12	Supports the designated front office to complete the remaining process like generation of advice, messages, cover letters, transaction entries, etc. once the Mid offices complete their assigned tasks		
13	Compatibility with various browsers / feasibility for upgrades		
14	Solution supports indexing of all sub-sets in a transaction and images, files relating to a particular transaction to be linked and retrieved together		
15	Supports a two-way secure email communication working in sync with Bank's mail servers.		
16	Generation / transmission of email alerts / advice at various stages of the transaction – including template messages incorporating information fetched from the data base		
17	Solution is SWIFT certified with and ensures continuous compliance with SWIFT latest standards.		
18	Robust confidentiality and security features to protect information flow between the bank and the corporate users (includes but not restricted to end-to-end encryption).		
19	Supports real time replication of data from production site to DR site and permit manual or automatic shift of the application to the DR site		
20	Supports parameter-based queries and display the outputs on screen in addition to direct the output to a printer or file of desired type		
21	Application supports session timeout		
22	Application supports periodic activity report covering security event and application usage		

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23	Solution architecture has the capability to be configured in active mode		
24	Robust confidentiality and security features to protect information flow between the bank and the corporate users.		
25	Application supports database and OS level clustering		
26	Multi-Factor Authentication at user level and at transaction level for defined threshold limits		
27	An authenticated session, together with its encryption protocol, should remain intact throughout the interaction with the customer. In the event of interference, the controls should be in place to terminate the session and reverse out the affected transactions.		
28	Help user to reach desired functions through a single click including drill down features		
29	Solution supports indexing of all sub-sets in a transaction and images, files relating to a particular transaction to be linked and retrieved together		
30	Application capability to integrate with information security and monitoring tools.		

Scoring pattern for Technical / Functional parameters:

Feature Status	Short form	Remarks
Readily Available	RA	The feature is already supported and included in the Solution (1 Marks shall be allotted)
Customization	CU	Can be developed / customized and delivered along with the Solution, prior to implementation at no extra cost. (0.5 Mark shall be allotted)

Please Note – During Demonstration, if any of the required features are not demonstrated but the same feature has been mentioned as “Readily Available (RA)” as part of Functional and Technical Scoring Sheet then the same shall be changed to “No Marks (Not Supported)” in the Functional and Technical Scoring Sheet.

Annexure 13 – Service Levels

The Vendor understands the largeness of this Project and that it would require tremendous commitment of financial and technical resources for the same, for the tenure of Contract under this RFP. The Vendor therefore agrees and undertake that an exit resulting due to expiry or termination of Contract under this RFP or for any reason whatsoever would be a slow process over a period of six (6) months, after the completion of the notice period, and only after completion of the Vendors obligations under a reverse transition mechanism. During this period of Reverse Transition, the Vendor shall continue to provide the Deliverables and the Services in accordance with the contract under this RFP and shall maintain the agreed Service levels. The Bank shall make payment for these services as per terms.

The Bank expects that the successful Vendor to adhere to the following minimum Service Levels:

- Any fault/ issue/ defect failure intimated by Bank through any mode of communication like call/e-mail/fax etc. are to be acted upon, so as to adhere to the service levels. Business/ Service Downtime and Deterioration shall be the key considerations for determining “Penalties” that would be levied on the Successful Vendor.
- The Vendor should have 24X7 monitoring, escalation and resolution infrastructure.
- Time bound problem addressing team (onsite/offsite) for the complete contract period.
- Vendor to arrange for updating required in the system to meet the changes suggested by RBI/ Govt. of India/ regulatory authorities towards compliance as part of ATS at no extra cost to bank for the entire contract period. Any delay in meeting the timelines would result in penalty.

Vendor will have to guarantee a minimum uptime of 99.9%, calculated on a monthly basis. Application (as a whole / any module of the application) availability will be 99.9% on 24x7x365. The penalty will be calculated as per the details given below.

Uptime percentage - 100% less Downtime Percentage

Downtime percentage - Unavailable Time divided by Total Available Time, calculated on a monthly basis.

Total Available Time – 24hrs per day for seven days a week excluding planned downtime

Unavailable Time - Time involved while the solution is inoperative or operates inconsistently or erratically.

Uptime Percentage	Penalty Details
A >= 99.9%	No Penalty
99.0% =< A < 99.9%	2% of cost of monthly ATS charges
98.9% =< A < 99.0%	5% of cost of monthly ATS charges
A < 98.9%	Penalty at an incremental rate of 1% (in addition to a base of 5%) of cost of monthly subscription charges for every 0.1% lower than the stipulated uptime

The uptime percentage would be calculated on monthly basis and the calculated amount would be adjusted from every subsequent quarterly payment. The SLA charges will be subjected to an overall cap of 10% of the yearly ATS cost and thereafter, Bank has the discretion to cancel the contract. If Vendor materially fails to meet an uptime of 99.9% for three (3) consecutive months, the Bank may have the right to terminate the contract. In case if there is no pending invoices to be paid by the Bank to the vendor, the vendor must submit a pay order / cheque payable at Mumbai in Favor of Bank of Baroda for the same within 15 days from the notice period from the Bank. Solution downtime occurring due to factors attributable to the Bank and acknowledged by the Bank in writing will not impact the SLA.

Availability Service Level Default

- Availability Service Level will be measured on a monthly basis.
- A Service Level Default will occur when the vendor fails to meet Minimum uptime (99.9%), as measured on a monthly basis.

SLA for Help Desk Support Services

In case any help desk support personal is not available continuously for **more than 4 hours a day** then the Bidder should immediately provide the Bank with an equivalent standby helpdesk support persons.

If Bidder fails to meet the uptime guarantee in any month then the Bidder will have to pay the following compensation adjusted with every subsequent **quarter payment**:

- In case of non-availability of helpdesk personal vendor will have to pay penalty of 1000 Rs. per day per person, which will be adjusted in next quarter payment

Annexure 14 – Masked Commercial Bid

S.No.	Items	OTC (One Time Cost)	YEAR 1	YEAR 2	YEAR 3	YEAR 4	YEAR 5	TOTAL
			AMT	AMT	AMT	AMT	AMT	AMT
1.	Enterprise License* Cost		X	X	X	X	X	X
2.	Implementation Cost		X	X	X	X	X	X
3.	ATS (Annual Technical Support)	X						X
4.	Integration with Bank applications mentioned as per Annexure -12 (as One time Cost)		X	X	X	X	X	X
Optional Item								
5.	Implementation Cost for 9 international territories (as One time Cost)**		X	X	X	X	X	X
6.	500 Man days***	X	X					
7.	Onsite Support Charges	X						X
8.	Integration block of additional -50-applications (As when required by the Bank)****		X	X	X	X	X	X
Total Cost of Ownership (TCO)								X

*Enterprise License would mean - Unlimited Client License for Bank Branches in India & International territories, RRBs, Subsidiaries and associates both domestic & international.

** Bank has a plan to deploy TF Solution in 9 international territories hence the vendor as part of the commercial bid submission needs to provide costing for 9 territories rollout against the OTC (One Time Cost) (The quoted price should be valid for a period of 5 years from the date of placing of purchase order). The Bank has discretion to avail the successful vendor's services for deploying TF Solution in the international territories. Further if Bank desires to deploy TF Solution in any more international territories (beyond 9 territories) during this 5-year period of price validity then the per territory rollout cost would be considered. (e.g. In case Bank requires to deploy TF Solution only for 1 international territory then the cost considered for that international territory will be calculated as "Implementation Cost for 9 international territories" *provided by the bidder in their commercial*

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divided by 9).

***Any additional customization not included in the existing scope shall be carried out by the selected vendor during the contract period and the cost will be as per the quoted Man day rate. Bank has the discretion to avail the man day services (less or more than 500 man days) during the 4-year time period beginning from the second year of implementation as per Bank's requirement at per person day cost.

****Bidder to provide the cost for Integration of any additional applications with Trade Finance solution in the block of -50- applications. However, the Bank, at its sole discretion, may avail this service on a per-application basis, and the applicable cost shall be calculated by dividing the quoted price for the respective line item by 50.

We abide by following terms and conditions

- a. All prices to be quoted in Indian Rupee (INR) only. The Bidder is expected to provide the GST amount separately in the commercial bid.
 - b. If the cost for any line item is indicated as zero then it will be assumed by the Bank that the said item is provided to the Bank without any cost.
 - c. Price Bid should be comprise values only upto 2 decimal places. For the evaluation purpose, Bank will consider values only upto 2 decimal places for all calculations & ignore all figures beyond 2 decimal places. In case of discrepancy between figures and words, the amount in words shall prevail. The Bidder has to make sure all the arithmetical calculations are accurate and Bank should not be held responsible for any incorrect calculations. However for the purpose of calculation, Bank will take the corrected figures / cost. The Price Bid submitted with an adjustable quote will be treated as non-responsive and Bid will be rejected.
 - d. There shall be no escalation for prices during the currency of 5 years contract period and any extension thereof. Bid submitted with an adjustable price quotation will be treated as non-responsive and will be rejected..
 - e. It is the responsibility of the Bidder to change or upgrade the licenses for ensuring the compliance to statutory, regulatory guidelines from RBI, TRAI, IRDA, NPCI, IBA etc. at no extra cost to the Bank.
 - f. All the payments will be released as per the payment terms on submission of invoices along with all supporting documents duly stamped and signed by Project Managers of the successful bidder and Bank officials. Bank will deduct applicable TDS, if any, as per the law of the land.
 - g. Bank reserves the right to disqualify the Bidder in case of any deviation observed in the commercial Bid.
- Further, we confirm that we will abide by all the terms and conditions mentioned in the Request for Proposal document.

Authorized Signatory

Name:

Designation:

Vendor's Corporate Name

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Annexure 15 – Commercial Bid

S.No.	Items	OTC (One Time Cost)	YEAR 1	YEAR 2	YEAR 3	YEAR 4	YEAR 5	TOTAL
			AMT	AMT	AMT	AMT	AMT	AMT
1.	Enterprise License* Cost		X	X	X	X	X	X
2.	Implementation Cost		X	X	X	X	X	X
3.	ATS (Annual Technical Support)	X						X
4.	Integration with Bank applications mentioned as per Annexure -12 (as One time Cost)		X	X	X	X	X	X
Optional Item								
5.	Implementation Cost for 9 international territories (as One time Cost)**		X	X	X	X	X	X
6.	500 Man days***	X	X					
7.	Onsite Support Charges	X						X
8.	Integration block of additional -50-applications (As when required by the Bank)****		X	X	X	X	X	X
Total Cost of Ownership (TCO)								X

*Enterprise License would mean - Unlimited Client License for Bank Branches in India & International territories, RRBs, Subsidiaries and associates both domestic & international.

** Bank has a plan to deploy TF Solution in 9 international territories hence the vendor as part of the commercial bid submission needs to provide costing for 9 territories rollout against the OTC (One Time Cost) (The quoted price should be valid for a period of 5 years from the date of placing of purchase order). The Bank has discretion to avail the successful vendor's services for deploying TF Solution in the international territories. Further if Bank desires to deploy TF Solution in any more international territories (beyond 9 territories) during this 5-year period of price validity then the per territory rollout cost would be considered.

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(e.g. In case Bank requires to deploy TF Solution only for 1 international territory then the cost considered for that international territory will be calculated as “Implementation Cost for 9 international territories” *provided by the bidder in their commercial divided by 9*).

***Any additional customization not included in the existing scope shall be carried out by the selected vendor during the contract period and the cost will be as per the quoted Man day rate. Bank has the discretion to avail the man day services (less or more than 500 man days) during the 4-year time period beginning from the second year of implementation as per Bank’s requirement at per person day cost.

****Bidder to provide the cost for Integration of any additional applications with Trade Finance solution in the block of -50-applications. However, the Bank, at its sole discretion, may avail this service on a per-application basis, and the applicable cost shall be calculated by dividing the quoted price for the respective line item by 50.

We abide by following terms and conditions

- a. All prices to be quoted in Indian Rupee (INR) only. The Bidder is expected to provide the GST amount separately in the commercial bid.
- b. If the cost for any line item is indicated as zero then it will be assumed by the Bank that the said item is provided to the Bank without any cost.
- c. Price Bid should be comprise values only upto 2 decimal places. For the evaluation purpose, Bank will consider values only upto 2 decimal places for all calculations & ignore all figures beyond 2 decimal places. In case of discrepancy between figures and words, the amount in words shall prevail. The Bidder has to make sure all the arithmetical calculations are accurate and Bank should not be held responsible for any incorrect calculations. However for the purpose of calculation, Bank will take the corrected figures / cost. The Price Bid submitted with an adjustable quote will be treated as non-responsive and Bid will be rejected.
- d. There shall be no escalation for prices during the currency of 5 years contract period and any extension thereof. Bid submitted with an adjustable price quotation will be treated as non-responsive and will be rejected..
- e. It is the responsibility of the Bidder to change or upgrade the licenses for ensuring the compliance to statutory, regulatory guidelines from RBI, TRAI, IRDA, NPCI, IBA etc. at no extra cost to the Bank.
- f. All the payments will be released as per the payment terms on submission of invoices along with all supporting documents duly stamped and signed by Project Managers of the successful bidder and Bank officials. Bank will deduct applicable TDS, if any, as per the law of the land.
- g. Bank reserves the right to disqualify the Bidder in case of any deviation observed in the commercial Bid.

Further, we confirm that we will abide by all the terms and conditions mentioned in the Request for Proposal document.

Authorized Signatory

Name:

Designation:

Vendor's Corporate Name

Annexure 16 – Binding Criteria for Technical Presentation

The following criteria must be adhered to by all bidders, in connection with the technical presentations during the bid selection process:

- At least one senior representative from bidder's organization should be present in the technical presentations
- Complete soft copies of the presentation materials should be shared with the Bank before the presentation.
- The Bank will expect and demand that the key personnel showcased by the vendor in the technical presentation should be the same ones that actively drive the project execution. (Program Manager/ All SMEs/ Solution Architect/ Enterprise Architect/ Business Analyst Lead/ QA Lead)
- Bidders must strictly adhere to the time slots provided to them for the technical presentation, allowing ample time and scope for question-answers.
- Focus of the presentation should be on the specifics of the approach / methodology being proposed for the Bank.
- Both technical and administrative aspects of the project should be given suitable coverage.
- All aspects of requirements (Scope of Work & Delivery) in the RFP should be covered in the presentation.
- All RFP requirements that are not covered by the proposed plan, or not adhered to, should be clearly brought out in the technical presentation, along with reasons / justification on why they will not be covered.
- Any assumption, if taken in the response to RFP document should be clearly brought out in the technical presentation, along with the justification.

Bank's evaluation and scoring on all aspects including technical presentation are final and non-negotiable.

Annexure 17 – Performance Bank Guarantee (PBG)**BANK GUARANTEE**

(FORMAT OF PERFORMANCE BANK GUARANTEE)

To

Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

WHEREAS M/S (Name of Bidder) a Company registered under the Indian Companies Act, 1956 and having its Registered Office at , (Please provide complete address) (hereinafter referred to as "Bidder") was awarded a contract by Bank of Baroda (the Bank) vide their Purchase Order no. dated (Hereinafter referred to as "PO") for

AND WHEREAS, in terms of the conditions as stipulated in the PO and the Request for Proposal document No. Dated For

(hereinafter referred to as "RFP"), the Bidder is required to furnish a Performance Bank Guarantee issued by a Public Sector Bank/ schedule commercial bank in India other than the Bank of Baroda in your favour for Rs. /- towards due performance of the contract in accordance with the specifications, terms and conditions of the purchase order and RFP document (which guarantee is hereinafter called as "BANK GUARANTEE").

AND WHEREAS the Bidder has approached us for providing the BANK GUARANTEE.

AND WHEREAS at the request of the Bidder, we, a body corporate in terms of the Banking Companies Acquisition and Transfer of Undertakings Act, 1970/1980 having it's Office at and a branch interalia at India have agreed to issue the BANK GUARANTEE.

THEREFORE, WE, (name of Bank and its address)through our local office at India furnish you the BANK GUARANTEE in manner hereinafter contained and agree with you as follows:

1. We do hereby expressly, irrevocably and unconditionally undertake to pay the amounts due and payable under this Guarantee without any demur, merely on demand from you and undertake to indemnify you and keep you indemnified from time to time and at all times to the extent of Rs. /- (Rupees only) against any loss or damage caused to or suffered by or that may be caused to or suffered by you on account

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of any breach or breaches on the part of the Bidder of any of the terms and conditions contained in the PO and RFP / SLA and in the event of the Bidder committing default or defaults in carrying out any of the work or discharging any obligation under the PO or RFP document or otherwise in the observance and performance of any of the terms and conditions relating thereto in accordance with the true intent and meaning thereof, we shall forthwith on demand pay to you such sum or sums not exceeding the sum of Rs...../-(Rupees

..... only) as may be claimed by you on account of breach on the part of the Bidder of their obligations or default in terms of the PO and RFP.

2. Notwithstanding anything to the contrary contained herein or elsewhere, we agree that your decision as to whether the Bidder has committed any such breach/ default or defaults and the amount or amounts to which you are entitled by reasons thereof will be binding on us and we shall not be entitled to ask you to establish your claim or claims under Bank Guarantee, but will pay the same forthwith on your demand without any protest or demur. Any such demand made by Bank of Baroda shall be conclusive as regards the amount due and payable by us to you.
3. This Bank Guarantee shall continue and hold good until it is released by you on the application by the Bidder after expiry of the relative guarantee period provided always that the guarantee shall in no event remain in force after (date) without prejudice to your claim or claims arisen and demanded from or otherwise notified to us in writing before the expiry of the said date which will be enforceable against us notwithstanding that the same is or are enforced after the said date.
4. You will have the fullest liberty without our consent and without affecting our liabilities under this Bank Guarantee from time to time to vary any of the terms and conditions of the PO and RFP or extend the time of performance of the contract or to postpone for any time or from time to time any of your rights or powers against the Bidder and either to enforce or forbear to enforce any of the terms and conditions of the said PO and RFP and we shall not be released from our liability under Bank Guarantee by exercise of your liberty with reference to matters aforesaid or by reason of any time being given to the Bidder or any other forbearance, act or omission on your part or any indulgence by you to the Bidder or any other act, matter or things whatsoever which under law relating to sureties, would but for the provisions hereof have the effect of so releasing us from our liability hereunder provided always that nothing herein contained will enlarge our liability hereunder beyond the limit of Rs. /-(Rupees..... only) as aforesaid or extend the period of the guarantee beyond the said (date) unless expressly agreed to by us in writing.
5. The Bank Guarantee shall not in any way be affected by your taking or giving up any securities from the Bidder or any other person, firm or company on its behalf or by the winding up, dissolution, insolvency or death as the case may be of the Bidder.
6. In order to give full effect to the guarantee herein contained, you shall be entitled to act

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as if we were your principal debtors in respect of all your claims against the Bidder hereby guaranteed by us as aforesaid and we hereby expressly waive all our rights of surety ship and other rights, if any, which are in any way inconsistent with any of the provisions of Bank Guarantee.

7. Subject to the maximum limit of our liability as aforesaid, Bank Guarantee will cover all your claim or claims against the Bidder from time to time arising out of or in relation to the PO and RFP and in respect of which your claim in writing is lodged on us before expiry of Bank Guarantee.
8. Any notice by way of demand or otherwise hereunder may be sent by special courier or registered post to our local address as aforesaid and if sent accordingly it shall be deemed to have been given when the same has been posted.
9. The Bank Guarantee and the powers and provisions herein contained are in addition to and not by way of limitation of or substitution for any other guarantee or guarantees hereto before given to you by us (whether jointly with others or alone) and now existing enforce and this Bank Guarantee is not intended to and shall not revoke or limit such guarantee or guarantees.
10. The Bank Guarantee shall not be affected by any change in the constitution of the Bidder or us nor shall it be affected by any change in your constitution or by any amalgamation or absorption thereof or therewith but will ensure to the benefit of and be available to and be enforceable by the absorbing or amalgamated company or concern.
11. The Bank Guarantee shall come into force from the date of its execution and shall not be revoked by us any time during its currency without your previous consent in writing.
12. We further agree and undertake to pay you the amount demanded by you in writing irrespective of any dispute or controversy between you and the Bidder in any suit or proceeding pending before any court or Tribunal relating thereto, our liability under this present being absolute and unequivocal. The payments so made by us shall be a valid discharge of our liability for payment here under and the Bidder shall have no claim against us for making such payment.
13. Notwithstanding anything contained herein above;
 - a. our liability under this Guarantee shall not exceed Rs./- (Rupeesonly)
 - b. this Bank Guarantee shall be valid and remain in force upto and including the date and
 - c. We are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before the expiry of this guarantee.
14. We have the power to issue this Bank Guarantee in your favour under the Memorandum and Articles of Association of our Bank and the undersigned has full power to execute this Bank Guarantee under the Power of Attorney issued by the Bank.

Dated this the day of, 20.....

For and on behalf of

Branch Manager

Seal and Address

NOTE:

1. VENDOR SHOULD ENSURE THAT THE SEAL & CODE NO. OF THE SIGNATORY IS PUT BY THE BANKERS, BEFORE SUBMISSION OF BG
2. STAMP PAPER IS REQUIRED FOR THE BG ISSUED BY THE BANKS LOCATED IN MUMBAI.
3. BANK GUARANTEE IF SUBMITTED, SHOULD BE ACCOMPANIED WITH COPY OF THE SFMS TRANSMITTED AT THE TIME OF ISSUE OF BANK GUARANTEE. AS PER IBA NOTIFICATION NO. PS&BT/GOVT/2305 DATED 16-MAR-2016 ALONG WITH MINISTRY OF FINANCE, GOVERNMENT OF INDIA CIRCULAR F.NO.7/112/2011-BOA DATED 08-MAR-2016 WITH RESPECT TO SENDING BANK GUARANTEE ADVICES THROUGH STRUCTURED FINANCIAL MESSAGING SYSTEM (SFMS), IT IS NECESSARY TO CONFIRM THE AUTHENTICITY OF THE BANK GUARANTEES (BG) BY SFMS MESSAGE. THE SFMS SHOULD BE SENT TO FOLLOWING BRANCH:
BRANCH NAME & ADDRESS: BANK OF BARODA, BKC BRANCH, C-26, G-BLOCK, BARODA CORPORATE CENTER, BANDRA EAST, MUMBAI-400051
IFSC CODE: BARB0BANEAS (FIFTH LETTER IS "ZERO")
4. VENDOR SHOULD ENSURE THAT THE BANK GUARANTEE SHOULD CONTAIN ALL TERMS & CONDITIONS AS PER THIS FORMAT. BANK GUARANTEE SUBMITTED WITH ANY RIDER OR DEVIATION TO THE STIPULATED TERMS & CONDITIONS WILL NOT BE ACCEPTED.

Annexure 18 – Declaration/ undertaking from bidder to comply with the Information and cyber security controls

(This letter should be on the letterhead of the Bidder duly signed by an authorized signatory)

To
Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sir,

Sub: RFP for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution.

Further to our proposal dated, in response to the Request for Proposal..... (Bank's tender No. hereinafter referred to as "RFP") issued by Bank of Baroda ("Bank") we hereby covenant, warrant and confirm as follows:

We hereby agree to comply with the Information and cyber security controls as per Bank's and Regulatory Authorities IT Security Guidelines on an ongoing basis and regulatory / legal guidelines and directives related to SP / outsourcing issued by regulators / legal entities from time to time. The SP shall provide access to the regulators, legal authorities, Bank and Bank appointed auditors for on-site/off-site supervision.

We ensure that outsourced critical IT services are subjected to the annual IT audit / Technology risk assessment process by an independent professional agency as approved by the local government or regulator at no extra cost to the Bank.

We abide with all clauses of Bank's Cyber Security Controls which will be part of the NDA/SLA signed with the Bank at the time of award of contract.

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Annexure 19 – Information/Cyber-Security Measures/Controls for selected Service Provider

1. Incident Response and Management

- 1.1 SPs must have a mechanism/ resources to take appropriate action in case of any cybersecurity incident. They must have written incident response procedures including the roles of staff/outsourced staff handling such incidents; Response strategies shall consider readiness to meet various incident scenarios based on situational awareness and potential/post impact, consistent communication and coordination with stakeholders, including specifically the bank, during response.
- 1.2 SP's BCP/DR capabilities shall adequately and effectively support the SP's cyber resilience objectives and should be so designed to enable the SP to recover rapidly from cyber-attacks/other incidents and safely resume critical operations aligned with recovery time objectives while ensuring security of processes and data is protected.
- 1.3 SPs are responsible for meeting the requirements prescribed for incident management and BCP/DR even if their IT infrastructure, systems, applications, etc., are managed by third party vendors/service providers. SPs shall have necessary arrangements, including a documented procedure for such purpose. This shall include, among other things, to inform the bank about any cybersecurity incident occurring in respect of the bank on timely basis to early mitigate the risk as well as to meet extant regulatory requirements.

2. IT Risk Management

- 2.1 The SP shall carry out Information security / cyber security risk assessment and apply risk treatment measures on regular intervals.
- 2.2 The SP shall put in appropriate cyber security measures in place and comply with the legal and regulatory guidelines and directives.
- 2.3 The SP shall be subjected to the annual IT audit / Technology risk assessment process by an independent professional agency as approved by the local government or regulator.

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

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Annexure 20 – Integrity Pact

PRE CONTRACT INTEGRITY PACT (TO BE STAMPED AS AN AGREEMENT)

This pre-bid pre-contract Agreement (hereinafter called the Integrity Pact) is made on _____ day of _____ month, 20____, between, on one hand,

BANK OF BARODA, a body corporate constituted under the provisions of Banking Companies (Acquisition and Transfer of Undertakings) Act, 1970 and having its Corporate Office at Baroda Corporate Centre, C-26, G-Block, Bandra-Kurla Complex, Bandra East, Mumbai 400051 (hereinafter referred to as “**BOB**”; which expression shall, unless it be repugnant to the meaning or context thereof, be deemed to mean and include its successors and assigns); and.....hereinafter referred to as “The Bidder”

Preamble

BOB is a one of the nationalized PSU Banks having its presence through its 8400+ number of branches and 80+ administrative offices throughout India and 15 overseas territories. BOB is committed to fair and transparent procedures in appointing of its outsource service providers.

The BOB intends to appoint/ select, under laid down organizational procedures, contract/ s for..... The BOB values full compliance with all relevant laws of the land, rules, regulations, economic use of resources and of fairness / transparency in its relations with its Bidder(s).

In order to achieve these goals, the BOB will appoint Independent External Monitors (IEM) who will monitor the tender process and the execution of the contract for compliance with the principles mentioned above.

Section 1 - Commitments of BOB

1. The BOB commits itself to take all measures necessary to prevent corruption and to observe the following principles: -
 - a. No employee of the BOB, personally or through family members, will in connection with the tender for, or the execution of a contract, demand; take a promise for or accept, for self or third person, any monetary or non-monetary benefit which the person is not legally entitled to.
 - b. The BOB will, during the tender process, treat all Bidder(s) with equity and reason. The BOB will in particular, before and during the tender process, provide to all Bidder(s) the same information and will not provide to any Bidder(s) confidential /additional information through which the Bidder(s) could obtain an advantage in relation known prejudiced persons to the tender process or the contract execution.

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- c. The BOB will make endeavor to exclude from the selection process all known prejudiced persons.
2. If the BOB obtains information on the conduct of any of its employees which is a criminal offence under the IPC/PC Act, or if there be a substantive suspicion in this regard, the BOB will inform the Chief Vigilance Officer and in addition can initiate disciplinary actions.

Section 2 - Commitments of the Bidder(s)

- a. The Bidder(s) commit themselves to take all measures necessary to prevent corruption. The Bidder(s) commit themselves to observe the following principles during participation in the tender process and during the contract execution.
- b. The Bidder(s) will not, directly or through any other person or firm, offer, promise or give to any of the BOB's employees involved in the tender process or the execution of the contract or to any third person any material or other benefit which he/ she is not legally entitled to, in order to obtain in exchange any advantage of any kind whatsoever during the tender process or during the execution of the contract.
- c. The Bidder(s) will not enter with other Bidders into any undisclosed agreement or understanding, whether formal or informal. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other actions to restrict competitiveness or to introduce cartelization in the bidding process.
- d. The Bidder(s) will not commit any offence under the relevant IPC/ PC Act; further the Bidder(s) will not use improperly, for purposes of competition or personal gain, or pass on to others, any information or document provided by the BOB as part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted electronically.
- e. The Bidder(s) of foreign origin shall disclose the name and address of the Agents/ representatives in India, if any, similarly the Bidder(s) of Indian Nationality shall furnish the name and address of the foreign principals, if any. Further details as mentioned in the "Guidelines on Indian Agents of Foreign Suppliers" shall be disclosed by the Bidder(s).
- f. The Bidder(s) will, when presenting their bid, disclose any and all payments made, is committed to or intends to make to agents, brokers or any other intermediaries in connection with the award of the contract.
- g. Bidder(s) who have signed the Integrity Pact shall not approach the Courts while representing the matter to IEMs and shall wait for their decision in the matter.
3. The Bidder(s) will not instigate third persons to commit offences outlined above or be an accessory to such offences.

Section 3 - Disqualification from tender process and exclusion from future contracts

If the Bidder, before contract award has committed a transgression through a violation of Section 2 or in any other form such as to put his reliability or credibility as Bidder into question, the Principal is entitled to disqualify the Bidder from the tender process or to terminate the contract, if already signed, for such reason.

Section 4 - Compensation for Damages

- (1) If the BOB has disqualified the Bidder(s) from the tender process prior to the award according to Section 3, the BOB is entitled to demand and recover the damages equivalent to Earnest Money Deposit/ Bid Security.
- (2) If the BOB has terminated the contract according to Section 3, or if the BOB is entitled to terminate the contract according to Section the BOB shall be entitled to demand and recover from the Bidder liquidated damages of the Contract value or the amount equivalent to Performance Bank Guarantee.

Section 5 - Previous transgression

- (1) The Bidder declares that no previous transgressions occurred in the last three years with any other Company in any country conforming to the anti-corruption approach or with any Public Sector Enterprise in India that could justify his exclusion from the tender process.
- (2) If the Bidder makes incorrect statement on this subject, he can be disqualified from the tender process or action can be taken as per the procedure mentioned in "Guidelines on Banning of business dealings".

Section 6 - Equal treatment of all Bidders

- (1) In case of Sub-contracting, the Principal Bidder shall take the responsibility of the adoption of Integrity Pact by the Sub-Bidder.
- (2) The BOB will enter into agreements with identical conditions as this one with all Bidders.
- (3) The BOB will disqualify from the tender process all bidders who do not sign this Pact or violate its provisions.

Section 7 - Criminal charges against violating Bidder(s)

If the BOB obtains knowledge of conduct of a Bidder, or of an employee or a representative or an associate of a Bidder which constitutes corruption, or if the BOB has substantive suspicion in this regard, the BOB will inform the same to the Chief Vigilance Officer.

Section 8 - Independent External Monitor

- (1) The BOB has appointed competent and credible Independent External Monitors (hereinafter referred to as monitors) for this Pact in consultation with the Central Vigilance Commission. Name: Shri Umesh Kumar (email id: umeshkumar84@rediffmail.com) and Dr. Sandeep Tripathi (email id sandeeptrip.ifs@gmail.com) the task of the Monitors is to review independently and objectively, whether and to what extent the parties comply with the obligations under this agreement.

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- (2) The Monitor is not subject to instructions by the representatives of the parties and performs his/ her functions neutrally and independently. The Monitor would have access to all Contract documents, whenever required. It will be obligatory for him / her to treat the information and documents of the Bidders as confidential.
- (3) The Bidder(s) accepts that the Monitor has the right to access without restriction to all Project documentation of the BOB including that provided by the Bidder. The Bidder will also grant the Monitor, upon his/ her request and demonstration of a valid interest, unrestricted and unconditional access to their project documentation. The same is applicable to Sub-Bidders.
- (4) The Monitor is under contractual obligation to treat the information and documents of the Bidder(s) with confidentiality. The Monitor has also signed 'Non-Disclosure of Confidential Information '. In case of any conflict of interest arising during the selection period or at a later date, the IEM shall inform BOB and recuse himself / herself from that case.
- (5) The BOB will provide to the Monitor sufficient information about all meetings among the parties related to the Project provided such meetings could have an impact on the contractual relations between the BOB and the Bidder. The parties offer to the Monitor the option to participate in such meetings.
- (6) As soon as the Monitor notices, or believes to notice, a violation of this agreement, he/ she will so inform the Management of the BOB and request the Management to discontinue or take corrective action, or to take other relevant action. The monitor can in this regard submit non-binding recommendations. Beyond this, the Monitor has no right to demand from the parties that they act in a specific manner, refrain from action or tolerate action.
- (7) The Monitor will submit a written report to the BOB officials within 15 days from the date of reference or intimation to him by the BOB and, should the occasion arise, submit proposals for correcting problematic situations.
- (8) If the Monitor has reported to the BOB , a substantiated suspicion of an offence under relevant IPC/ PC Act, and the BOB has not, within the reasonable time taken visible action to proceed against such offence or reported it to the Chief Vigilance Officer, the Monitor may also transmit this information directly to the Central Vigilance Commissioner.
- (9) The word ' Monitor ' would include both singular and plural.

Section 9 Facilitation of Investigation

In case of any allegation of violation of any provisions of this Pact or payment of commission, the BUYER or its agencies shall be entitled to examine all the documents including the Books of Accounts of the BIDDER and the BIDDER shall provide necessary information and documents in English and shall extend all possible help for the purpose of such examination

Section 10 - contract has been awarded. Any violation of the same would entailed is qualification of the Pact Duration

This Pact begins when both parties have legally signed it. It expires for the selected Bidder till the contract period, and for all other Bidders, 6 months after the bidders and exclusion from future business dealings.

If any claims made/lodged during this time, the same shall be binding and continue to be valid despite the lapse of this pact as specified above, unless it is discharged / determined by BOB.

Section 11 - Other provisions

- (1) This agreement is subject to Indian Law. Place of performance and jurisdiction is the Corporate Office of the BOB, i.e. Mumbai.
- (2) Changes and supplements as well as termination notices need to be made in writing.
- (3) If the Bidder is a partnership or a consortium, this agreement must be signed by all partners or consortium members.
- (4) Should one or several provisions of this agreement turn out to being valid, the remainder of this agreement remains valid. In this case, the parties will strive to come to an agreement to the original intentions.
- (5) Issues like scope of work, Warranty/ Guarantee etc. shall be outside the purview of IEMs.
- (6) In the event of any contradiction between the Integrity Pact and RFP/ RFQ/ tender documents and its Annexure, the Clause in the Integrity Pact will prevail.

(For & Onbehalf of the BOB)

(Office Seal)

(For & Onbehalf of Bidder)

(Office Seal)

Witness1:

(Name&Address)_____

Witness2:

(Name&Address)_____

Place-----

Date-----

Annexure 21 – SERVICE LEVEL AND NON-DISCLOSURE AGREEMENT FORMAT

SERVICE LEVEL AND NON-DISCLOSURE AGREEMENT

This Agreement is made at _____ on this.....day of20... by and between

BANK OF BARODA, body corporate constituted under the Banking Companies [Acquisition & Transfer of Undertakings] Act 1970 having its Head Office at Mandvi, Baroda and Corporate Office at Baroda Corporate Centre, C-26, G-Block, Bandra Kurla Complex, Bandra (East), Mumbai- 400051, hereinafter for brevity sake referred to as “**Bank**” (which expression shall, unless repugnant to the context or meaning, include its successors and assigns) of the one Part;

AND

_____, a company incorporated under the Companies Act 1956/2013, India, having its registered office at _____, hereinafter referred to as “**the Service Provider**” (which expression shall, unless repugnant to the context and meaning thereof include its subsidiaries, affiliates, successors and permitted assigns) of the other Part,

(Bank and the Service Provider hereinafter are individually referred to as “Party” and collectively as “Parties”)

WHEREAS

Bank of Baroda is one of the largest public sector banks (PSU) in India with a branch network of over 8400+ branches in India and 80+ branches/ offices overseas including branches of our subsidiaries, distributed in 15 countries. Bank desires to select a Service Provider for ----- and had invited offers.

In response to RFP / Bid no ----- dated ----- issued by Bank, the Service Provider also submitted its offer and has represented that it is engaged in the business of ----- . It further represented to Bank that it has the requisite skill, knowledge, experiences, experts, staff and capability to provide required service to Bank. Relying on representations of Service Provider and other applicable criteria, Service Provider was declared as a successful bidder in the RFP evaluation process. Accordingly Bank has issued a -----.

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It was a condition in the RFP that the Parties would enter into a Service Level and Non-Disclosure Agreement which shall include all the services and terms and conditions of the services to be extended as detailed here in.

NOW, THEREFORE, THIS AGREEMENT WITNESSETH AS FOLLOWS

1. DEFINITIONS

- I. Bank, BOB means 'Bank of Baroda'
- II. ATP means Acceptance Test Procedure
- III. AMC means Annual Maintenance Contract
- IV. BFSI means Banking, Financial services and Insurance
- V. DC Means Data Centre
- VI. DR Means Data Recovery Centre
- VII. MSP means Managed Service Provider of the Bank.
- VIII. SLA means Service Level Agreement
- IX. Total Cost of Ownership (TCO)
- X. SPOC means Single Point of Contact

2. TERM

This Agreement shall come into force from date of issuance of Purchase Order and shall be in force and effect for a period of _____ years from the Go-Live Sign-off date given by Bank officials, unless Bank terminates the Agreement by giving a prior written notice of _____ days as per the terms of this Agreement.

The contract will be deemed completed only when all the items and services contracted by the Bank are provided in good condition, installed, tested and accepted along with the associated documentation provided to concerned Bank officials as per the requirements of the contract executed between the Bank and M/s. _____. Bank may extend /renew the contract for further period on mutually agreed terms and conditions.

3. SCOPE OF SERVICE

The Service Provider agrees to perform the services as part of the scope of this engagement including but not limited to as mentioned in Schedule I of this Agreement. Bank of Baroda reserves its right to change the scope of the services considering the size and variety of the requirements and the changing business & security conditions /environment with mutual consent.

The solutions shall be designed in such a way that they cover all the divisions of the Bank's Data Centre i.e., Domestic, Foreign territories and its RRBs, associates, subsidiaries, having separate networks & all separate network segments of each. Bank at its discretion, may use and/or procure (any/all) solution / hardware and its licenses as per the same quoted rates for its RRBs, associates, subsidiaries upon arising the requirements for them. Moreover, Bank reserves the right to use, relocate the licenses procured interchangeably to its RRBs, associates, subsidiaries, any of BoB's associates at its own discretion.

4. STANDARDS

All standards to be followed shall adhere to Bureau of Indian Standards (BIS) specifications or other acceptable standards, IT and Cyber policies, internal guidelines, regulatory standards and countrywide regulations and laws from time to time.

5. Code of Ethics

The Service Provider shall comply with the Bank's Code of Ethics, available on the Bank's website>Shareholder's Corner> Policies/Codes> Our Code of Ethics, during the validity period of this agreement/contract.

<https://www.bankofbaroda.in/customer-support/policy-documents>

6. DELIVERY

(Terms mentioned in the RFP)

7. Transportation and Insurance

(Terms mentioned in the RFP)

8. Pre-shipment Inspections

(Terms mentioned in the RFP)

9. Supply, Installation, Testing, Commissioning & Acceptance (SITC)

(Terms mentioned in the RFP)

10. Warranty

(Terms mentioned in the RFP)

11. DOCUMENTATION

The Service Provider shall supply all necessary documentation for the training, use and operation of the system. This will include at least one set of original copies per installation of the user manuals, reference manuals, operations manuals, and system management manuals in English/Hindi.

12. SINGLE POINT OF CONTACT & DIRECT SUPPORT

(Please incorporate following details – Name, designation, address, email address, telephone /mobile No...

Escalation matrix for support should also be provided with full details.

13. PAYMENT TERMS

The method and conditions of payments to be made to the successful bidder shall be:

(Terms mentioned in the RFP)

There shall be no escalation in the prices once the prices are fixed and agreed to by the Bank and the bidder. Payment will be released by IT Dept., as per above payment terms on submission of relevant documents.

The Bank will pay invoices within a period of 30 days from the date of receipt of undisputed invoices. Any dispute regarding the invoice will be communicated to the selected bidder within 15 days from the date of receipt of the invoice. After the dispute is resolved, Bank shall endeavour to make payment within 30 days from the date the dispute stands resolved. Further, the above payments will be released only after submission of PBG, signing of SLA (including Do & Don't) and NDA by Successful Bidder. However, Bank shall not pay any type of compensation/penalty for late payment of invoice for any reason.

14. SET-OFF

Without prejudice to other rights and remedies available to Bank, Bank shall be entitled to set-off or adjust any amounts due to Bank under this clause from the Service Provider against payments due and payable by Bank to the Service Provider for the services rendered.

The provisions of this Clause shall survive the termination of this Agreement.

15. COVENANTS OF THE SERVICE PROVIDER

The Service Provider shall deploy and engage suitably experienced and competent personnel as may reasonably be required for the performance of the services. During the currency of this Agreement, the Service Provider shall not substitute the key staff identified for the services mentioned in this Agreement.

The Service Provider shall forthwith withdraw or bar any of its employee/s from the provision of the services if, in the opinion of BANK:

- (i) The quality of services rendered by the said employee is not in accordance with the quality specifications stipulated by BANK; or
- (ii) The engagement or provision of the services by any particular employee is prejudicial to the interests of BANK.

All employees engaged by the Service Provider shall be in sole employment of the Service Provider and the Service Provider shall be solely responsible for their salaries, wages, statutory payments etc. That under no circumstances shall BANK be liable for any payment or claim or compensation (including but not limited to compensation on account of

injury/death/termination) of any nature to the employees and personnel of the Service Provider.

The Service provider and sub-contractor, if any, is required to adhere to RBI guidelines for storage of data in India as per regulatory requirements, also to provide complete details of data captured, processed and stored, maintain confidentiality of the Bank's and its customers data and report the same to the Bank. The Service provider will be liable to the Bank for any event of security breach and leakage of data/information. The Service Provider and sub-contractor, if any, should not store or share any data outside the Bank's infrastructure.

The Service Provider:

- i. The Service provider shall be responsible for all negotiations with personnel relating to salaries and benefits and shall be responsible for assessments and monitoring of performance and for all disciplinary matters.
- ii. The Service provider shall not knowingly engage any person with a criminal record/conviction and shall bar any such person from participating directly or indirectly in the provision of services under this Agreement.
- iii. The Service provider shall at all times use all reasonable efforts to maintain discipline and good order amongst its personnel.
- iv. The Service provider shall not exercise any lien on any of the assets, documents, instruments or material belonging to BANK and in the custody of the Service Provider for any amount due or claimed to be due by the Service Provider from BANK.
- v. The Service provider shall regularly provide updates to BANK with respect to the provision of the services and shall meet with the personnel designated by BANK to discuss and review its performance at such intervals as may be agreed between the Parties.
- vi. The Service provider shall be responsible for compliance of all laws, rules, regulations and ordinances applicable in respect of its employees, sub-contractors and agents (including but not limited to code of Wages Act, Provident Fund laws, Workmen's Compensation Act) and shall establish and maintain all proper records including, but not limited to, accounting records required by any law, code, practice or corporate policy applicable to it from time to time, including records and returns as applicable under labor legislations.
- vii. The Service provider shall not violate any proprietary and intellectual property rights of BANK or any third party, including without limitation, confidential relationships, patent, trade secrets, copyright and any other proprietary rights in course of providing services hereunder.
- viii. The Service provider shall ensure that the quality and standards of materials and services to be delivered or rendered hereunder, will be of the kind, quality and

timeliness as designated by the BANK and communicated to the Service Provider from time to time.

- ix. The Service provider shall not work in a manner which, in the reasonable opinion of BANK, may be detrimental to the interests of BANK and which may adversely affect the role, duties, functions and obligations of the Service Provider as contemplated by this Agreement.
- x. The Service provider shall be liable to BANK for any and all losses of any nature whatsoever arisen directly or indirectly by negligence, dishonest, criminal or fraudulent act of any of the representatives and employees of the Service Provider while providing the services to the BANK.
- xi. The Service provider shall itself perform the obligations under this Agreement and shall not assign, transfer or sub-contract any of its rights and obligations under this Agreement except with prior written permission of BANK.
- xii. The Service provider shall be responsible for applicable insurance coverage such as ESI, Workmen compensation and Employer's Liability Insurance, Accident or injury to workmen Transit Insurance Comprehensive General Liability Insurance, any other insurance required under Law of Regulations or by Employer etc.
- xiii. The Service provider shall supply a confirmation to the effect that they are not owned or controlled by any director, or key managerial personnel, or approver of the Bank, or their relatives. The terms 'control', 'director', 'key managerial personnel', and 'relative' have the same meaning as assigned under the Companies Act, 2013 and the Rules framed thereunder from time to time. The Service provider shall also inform the Bank in writing if any such occasion arises in future where such ownership or control is exercised by any director, or key managerial personnel, or approver of the Bank, or their relatives.
- xiv. The Service provider shall provide a confirmation to the effect that their entity is not funded by Bank of Baroda and hence no sacrifice from the Bank's side is involved

OR

Bidder confirms that their entity is funded by Bank of Baroda and there is no sacrifice involved."

OR

Bidder confirms that their entity is funded by Bank of Baroda and amount of sacrifice involved is Rs. _____"

- xv. The Service provider shall ensure that background verification of all the resources to be deployed on the Bank of Baroda project / on the Bank's premises has been / will be carried out. Whenever required, we shall provide such report within 1 month from the date of on boarding the resources on the project. For subsequent deployment of resources during the contract period, on boarding of the resource to be done preferably after background verification, however not later than 1 month from the date of on boarding.
- xvi. The Service provider shall ensure that it is complying with all the directions and clauses as stated in the said circulars:

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- c) RBI/2023-24/102 DoS.CO.CSITEG/SEC.1/31.01.015/2023-24 dated 10.04.2023 regarding Master Direction on Outsourcing of Information Technology Services
- d) RBI/2023-24/107 DoS.CO.CSITEG/SEC.7/31.01.015/2023-24 dated 07.11.2023 regarding Master Direction on Information Technology Governance, Risk, Controls and Assurance Practices
- xvii. The Service provider along with the resources deployed by it and services provided by it, shall ensure compliance of all the clauses and directions of the aforesaid circulars and any subsequent circular/guidelines on the same, throughout the period of the contract.
- xviii. The commercial proposal is inclusive of all costs till acceptance of the application / hardware / deliverables as per scope of work by the Bank. The vendor has the option to use transportation from any eligible source. Insurance cover may be taken by the vendor from any eligible source till the acceptance of the Hardware items by Bank. Hence, insurance shall be at sole responsibility of the vendor. The vendor shall also assure that the product would be replaced with no cost to Bank in case insurance cover is not taken.
- xix. The Service provider shall co-operate with the relevant authorities in case of insolvency/ resolution of the Bank.
- xx. After consulting the bank, the service provider shall identify some of the deployed resources as Essential Personnel under this Agreement. Essential Personnel refers to those who can work on-site during exigencies (including pandemic situations). The roles (Level 1/Level 2/Level 3 and higher) and number of Essential Personnel required may change during exigencies, subject to mutual agreement between the parties. (Where onsite resources are part of SoW requirement).
- xxi. The Service provider shall ensure to have provision for the secure removal and/or destruction of data, hardware and all records (both digital and physical), if necessary. To ensure the seamless transition, the vendor should cooperate fully with the Bank / the new service provider and agree not to delete, purge, revoke, alter or update any data during this time unless specifically instructed to do so by the Bank/regulator.
- xxii. The Service provider shall ensure to have effective business continuity and disaster recovery plan and to ensure the agreed upon service levels. The Service provider shall develop and establish a robust framework for documenting, maintaining and periodic testing of business continuity and recovery procedures and shall maintain a record of the same as per applicable law. The Service Provider shall periodically test the Business Continuity and Management of Disaster Recovery Plan. The Bank may consider joint testing and recovery exercise with the Service provider/vendor.

16. CONFIDENTIALITY

The Service Provider acknowledges that in the course of performing the obligations under this Agreement, it shall be exposed to or acquire information of the bank, which the Service Provider shall treat as confidential.

- a. Bank of Baroda product and process details, documents, data, applications, software, systems, papers, statements and business / customer information which may be communicated to or come to the knowledge of Service Provider or Service Provider's employees during the course of discharging their obligations shall be treated as absolutely confidential and Service Provider irrevocably agrees and undertakes and ensures that Service Provider and its employees shall keep the same secret and confidential and not disclose the same, in whole or in part to any third party without prior written permission of Bank of Baroda. The Service Provider shall not use or allow to be used any information other than as may be necessary for the due performance by Service Provider of its obligations hereunder.
- b. The Service provider shall not make or retain any copies or record of any Confidential Information submitted by Bank of Baroda other than as may be required for the performance of Service Provider.
- c. The Service provider shall notify Bank of Baroda promptly of any unauthorized or improper use or disclosure of the Confidential Information.
- d. The Service provider shall return all the Confidential Information that is in its custody, upon termination / expiry of this Agreement. Also, so far as it is practicable Service Provider shall immediately expunge any Confidential Information relating to the projects from any computer, word processor or other device in possession or in the custody and control by Service Provider or its affiliates.
- e. The Service provider shall extent practicable, immediately furnish a certificate signed by its director or other responsible representative confirming that to the best of his/her knowledge, information and belief, having made all proper enquiries the requirements of this paragraph have been fully complied with.
- f. The service provider hereby unconditionally agrees and undertakes that it and its employees shall not disclose the terms and conditions of the engagement Agreement/ Work Order or any other oral or written information which may contain, hold or bear confidential information or disclose the information submitted by Bank of Baroda under any other Agreement to any third party unless such disclosure is mandatorily required by law or if it is required necessarily to be disclosed to any other agency/subcontractor or the like for the purpose of performing any of its obligations under the agreement.
- g. It shall be the incumbent duty of the Service Provider to undertake not to disclose any business related information of Bank to any third person and the Service Provider shall keep all knowledge of the business activities and affairs of Bank strictly confidential and shall

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ensure that neither the Service Provider nor any of its officers, employees directly or indirectly assist any third person with the promotion of activities which may be prejudicial to the interest or in competition to the activities of Bank. Service provider shall also ensure to keep the Bank's data separate from data of other entities to whom services are being provided.

However, the Confidential Information will not be limited to the information mentioned above but not include the following as Confidential Information:

- a) Without breach of these presents, has already become or becomes and/or hereinafter will become part of the public domain;
- b) Prior to the disclosure by BoB was known to or in the possession of the Service Provider at the time of disclosure;
- c) Was disclosed or parted with the prior consent of BoB;
- d) Was acquired by Service Provider from any third party under the conditions such that it does not know or have reason to know that such third party acquired directly or indirectly from Bank of Baroda.

The Service provider shall take all necessary action to protect Confidential Information against misuse, loss, destruction, deletion and/or alteration. It shall neither misuse or permit misuse directly or indirectly, nor commercially exploit the Confidential Information for economic or other benefit.

In any dispute over whether information or matter is Proprietary Information or not mentioned herein, it shall be the burden of Service Provider to show that such contested information or matter is not Proprietary Information within the meaning of this Agreement, and that it does not constitute violation under any laws for the time being enforced in India.

The confidentiality obligations shall survive the expiry or termination of this Agreement between the Service Provider and the Bank.

17. INDEMNITY

The Service Provider shall indemnify the Bank, and shall always keep indemnified and hold the Bank, its employees, personnel, officers, directors, (hereinafter collectively referred to as "Personnel") harmless from and against any and all losses, liabilities, claims, actions, costs and expenses (including attorneys' fees) relating to, resulting directly or indirectly from or in any way arising out of any claim, suit or proceeding brought against the Bank as a result of:

- a. Bank's authorized / Bonafide use of the Deliverables and /or the Services provided by Service Provider under this Agreement; and/or
- b. an act or omission of the Service Provider and/or its employees, agents, sub-contractors in performance of the obligations under this Agreement; and/or
- c. claims made by employees or subcontractors or subcontractors' employees, who are deployed by the Service Provider, against the Bank; and/or

- d. claims arising out of employment, non-payment of remuneration and non-provision of statutory benefits by the Service Provider to its employees, its agents, contractors and sub-contractors
- e. breach of any of the term of this Agreement or breach of any representation or false representation or inaccurate statement or assurance or covenant or warranty of the Service Provider under this Agreement; and/or
- f. any or all Deliverables or Services infringing any patent, trademarks, copyrights or such other Intellectual Property Rights; and/or
- g. breach of confidentiality obligations of the Service Provider contained in this Agreement; and/or
- h. Negligence or gross misconduct attributable to the Service Provider or its employees or sub-contractors.

The Service Provider shall be responsible for applicable insurance coverage such as ESI, Workmen compensation and Employer's Liability Insurance, Accident or injury to workmen Transit Insurance Comprehensive General Liability Insurance, any other insurance required under Law of Regulations or by Employer etc. and indemnifies the Bank against all claims under such requirements.

The Service Provider shall at its own cost and expenses defend or settle at all point of time any claim against the Bank that the Deliverables and Services delivered or provided under this Agreement infringe a patent, utility model, industrial design, copyright, trade secret, mask work or trade mark in the country where the Deliverables and Services are used, sold or received, the Bank:

- notifies the Service Provider in writing as soon as practicable when the Bank becomes aware of the claim; and
- Co-operates with the Service Provider in the defense and settlement of the claims.

However, (i) the Service Provider has sole control of the defense and all related settlement negotiations (ii) the Bank provides the Service Provider with the assistance, information and authority reasonably necessary to perform the above and (iii) the Bank does not make any statements or comments or representations about the claim without the prior written consent of the Service Provider, except where the Bank is required by any authority/regulator to make a comment/statement/representation.

If use of deliverables is prevented by injunction or court order because of any such claim or deliverables is likely to become subject of any such claim then the Service Provider, after due inspection and testing and at no additional cost to the Bank, shall forthwith either 1) replace or modify the software / equipment with software / equipment which is functionally equivalent and without affecting the functionality in any manner so as to avoid the infringement; or 2) obtain a license for the Bank to continue the use of the software / equipment, as required by the Bank as per the terms and conditions of this Agreement and to meet the service levels; or 3) refund to the Bank the amount paid for the infringing

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software / equipment and bear the incremental costs of procuring a functionally equivalent software / equipment from a third party, provided the option under the sub clause (3) shall be exercised by the Bank in the event of the failure of the Service Provider to provide effective remedy under options (1) to (2) within a reasonable period which would not affect the normal functioning of the Bank.

The Service Provider shall not be liable for defects or non-conformance resulting from:

- a. Software, hardware, interfacing, or supplies for the solution not approved by Service Provider; or
- b. any change, not made by or on behalf of the Service Provider, to some or all of the deliverables supplied by the Service Provider or modification thereof, provided the infringement is solely on account of that change ;

Indemnity shall exclude indirect, consequential and incidental damages. However, indemnity would cover damages, loss or liabilities suffered by the Bank arising out of claims made by customer and / or regulatory authorities for reasons attributable to breach of obligations under this agreement by the Service Provider.

In the event of Service Provider not fulfilling its obligations under this clause within the period specified in the notice issued by the Bank, the Bank has the right to recover the amounts due to it under this provision from any amount payable to the Service Provider under this project.

The indemnities under this clause are in addition to and without prejudice to the indemnities given elsewhere in this Agreement. The provisions of this Clause shall survive the termination of this Agreement.

18. INTELLECTUAL PROPERTY RIGHTS

Each Party owns and retains all rights, title and interests in and to its respective Pre-Existing Intellectual Property and Independent Intellectual Property. Independent Intellectual Property means any Intellectual Property developed by a Party independently of the applicable statement of work. "Pre-Existing Intellectual Property" means any Intellectual Property owned by a Party, or licensed to such Party (other. than by the other Party), as at the commencement date of the applicable statement of work.

Whereas title to all inventions and discoveries made jointly by the parties resulting from the Work performed as per this agreement shall reside jointly between the parties. Both the parties shall mutually decide the future course of action to protect/ commercial use of such joint IPR. The Intellectual Property Rights shall be determined in accordance with Indian Laws.

Without prejudice to above paras all the interim/ final deliverables shall be property of bank. Subject to requisite payments the service provider deemed to grant exclusive, perpetual rights to use of the deliverables in favor of bank.

19. PERFORMANCE GUARANTEE

The Service Provider, shall provide unconditional and irrevocable Performance Bank Guarantee for INR _____/- (Indian Rupees _____only) in favor of Bank of Baroda from any schedule commercial Bank in India other than Bank of Baroda as acceptable to Bank of Baroda due performance of the contract in accordance of this Agreement. The Performance Guarantee shall be valid for a period of ____ months with additional claim period of three months after expiry of validity period.

20. TERMINATION

In following events Bank shall terminate this assignment or cancel any particular order if service provider:

- a. Breaches any of its obligations set forth in this agreement and such breach is not cured within 15) Working Days after Bank gives written notice; or
- b. Failure by Service Provider to provide Bank, within 15) Working Days, with a reasonable plan to cure such breach, which is acceptable to the Bank. Or
- c. The progress regarding execution of the contract/ services rendered by the Service Provider is not as per the prescribed time line, and found to be unsatisfactory.
- d. Supply of substandard materials/ services
- e. Delay in delivery / installation / commissioning of services.
- f. Discrepancy in the quality of service / security expected during the implementation, rollout and subsequent maintenance process.
- g. If deductions of penalty exceed more than 10% of the total contract price.

Further Bank may terminate this agreement on happening of following events:

- a. A liquidator or a receiver is appointed over all or a substantial part of the undertaking, assets or revenues of the Service Provider and such appointment continues for a period of twenty one (21) days;
- b. The Service Provider is subject of an effective resolution for its winding up other than a voluntary winding up for the purpose of reconstruction or amalgamation.
- c. The Service Provider becomes insolvent or goes into liquidation voluntarily or otherwise
- d. An attachment is levied or continues to be levied for a period of 7 days upon effects of the Agreement.
- e. The Service Provider becomes the subject of a court order for its winding up.

- f. The Service provider is unable to pay its debt as they fall due or otherwise enters into any composition or arrangement with or for the benefit of its creditors or any class thereof;

Notwithstanding above, in case of change of policy or any unavoidable circumstances or without any reason Bank reserve the right to terminate this assignment or any subsequent agreement and / or any particular order, in whole or in part by giving Service Provider at least 30 days prior notice in writing.

Effect of termination

If bank terminates or cancels the assignment on the default mentioned in the termination clause, in such case Bank of Baroda reserves the right to get the balance contract executed by another party of its choice. In this event, the Service Provider shall be bound to make good the additional expenditure which the Bank may have to incur to carry out bidding process for the selection of a new service provider and for execution of the balance of the contract.

Immediately upon the date of expiration or termination of the Agreement, Bank shall have no further obligation to pay any fees for any periods commencing on or after such date.

Without prejudice to the rights of the Parties, upon termination or expiry of this Agreement, Bank shall pay to Service Provider, within thirty (30) days of such termination or expiry, All the undisputed fees outstanding till the date of termination;

Upon the termination or expiry of this Agreement:

- a) The rights granted to the Service Provider shall immediately terminate.
- b) The Service Provider shall not be relieved of its obligations under the reverse transition mechanism notwithstanding the termination of the agreement.
- c) The Parties therefore agree and undertake that an exit at any point in time resulting due to expiry or termination of this Tender and subsequent Agreement for any reason whatsoever would be a slow process over a period of six (6) months, after the completion of the notice period of three (3) months. During this period, the Vendor shall continue to provide the Deliverables and the Services in accordance with this Tender and subsequent Agreement and shall maintain the agreed Service levels
- d) At the end of contract period and / or as and when desired by the Bank, Vendor must arrange for data as per bank format / process reverse migration to Bank or to new service provider, as & when finalized by the Bank at free of cost.
- e) Upon Bank's request, with respect to (i) any agreements for maintenance, disaster recovery services or other third-party services, and any Deliverables not owned by the Service Provider, being used by Service Provider to provide the Services and (ii) the assignable agreements, Service Provider shall, use its reasonable commercial endeavors to transfer or assign such agreements and Service Provider Equipment to

Bank and its designee(s) on commercially reasonable terms mutually acceptable to both Parties.

- f) Upon Bank's decision in writing, Service Provider shall be under an obligation to transfer to Bank or its designee(s) the Deliverables being used by Service Provider to perform the Services free and clear of all liens, security interests, or other encumbrances at a value calculated as stated.

In the event that this Agreement is terminated for any reasons, either Party shall forthwith hand over to the other the possession of all documents, material and any other property belonging to the other that may be in the possession of the Party or any of its employees, agents or individuals.

In the event the Bank terminates the Contract on the ground of default/ breach in whole or in part, the Bank may, among other applicable remedies, procure Goods, Works or Services similar to those undelivered upon such terms and in such manner as it deems appropriate, and hold the Service Provider liable to the Bank for any excess costs for such similar Goods, Works or Services. However, the Service Provider shall continue performance of the Contract to the extent not terminated.

- a. The rights granted to the Service Provider shall immediately terminate.
- b. Upon Bank's request, with respect to (i) any agreements for maintenance, disaster recovery services or other third-party services, and any Deliverables not owned by the Service Provider, being used by Service Provider to provide the Services and (ii) the assignable agreements, Service Provider shall, use its reasonable commercial endeavors to transfer or assign such agreements and Service Provider Equipment to Bank and its designee(s) on commercially reasonable terms mutually acceptable to both Parties.
- c. Upon Bank's request in writing, Service Provider shall be under an obligation to transfer to Bank or its designee(s) the Deliverables being used by Service Provider to perform the Services free and clear of all liens, security interests, or other encumbrances at a value calculated as stated.

21. CORPORATE AUTHORITY

The Parties represent that they have taken all necessary corporate action and sanction to authorize the execution and consummation of this Agreement and will furnish satisfactory evidence of same upon request.

22. LAW, JURISDICTION AND DISPUTE RESOLUTION

The provisions of this Agreement shall be governed and construed and enforced in accordance with the laws of India. Both Parties shall agree that in respect of any dispute arising upon, over or in respect of any of the terms of this Agreement, only the courts in

Mumbai shall have exclusive jurisdiction to try and adjudicate such disputes to the exclusion of all other courts.

ARBITRATION

- a) The Bank and the Service Provider shall make every effort to resolve amicably, by direct informal negotiation between the respective project managers/ directors of the Bank and the Service Provider, any disagreement or dispute arising between them under or in connection with the contract.
- b) If the Bank project manager/director and Service Provider project manager/ director are unable to resolve the dispute after thirty days from the commencement of such informal negotiations, they shall immediately escalate the dispute to the senior authorized personnel designated by the Service Provider and Bank respectively.
- c) If after thirty days from the commencement of such negotiations between the senior authorized personnel designated by the Service Provider and Bank, the Bank and the Service Provider have been unable to resolve contractual dispute amicably, either party may require that the dispute be referred for resolution through formal arbitration.
- d) All questions, disputes or differences arising under and out of, or in connection with the contract or carrying out of the work whether during the progress of the work or after the completion and whether before or after the determination, abandonment or breach of the contract shall be referred to arbitration by a sole Arbitrator acceptable to both parties OR the number of arbitrators shall be three, with each side to the dispute being entitled to appoint one arbitrator. The two arbitrators appointed by the parties shall appoint a third arbitrator shall act as the chairman of the proceedings.
- e) The place of arbitration shall be Mumbai. The Arbitration and Conciliation Act 1996 or any statutory modification thereof shall apply to the arbitration proceedings
- f) The arbitral award shall be in writing, state the reasons for the award, and be final and binding on the parties. The award may include an award of costs, including reasonable attorneys' fees and disbursements. Judgment upon the award may be entered by any court having jurisdiction thereof or having jurisdiction over the relevant Party or its assets.

23. AUDIT and INSPECTION

Service Provider and or its / their outsourced agents/subcontractors (if allowed by the Bank) records with respect to any matters covered by this Agreement shall be made available to auditors and/or inspecting officials of the Bank and/or Reserve Bank of India and/or any regulatory authority, at any time during normal business hours, as often as the Bank deems necessary, to audit, examine, and make excerpts or transcripts of all relevant data. Said records are subject to examination. Bank's auditors would execute confidentiality agreement with the Service Provider provided that the auditors would be permitted to submit their findings to the Bank, which would be used by the Bank. The cost of the audit will be borne by the Bank. The scope of such audit would be limited to Service Levels being covered

under the contract, and financial information would be excluded from such inspection, which will be subject to the requirements of statutory and regulatory authorities.

The Bank and its authorized representatives, including Reserve Bank of India (RBI) or any other regulator shall have the right to visit any of the Service Provider's and or his/their outsourced agents/subcontractors (if allowed by the Bank) premises without prior notice to ensure that data provided by the Bank is not misused. The Service Provider shall cooperate with the authorized representative/s of the Bank and shall provide all information/documents required by the Bank.

Compliance with best security practices may be monitored periodically by computer security audits / Information Security Audits performed by or on behalf of the Bank. The periodicity of these audits will be decided at the discretion of the Bank. These audits may include, but are not limited to, a review of access and authorization procedures, backup and recovery procedures, network security controls and program change controls. The Service Provider must provide the Bank access to various monitoring and performance measurement systems. Service Provider has to remedy all discrepancies observed by the auditors at no additional cost to the Bank.

24. LIMITATION OF LIABILITY

- a) Except the grounds mentioned under the para two of this clause, Service Provider's aggregate liability in connection with obligations undertaken as a part of the Agreement regardless of the form or nature of the action giving rise to such liability (whether in contract, tort or otherwise), shall be at actual and limited to the Total Contract Value.
- b) However, Service Provider's liability in case of claims against the Bank resulting from Willful Misconduct or Gross Negligence of Service Provider, its employees and Subcontractors or from infringement of patents, trademarks, copyrights or such other Intellectual Property Rights or breach of confidentiality obligations shall be unlimited.
- c) Bank shall not be held liable for and is absolved of any responsibility or claim / litigation arising out of the use of any third party software or modules supplied by Service Provider as part of procurement under the Agreement.
- d) Under no circumstances Bank of Baroda shall be liable to the Service Provider for direct, indirect, incidental, consequential, special or exemplary damages arising from termination of this Agreement, even if Bank of Baroda has been advised of the possibility of such damages, such as, but not limited to, loss of revenue or anticipated profits or lost business.
- e) It is expressly agreed between the Parties that for any event giving rise to a claim, Bank shall have the right to make a claim (including claims for indemnification under the procurement in this RFP) against Service Provider.

- f) Subject to any law to the contrary, and to the maximum extent permitted by law neither parties shall be liable to other for any consequential/ incidental, or indirect damages arising out of this agreement.
- g) All employees engaged by the party shall be in sole employment of the party and the respective parties shall be solely responsible for their salaries, wages, statutory payments etc. That under no circumstances shall other party be liable for any payment or claim or compensation (including but not limited to compensation on account of injury/death/termination) of any nature to the employees and personnel of the other party.

Please note that Customization done by selected vendor has to hand over all source codes to next vendor during transition period.

25. PUBLICITY

Any publicity by the Service Provider in which the name of the Bank is to be used should be done only with the explicit written permission of the Bank.

26. INDEPENDENT ARRANGEMENT

This Agreement is on a principal-to-principal basis between the Parties hereto. Nothing contained in this Agreement shall be construed or deemed to create any association, partnership or joint venture or employer-employee relationship or principal-agent relationship in any manner whatsoever between the parties. The Service Provider acknowledges that its rendering of services is solely within its own control, subject to the terms and conditions agreed upon and agrees not to hold it out to be an employee, agent or servant of Bank or Affiliate thereof.

27. SUBCONTRACTING

The selected vendor shall not subcontract or permit anyone other than its personnel to perform any of the work, service or other performance required under this project. In case any particular specialized service in the prescribed in the scope of work requires subcontracting, it needs to be specified in the proposal/ response document with all the details of the work/ services. Please note that no work/services shall be subcontracted without prior permission from the Bank in writing.

28. ASSIGNMENT

The Service Provider agrees that the Service Provider shall not be entitled to assign any or all of its rights and or obligations under this Agreement to any entity including Service Provider's affiliate without the prior written consent of the Bank.

If the Bank undergoes a merger, amalgamation, takeover, consolidation, reconstruction, change of ownership, etc., this Agreement along with the subsequent Addendums published

shall be considered to be assigned to the new entity and such an act shall not affect the obligations of the Service Provider under this Agreement.

29. INFORMATION OWNERSHIP

All information processed, stored, or transmitted by Service provider equipment belongs to the Bank. By having the responsibility to maintain the equipment, the Service provider does not acquire implicit access rights to the information or rights to redistribute the information. The Service provider understands that civil, criminal, or administrative penalties may apply for failure to protect information appropriately.

30. SENSITIVE INFORMATION

Any information considered sensitive must be protected by the Service provider from unauthorized disclosure, modification or access.

Types of sensitive information that will be found on Bank's systems the Service provider may support or have access to include, but are not limited to: Information subject to special statutory protection, legal actions, disciplinary actions, complaints, IT security, pending cases, civil and criminal investigations, etc.

31. PRIVACY AND SECURITY SAFEGUARDS

The Service provider shall not publish or disclose in any manner, without the Bank's prior written consent, the details of any security safeguards designed, developed, or implemented by the Service provider or existing at any Bank location. The Service provider shall develop procedures and implementation plans to ensure that IT resources leaving the control of the assigned user (such as being reassigned, removed for repair, replaced, or upgraded) are cleared of all Bank data and sensitive application software. The Service provider shall also ensure that all subcontractors who are involved in providing such security safeguards or part of it shall not publish or disclose in any manner, without the Bank's prior written consent, the details of any security safeguards designed, developed, or implemented by the Service provider or existing at any Bank location.

32. NON – SOLICITATION

The Service Provider, during the term of the contract shall not without the express written consent of the Bank, directly or indirectly: a) recruit, hire, appoint or engage or attempt to recruit, hire, appoint or engage or discuss employment with or otherwise utilize the services of any person who has been an employee or associate or engaged in any capacity, by the Bank in rendering services in relation to the contract; or b) induce any person who shall have been an employee or associate of the Bank at any time to terminate his/ her relationship with the Bank.

33. VICARIOUS LIABILITY

The Service Provider shall be the principal employer of the employees, agents, contractors, subcontractors, etc., if any, engaged by the Service Provider and shall be vicariously liable for all the acts, deeds, matters or things, whether the same is within the scope of power or

outside the scope of power, vested under the contract. No right of any employment in the Bank shall accrue or arise, by virtue of engagement of employees, agents, contractors, subcontractors etc., by the Service Provider for any assignment under the contract. All remuneration, claims, wages dues etc., of such employees, agents, contractors, subcontractors etc., of the Service Provider shall be paid by the Service Provider alone and the Bank shall not have any direct or indirect liability or obligation, to pay any charges, claims or wages of any of the Service Provider's employees, agents, contractors, subcontractors etc. The Service Provider shall agree to hold the Bank, its successors, assigns and administrators fully indemnified, and harmless against loss or liability, claims, actions or proceedings, if any, whatsoever nature that may arise or caused to the Bank through the action of Service Provider's employees, agents, contractors, subcontractors, etc.

34. FORCE MAJEURE

The Service Provider shall not be liable for forfeiture of its performance security, liquidated damages, penalties or termination for default, if any to the extent that its delay in performance or other failure to perform its obligations under the contract is the result of an event of Force Majeure.

For purposes of this Clause, "Force Majeure" means an event explicitly beyond the reasonable control of the Service Provider and not involving the Service Provider's fault or negligence and not foreseeable. Such events are Acts of God or of public enemy, acts of Government of India in their sovereign capacity, strikes, political disruptions, bandhs, riots, civil commotions and acts of war.

If a Force Majeure situation arises, the Service Provider shall promptly notify the Bank in writing of such conditions and the cause thereof within fifteen calendar days. Unless otherwise directed by the Bank in writing, the Service Provider shall continue to perform Service Provider's obligations under this Agreement as far as is reasonably practical and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event.

In such a case the time for performance shall be extended by a period(s) not less than duration of such delay. If the duration of delay continues beyond a period of three months, the Bank and Service Provider shall hold consultations in an endeavor to find a solution to the problem.

35. Incident Response and Management

Service Provider must have a mechanism/resources to take appropriate action in case of any cybersecurity incident. They must have written incident response procedures including the roles of staff/outsourced staff handling such incidents; Response strategies shall consider readiness to meet various incident scenarios based on situational awareness and potential/post impact, consistent communication and coordination with stakeholders, including specifically the bank, during response. Service provider shall report all cyber incidents to the Bank immediately upon detection (if applicable).

Service Provider's BCP/DR capabilities shall adequately and effectively support the Service Provider's cyber resilience objectives and should be so designed to enable the Service Provider to recover rapidly from cyber-attacks/other incidents and safely resume critical operations aligned with recovery time objectives while ensuring security of processes and data is protected.

Service Provider is responsible for meeting the requirements prescribed for incident management and BCP/DR even if their IT infrastructure, systems, applications, etc., are managed by third party vendors/service providers. Service Provider shall have necessary arrangements, including a documented procedure for such purpose. This shall include, among other things, informing the bank about any cybersecurity incident occurring in respect of the bank within 30 minutes of detection to early mitigate the risk as well as to meet extant regulatory requirements.

36. IT Risk Management

The Service Provider shall assist the Bank in adhering to compliance guidelines of the regulatory authorities and facilitate Bank from time to time. The Service Provider shall conform to the security practices and procedures laid down in the Information Technology Act 2000 as amended by the information Technology (Amendment) Act 2008 (IT Act and IT Amendment Act) and the information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or information) Rules 2011 (Privacy Rules).

The Service Provider shall carry out Information security / cyber security risk assessment and apply risk treatment measures on regular intervals. The Service Provider shall put in appropriate cyber security measures in place and comply with the legal and regulatory guidelines and directives.

The Service Provider shall be subjected to the annual IT audit / Technology risk assessment process by an independent professional agency as approved by the local government or regulator.

37. BLACKLISTING:

The Bank reserves the right to blacklist the Service Provider from participating in any procurement process of the Bank, if any major non-compliance or fraudulent activity is found at the location or by any of the staff of the service provider.

38. Order / Contract Cancellation

The Bank reserves its right to cancel the order / contract in the event of one or more of the following situations, that are not occasioned due to reasons solely and directly attributable to the Bank alone and it will be considered as a breach of obligations of vendor:

- Delay in implementation beyond the specified period that is agreed in the contract that will be signed with the successful vendor.

Request for Proposal for Supply, Implementation & Maintenance of Trade Finance Solution

- Delay in site readiness and handing over the site to the Bank.
- Serious discrepancy in the quality of service / facility / security expected during the implementation, rollout and subsequent maintenance process.
- The amount of penalties has exceeded the overall cap of 10% of the yearly contract value in any year during the contract period.
- Failure of the vendor makes good the situation within the remedy period.
- The selected vendor commits a breach of any of the terms and conditions of the RFP / contract.
- The selected vendor becomes insolvent or goes into liquidation voluntarily or otherwise.
- An attachment is levied or continues to be levied for a period of 7 days upon effects of the tender.

In case of order cancellation, any payments made by the Bank to the Service provider would necessarily have to be returned to the Bank with interest @ 15% per annum. Further the Service provider would also be required to compensate the Bank for any direct loss incurred by the Bank due to cancellation of the contract and any additional expenditure to be incurred by the Bank to appoint any other SP. This is after repaying the original amount paid.

39. Visitorial Rights

The Bank and its authorized representatives, including Reserve Bank of India (RBI) or any other regulator shall have the right to visit any of the vendor's premises without prior notice to ensure that data provided by the Bank is not misused. The vendor shall cooperate with the authorized representative/s of the Bank and shall provide all information/ documents required by the Bank.

40. Data Protection Clause

- a. The Service Provider shall immediately dispose the data after completion of its permitted use as per the Bank's instructions and in case Bank observes that the data have not been purged/deleted at Service Provider's end from all servers/storage as per Bank's instruction, bank may claim indemnity from Service Provider for actual/direct/indirect/collateral loss suffered by it without any limit.
- b. The Service Provider shall immediately purge data or any of its remains upon termination of this agreement between bank and Service Provider.
- c. The data provided by Bank to Service Provider for a particular purpose shall not be used by Service Provider for any other purpose.
- d. The service provider shall process all personal data, sensitive personal data or confidential information received from and on behalf of Bank strictly in accordance with applicable Indian data protection laws, including but not limited to the Digital

Personal Data Protection Act 2023, the Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules 2011 and RBI regulations in force from time to time.

- e. The service provider shall use the data only for the purposes explicitly set out in fulfilling the objective of scope of work and shall not retain such data longer than necessary for the fulfilment of contractual obligations, unless required otherwise by law.
- f. The service provider shall implement and maintain all reasonable technical, physical and organizational security measures to prevent unauthorized or accidental access, disclosure, modification, misuse, loss or destruction of personal data, including but not limited to encryption, access controls, periodic audits and secured deletion processes.
- g. The service provider shall promptly notify the Bank of any data breach, accidental loss or unauthorized access to Bank data and cooperate in all required remediation and reporting actions.
- h. Upon termination of this agreement, on Bank's instructions, service provider shall return or securely delete all data and provide a written confirmation of same to Bank.
- i. The service provider shall ensure that all personnel handling Bank data are bound by confidentiality and data protection obligations at least as protective as those set forth in this agreement.
- j. The Bank reserves the right to conduct periodic audits of service provider's compliance with data protection requirements under this agreement.
- k. Bank shall have the right to obtain and analyze service provider's latest Internet Security audit report, external validations of data security measures and BCM activity report.
- l. Bank shall have a right to conduct verification of IT security measures and cyber security measures adopted by the service provider.
- m. Bank may claim indemnity for any sort of data breach due to any act/omission of service provider.
- n. The service provider shall strictly follow the provisions of "THE DIGITAL PERSONAL DATA PROTECTION ACT, 2023" from its effective date as per the relevant notification of Government of India in the Official Gazette at any point of time in future during the currency of this agreement.

41. MISCELLANEOUS

Any provision of this Agreement may be amended or waived if, and only if such amendment or waiver is in writing and signed, in the case of an amendment by each Party, or in the case of a waiver, by the Party against whom the waiver is to be effective.

No failure or delay by any Party in exercising any right, power or privilege hereunder shall operate as a waiver thereof nor shall any single or partial exercise of any other right, power or privilege. The rights and remedies herein provided shall be cumulative and not exclusive of any rights or remedies provided by law.

Unless otherwise provided herein, all notices or other communications under or in connection with this Agreement shall be given in writing and may be sent by personal delivery or post or courier to the person at the address given below. Any such notice or other communication will be deemed to be effective if sent by personal delivery, when delivered, if sent by post, two days after being deposited in the post and if sent by courier, one day after being deposited with the courier.

42. RIGHT TO ALTER QUANTITIES

The Bank reserves the right to alter the requirements specified in the Tender. The Bank also reserves the right to delete one or more items from the list of items specified in the Tender. The Bank will inform (service provider) about changes, if any. (service provider) agrees that the Bank has no limit on the additions or deletions on the items for the period of the contract. Further agrees that the prices quoted by..... would be proportionately adjusted with such additions or deletions in quantities.

43. SURVIVAL

The expiry or the termination of this Agreement does not relieve either party of its obligations which by their nature ought or intend to survive the termination of this Agreement including without limitation under clauses of confidentiality, indemnity, termination, limitation of liability and any covenants of the parties mentioned in this agreement

The addresses referred to hereinabove are:

If to the Bank of Baroda:

The Chief Technical Officer,
Baroda Corporate Centre, C-26, G-Block, Bandra Kurla Complex,
Bandra (East), Mumbai- 400051
ATTN: Assistant General Manager (IT)

If to the

Address _____

ATTN: _____

This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior written agreements, understandings and negotiations, both written and oral, between the Parties with respect to the subject matter of this Agreement. No representation, inducement, promise, understanding, condition or warranty not set forth herein has been made or relied upon by any Party hereto. In case of any contradiction in the terms of RFP _____, offer document and Purchase Order etc., and this Agreement the terms hereof shall prevail.

Neither this Agreement nor any provision hereof is intended to confer upon any Person other than the Parties to this Agreement any rights or remedies hereunder.

In connection with this Agreement, as well as all transactions contemplated by this Agreement, each Party agrees to execute and deliver such additional documents and to perform such additional actions as may be necessary, appropriate or reasonably requested to carry out or evidence the transactions contemplated hereby.

The invalidity or unenforceability of any provisions of this Agreement in any jurisdiction shall not affect the validity, legality or enforceability of the remainder of this Agreement in such jurisdiction or the validity, legality or enforceability of this Agreement, including any such provision, in any other jurisdiction, it being intended that all rights and obligations of the Parties hereunder shall be enforceable to the fullest extent permitted by law.

The captions herein are included for convenience of reference only and shall be ignored in the construction or interpretation hereof.

IN WITNESS WHEREOF, this Agreement has been executed by the Parties hereto on the day and year first above written.

Signed and Delivered by the within named

For Bank of Baroda	For
_____	_____
Name:	Name:
Designation:	Designation:
Witness 1 :	Witness 1 :
Witness 2 :	Witness 2 :

Annexure 22 – Know Your Employee (KYE)

(To be submitted by all Bidders on their letter head)

To
Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

UNDERTAKING

Sub: Request for Proposal for Selection of Service Provider for Implementation of Enterprise Architecture Planning Framework.

We _____ (name of the company) hereby confirm that all the resource (both onsite and off-site) deployed/to be deployed on Bank's project for _____ (Name of the RFP) have undergone KYE (Know Your Employee) process and requisite checks have been performed prior to employment of said employees as per our policy.

We further undertake and agree to save defend and keep harmless and indemnified the Bank against all loss, cost, damages, claim penalties expenses, legal liability because of non-compliance of KYE and of misconduct of the employee deployed by us to the Bank.

We further agree to submit the required supporting documents (Process of screening, Background verification report, verification report, character certificate, ID card copy, Educational document, etc.) to Bank before deploying officials in Bank premises for _____ (Name of the RFP)."

Signature of Competent Authority with company seal

Name of Competent Authority _____

Company / Organization _____

Designation within Company / Organization _____

Date _____

Name of Authorized Representative _____

Designation of Authorized Representative _____

Signature of Authorized Representative _____

Verified above signature

Signature of Competent Authority _____

Date _____

Annexure 23 – SLA/BG Execution Conformity Letter

(This letter should be on the letterhead of the Bidder duly signed by an authorized signatory)

To
Chief General Manager (IT)
Bank of Baroda
Baroda Sun Tower
Bandra Kurla Complex
Bandra (E), Mumbai 400 051

Sir,

Sub: RFP for Selection of Vendor for Supply, Implementation & Maintenance of Trade Finance Solution.

Further to our proposal dated, in response to the Request for Proposal..... (Bank's tender No. hereinafter referred to as "RFP") issued by Bank of Baroda ("Bank") we hereby covenant, warrant and confirm as follows:

If selected, we agree to execute a Service Level Agreement with the Bank within 1 month of issue of Purchase Order. We accept that the Bank reserves the right to incorporate additional clauses as per legal and regulatory requirements of the Bank if required. Failure on our part to execute an agreement with the Bank will relieve the Bank of any obligation to the bidder, and a different bidder may be selected based on the selection process.

We have no objection if the amount of Earnest Money Deposit (EMD) is forfeited by the Bank in the following scenarios:

- a. Fail to accept and sign the contract as specified in this document within 1 month of issue of purchase order / letter of intent for any reason whatsoever; or
- b. Fail to provide the performance bank guarantee within 1 month from the purchase order date, for any reason whatsoever.

Yours faithfully,

Authorized Signatory
Name:
Designation:
Bidder's Corporate Name
Address
Email and Phone #

Request for Proposal for Supply, Implementation & Maintenance of Trade Finance Solution

Annexure 24 – Software Bill of Materials (SBOM)

All the software supplied to the Bank or developed for the Bank must be accompanied by a complete SBOM. The SBOM of the software supplied to the Bank or developed for the Bank must include the data fields mentioned below. In addition, the Software OEM/Owner/Vendor must ensure that:

- The Software supplied to the Bank or developed for the Bank is having a complete SBOM including all the dependencies up to the last level.
- Software OEM/Owner/Vendor should design a Vulnerability Exchange Document (VEX) after a vulnerability is discovered informing the bank about the exploitability status to help prioritize the remediation efforts.

Subsequently, Software OEM/Owner/Vendor should provide the Common Security Advisory Framework (CSAF) advisory, which includes detailed information about the vulnerability, such as a description, affected product versions, severity assessment, recommended mitigation steps etc.

- Software OEM/Owner/Vendor will ensure update of the SBOM in case of any version update or any change in the details on the data point in the SBOM for any reason whatsoever.

FORMAT FOR THE SOFTWARE BILL OF MATERIALS (SBOM) OF THE SOFTWARE SUPPLIED TO THE BANK / DEVELOPED FOR THE BANK

Sr.	Data Field	Details
1	Component Name	
2	Component Version	
3	Component Description	
4	Component Supplier	
5	Component License	
6	Component Origin	
7	Component Dependencies	
8	Vulnerabilities	

9	Patch Status	
10	Release Date	
11	End of Life (EOL Date) Date	
12	Criticality	
13	Usage Restrictions	
14	Checksums or Hashes	
15	Executable Property	
16	Archive Property	
17	Structured Property	
18	Unique Identifier	
19	Comments or Notes	
20	Any Other Relevant Data	
21	Author of SBOM Data	
22	Timestamp	

Guidance notes on filling the SBOM format above:

1. **Component Name:** The name of the software component or library included in the SBOM.
2. **Component Version:** The version number or identifier of the software component.
3. **Component Description:** A brief description or summary of the functionality and purpose of the software component.
4. **Component Supplier:** The entity or organization that supplied the software component, such as a vendor, third-party supplier, or open-source project.
5. **Component License:** The license under which the software component is distributed, including details such as the license type, terms, and restrictions.
6. **Component Origin:** The source or origin of the software component, such as whether it is proprietary, open-source, or obtained from a third-party vendor.
7. **Component Dependencies:** Any other software components or libraries that the current component depends on, including their names and versions.
8. **Vulnerabilities:** Information about known security vulnerabilities or weaknesses associated with the software component, including severity ratings and references to security advisories or CVE identifiers.

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9. **Patch Status:** The patch or update status of the software component, indicating whether any patches or updates are available to address known vulnerabilities or issues.
10. **Release Date:** The date when the software component was released or made available for use.
11. **End-of-Life (EOL) Date:** The date when support or maintenance for the software component is scheduled to end, indicating the end of its lifecycle.
12. **Criticality:** The criticality or importance of the software component to the overall functionality or security of the application, often categorized as critical, high, medium, or low.
13. **Usage Restrictions:** Any usage restrictions or limitations associated with the software component, such as export control restrictions or intellectual property rights.
14. **Checksums or Hashes:** Cryptographic checksums or hashes of the software component files to ensure integrity and authenticity.
15. **Executable Property:** Attributes indicating whether a component within an SBOM can be executed.
16. **Archive Property:** Characteristics denoting if a component within an SBOM is stored as an archive or compressed file.
17. **Structured Property:** Descriptors defining the organized format of data within a component listed in an SBOM.
18. **Unique Identifier:** A unique identifier is a distinct code assigned to each software component, structured as

"pkg:supplier/OrganizationName/ComponentName@Version?qualifiers&subpath,"
aiding in tracking ownership changes and version updates, thus ensuring accurate and consistent software component management.
19. **Comments or Notes:** Additional comments, notes, or annotations relevant to the software component or its inclusion in the SBOM.
20. **Any Other Relevant Data:** Any other data related to the component may be incorporate herein. Additional rows may be added, if need be.
21. **Author of SBOM Data:** The name of the entity that creates the SBOM data for this component.
22. **Timestamp:** Record of the date and time of the SBOM data assembly.

Authorized Signatory

Name:

Designation:

Vendor's Corporate Name:

Date:

Annexure 25 – Sizing Requirement

Vendor needs to submit sizing requirements along with technical bid in the following format (with only relevant information):

S. No.	Item	Specification Details	Quantity	Purpose
A. Hardware				
a. Server				
1				
2				
b. Storage				
1				
2				
c. Network Component				
1				
2				
d. Any Other Component				
1				
B. Appliance				
a.				
1				
2				
b.				
1				
2				
2				
C. Application				
a. Operating System				
1				
2				
b. Database				
1				
2				
c.				
1				
2				
D. Middleware				
d.				
1				
2				
e.				
1				
2				

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